

# **CLAYTON TOWNSHIP**

## **ZONING ORDINANCE**

### **State of Michigan**

### **Arenac County**

### **Township of Clayton**

Ordinance No. \_\_\_\_\_

Adopted: \_\_\_\_\_

**An ordinance to repeal and replace the current Township Zoning Ordinance and all other Township Ordinances in conflict herewith, establishing new districts and regulations to govern land use in the Township of Clayton, Arenac County, Michigan, in accordance with the provisions of PA 110 of 2006, the Michigan Zoning Enabling Act, as amended.**

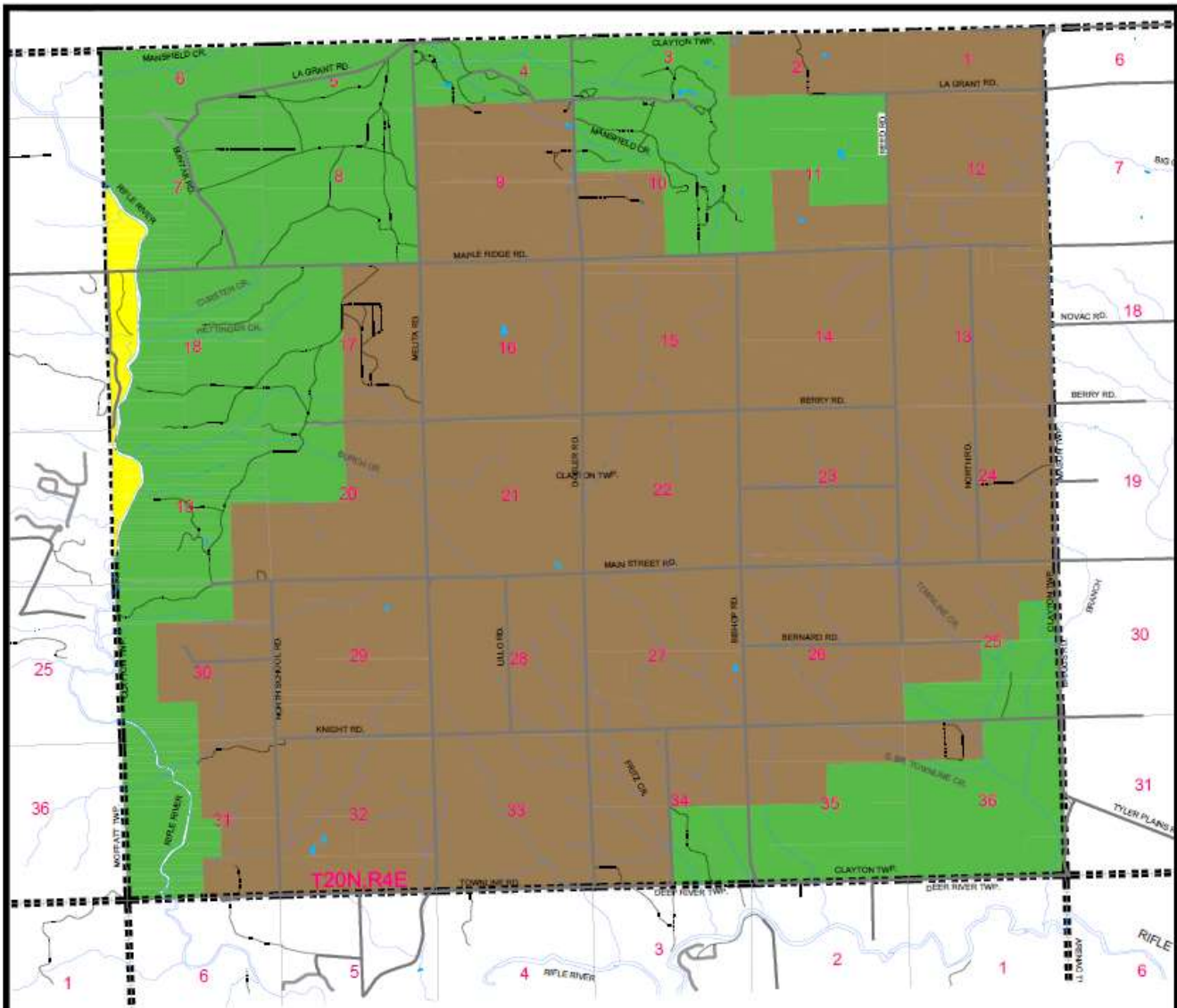
**The Township of Clayton, Arenac County, Michigan hereby ordains:**



## TABLE OF CONTENTS

|                                                       |     |
|-------------------------------------------------------|-----|
| ZONING DISTRICTS MAP .....                            | 1   |
| CHAPTER 1 PREAMBLE.....                               | 2   |
| CHAPTER 2 DEFINITIONS .....                           | 5   |
| CHAPTER 3 NON-CONFORMITIES.....                       | 21  |
| CHAPTER 4 GENERAL PROVISIONS .....                    | 23  |
| CHAPTER 5 DISTRICT REGULATIONS.....                   | 37  |
| SECTION 5.5 AGRICULTURAL DISTRICT (AG) .....          | 38  |
| SECTION 5.6 FOREST AND RECREATION DISTRICT (F-R)..... | 42  |
| SECTION 5.7 RESIDENTIAL DISTRICT ( R ).....           | 45  |
| SECTION 5.9 PLANNED DEVELOPMENTS ( PD ) .....         | 47  |
| CHAPTER 6 PARKING .....                               | 54  |
| CHAPTER 7 SIGNS.....                                  | 57  |
| CHAPTER 8 SPECIAL USES .....                          | 61  |
| CHAPTER 9 DEVELOPMENT SITE PLAN REVIEW.....           | 91  |
| CHAPTER 10 ADMINISTRATION AND ENFORCEMENT.....        | 101 |
| CHAPTER 11 ZONING BOARD OF APPEALS .....              | 105 |
| CHAPTER 12 AMENDMENTS AND REZONING.....               | 109 |





Source: Michigan Dept. of Natural Resources  
Michigan Resource Inventory System

## CLAYTON TOWNSHIP, ARENAC COUNTY, MICHIGAN

### Zoning Use Legend



Residential District  
Forest/Recreation District  
Agricultural District

Highways  
County Roads  
Streets  
Two-Track



**LAPHAM** ASSOCIATES  
ENGINEERING  
PLANNING  
ENVIRONMENTAL  
SURVEYING

# Zoning District Map

# **ZONING ORDINANCE OF CLAYTON TOWNSHIP ARENAC COUNTY, MICHIGAN**

## **CHAPTER 1 PREAMBLE**

### SECTION 1.1 TITLE

This Ordinance shall be known as the “Zoning Ordinance of Clayton Township” and shall be referred to as “this Ordinance.”

### SECTION 1.2 PURPOSE

This Ordinance is based on the Clayton Township Master Plan and designed to be the primary means for its implementation. It sets forth regulations for the uses of land, structures, and natural resources of the Township and for development, redevelopment, or restoration of all property by establishing requirements requisite to proper land use. This Ordinance, along with the Zoning Map, delineates allowed land uses and their restrictions within the Township. The Zoning Ordinance and the Zoning Map are organized into three basic zone areas:

The Agricultural District  
The Residential District  
The Forest and Recreation District

In the Ordinance each district is divided into six parts that provide regulations for each in a clear, concise, and organized fashion:

Purposes;  
Permitted and Conditional  
Uses; Property Development  
Standards; Performance  
Standards; Accessory  
Structures and Uses;  
Miscellaneous Regulations.

The objectives of the Clayton Township Ordinance are:

- A. To promote the public health, safety, and general welfare;
- B. To ensure that land uses shall be in appropriate locations and in proper relationships with other uses;
- C. To provide for open spaces in order to prevent the overcrowding of land and congestion of population, transportation, and public facilities;
- D. To provide for adequate and efficient transportation, sewage disposal, water, and energy systems, and for recreation, public safety, and other public service and facility needs; To cause and perpetuate the wise use of lands and natural resources in accordance with their character and their adaptability to development or not;

- E. To eliminate the improper use of land;
- F. To effect the proper and orderly development of the Township; and
- G. To accomplish the goals and objectives of the Township's Master Plan.

To meet these objectives, Clayton Township is divided into districts of such number, shape and area, and of such common purpose, adaptability or use, that are deemed most suitable to protect the common rights and interests within each district and the Township as a whole, to preserve the property owners' rights to the use of their lands, and to promote quality of life and business vitality.

The regulations of this Ordinance accomplish the purpose and objectives as outlined above by providing for land uses within each district, by acknowledging the unique impacts of special land uses through specific standards for their development in appropriate locations within selected districts; by promoting quality development by limiting the location, height, bulk, occupancy and uses of buildings and other structures by defining maximum residential density and specifying the percentage of a site available for building by providing for basic site design standards to ensure that land is developed in a functional and aesthetic manner, and by requiring various setbacks from property lines and public street rights-of-way.

### SECTION 1.3 SCOPE

- A. Where any condition imposed by any provision of this Ordinance upon the use of any lot, building, or structure is either more restrictive or less restrictive than any comparable condition imposed by any other provision of this Ordinance, the provision which is more restrictive or which imposes the higher standard or requirement shall govern.
- B. This Ordinance shall not abrogate or annul any easement, covenant, or other private agreement. Where any provision of this Ordinance is more restrictive or imposes a higher standard or requirement than such easement, covenant, or other private agreement, the provision of this Ordinance shall govern.
- C. Zoning applies to every building, structure, or use. No building, structure, or land shall be used or occupied, and no building or structure or part thereof shall be erected, moved, placed, reconstructed, extended, enlarged, or altered, except in conformity with this Ordinance.
- D. No setback area or lot existing at the time of adoption of this Ordinance shall be reduced in dimensions or area below the minimum requirements set forth herein. Yards, lots, or setback areas, created after the effective date of this Ordinance shall meet at least the minimum requirements established herein.
- E. Unless otherwise provided for by this Ordinance, any conditions attached to a lot as a result of public action taken pursuant to the application of this Ordinance shall remain in effect even though said lot may change ownership.
- F. The regulations herein established shall be minimum regulations for promoting and protecting the public health, safety, and welfare.

#### SECTION 1.4 AUTHORITY

This Ordinance is enacted in accordance with Public Act 110 of 2006, as amended.

#### SECTION 1.5 VALIDITY AND SEVERABILITY

This Ordinance and the various parts, subsections, paragraphs, sentences, phrases, and clauses thereof are hereby declared to be severable. If any court of competent jurisdiction shall declare any part of this Ordinance to be invalid, such ruling shall not affect any other provisions of the Ordinance not specifically included in said ruling. Further, if any court of competent jurisdiction shall declare invalid the application of any provision of this Ordinance to a particular lot, use, building, or structure, such ruling shall not affect the application of said provision to any other lot, use, building, or structure not specifically included in said ruling.

#### SECTION 1.6 EFFECTIVE DATE

- A. The previous Clayton Township Zoning Ordinance adopted 13 October 2006 along with all amendments is hereby rescinded. This Ordinance shall take effect on the eighth (8<sup>th</sup>) day after publication thereof.



## CHAPTER 2 DEFINITIONS

### SECTION 2.1 RULES APPLYING TO THE TEXT

The following rules of construction shall apply to the text of this Ordinance.

- A. Except with respect to the headings contained in Section 2.2, the headings that title a chapter, a section or a subsection of this Ordinance are for the purposes of clarity and are not to be considered in any construction or interpretation of this Ordinance, or as enlarging or restricting any of its terms or provisions in any respect.
- B. The illustrations contained within this Ordinance are intended to exemplify hypothetical applications of the provisions that refer to them, and shall not have the effect of enlarging or restricting the terms or provisions which refer to them. In the event of any conflict between the provisions of the written text of the Ordinance and the illustrations, the text shall govern.
- C. When inconsistent with the context, words used in the present tense shall include the future tense, words in the singular shall include the plural and words in the plural shall include the singular.
- D. The word “shall” is always mandatory and not discretionary. The word “may” is permissive.
- E. A “building” or “structure” includes any part thereof unless specifically excluded.
- F. The word “person” shall include a firm, association, partnership, joint venture, corporation, trust, municipal or public entity, or equivalent entity or any combination of them as well as a natural person.
- G. The words “used” and “occupied”, as applied to any land, building or structure, shall be construed to include the phrases “intended to be”, “arranged to be” or “designed to be” used or occupied.
- H. The words “erected” or “erection” as applied to any building or structure, shall be construed to include the words “built”, “constructed”, “reconstructed”, “moved upon”, or any physical operation or work on the land on which the building or structure is to be built, constructed, reconstructed or moved upon, such as excavation, filling, drainage or the like.
- I. The particular shall control the general.
- J. Terms not herein defined shall have common, customary meanings.

### SECTION 2.2 DEFINITIONS

For the purpose of their use in this Ordinance, the following terms and words are hereinafter defined:

**Accessory Building or Structure** is a building or structure that is detached from the principal building located on the same lot and is customarily incidental to the principal building. A permit is not required for an accessory structure 200 square feet or smaller.

**Accessory Use** shall mean a use incidental, related, appropriate, and clearly subordinate to the main use of the lot or building, which accessory use does not alter the principal use of such lot or building.

**Adult Entertainment Establishment** is any one, or combination of the following: adult bookstore, adult tavern or bar, adult cabaret, adult live entertainment, adult mini-motion picture theater, adult motion picture theater, adult novelty, adult video sales or rental, or related adult amusement. Any business that devotes more than thirty (30%) percent of its total sales, stock, or trade to adult uses shall be considered an adult entertainment establishment. “Adult” in this context shall mean sexually explicit materials and actions not intended for exhibit to minors.

**Agriculture** is farms and general farming, including horticulture, floriculture, dairying, fish farming, livestock, and poultry raising, and other similar enterprises or uses.

**Alley, Lane or Service Drive** is a service way providing a secondary means of public access to abutting properties and not intended for general traffic circulation.

**Bed and Breakfast Establishment** is a use which is subordinate to the principal use of a dwelling as a single-family dwelling unit and in which transient guests do not stay more than seven (7) consecutive days and are provided a sleeping room and a breakfast in return for payment.

**Boarding or Lodging House** is a building other than a hotel where, for compensation and by prearrangement for definite periods, lodging, meals, or both are provided for three (3) or more, but not exceeding twenty (20), persons.

**Bonafide Commercial Agricultural Operation** is the raising of plants or animals, commonly grown in Central Lower Michigan, on a parcel of land appropriate for a continuing agricultural enterprise.

**Building** is any structure which is erected having a roof supported by columns or walls.

**Building Height** shall mean the vertical distance from the average grade to the highest point of the coping of a flat roof or to the deck line of a mansard roof or to the highest point of the highest gable of a pitch or hip roof, but exclusive of vents, mechanical equipment, chimneys, or other such incidental appurtenances.

**Building Site** shall mean a legally created parcel or contiguous parcels of land in single or joint ownership that provides the area and the open spaces required by this Ordinance for the location or construction of a building, exclusive of all vehicular and pedestrian rights-of-way and all other easements that prohibit the surface use of the property by the owner thereof.

**Burned-out & Deteriorated Buildings** shall include any dwelling, garage, outbuilding, factory, shop, store, office building, warehouse, barn, or any other structure or part of a structure which, because of fire, wind, or other natural disaster, or because of physical deterioration, is no longer habitable as a dwelling, nor useful for the purpose for which it may have been intended.

**Commercial Shipping Container** is a metal, or primarily metal, container designed and constructed to ship, store, or bundle bulk goods, also known as intermodal freight containers, or bulk shipping containers.

**Commercial Solar Energy System** A Solar Energy System in which the principal design, purpose, or use is to provide energy to off-site uses or the wholesale or retail sale of generated electricity to any person or entity.

**Development Site Plan** is the documents and drawings required by the Zoning Ordinance necessary to ensure that a proposed land use or activity is in compliance with local ordinances and state and federal statutes.

**Drive-through Business** is a business establishment organized so that its retail or service character is wholly or partially dependent on providing a driveway approach and service windows or facilities for vehicles in order to serve patrons while in their vehicles.

**Dwelling, Multiple-Family** is a building containing three (3) or more dwelling units with a minimum 720 square feet per dwelling unit, designed for exclusive use and occupancy by three (3) or more families.

**Dwelling, Single-Family** is a building designed for exclusive use and occupancy as a dwelling unit by one (1) family, complying with the following standards:

1. A single-family dwelling shall have a minimum of 720 square feet of living space.
2. It complies in all respects with the Michigan State Construction Code as promulgated by the Michigan State Construction Commission under the provisions of Public Act 230 of 1972 as amended, including minimum heights for habitable rooms. Where a dwelling is required by law to comply with any federal or state standards or regulations for construction and where such standards and regulations for construction are different from those imposed by the state building code, then, and in that event, such federal or state standard or regulation shall apply.
3. It is firmly attached to a permanent foundation constructed on the site in accordance with the building code in effect, and shall have a wall of the same perimeter dimensions of the dwelling and constructed of such materials and type as required in the applicable building code for single-family dwellings. In the event that the dwelling is a mobile home, as defined herein, such dwelling shall be installed pursuant to the manufacturer's set-up

instructions and shall be secured to the premises by an anchoring system or device complying with the rules and regulations of the Michigan Mobile Home Commission and shall have a perimeter wall as required above.

4. In the event that a dwelling is a mobile home as defined herein, each mobile home shall be installed with the wheels removed. Additionally, no dwelling shall have any exposed towing mechanism, undercarriage, or chassis.
5. The dwelling is connected to a public sewer and water supply or to such private facilities approved by the District Health Department.
6. The dwelling contains no additions or rooms or other areas which do not meet the same construction requirement listed above and are permanently attached to the principal structure.
7. The dwelling complies with all pertinent building and fire codes. In the case of a mobile home, all construction and all plumbing, electrical apparatus and insulation within and connected to said mobile home shall be of a type and quality conforming to the "Mobile Home Construction and Safety Standards" as promulgated by the United States Department of Housing and Urban Development, being 24CFR 3280, and as from time to time such standards may be amended. Additionally, all dwellings shall meet or exceed all applicable roof snow load and strength requirements.
8. The foregoing standards shall not apply to a mobile home located in a licensed mobile home park except to the extent required by state or federal law or otherwise specifically required in this Ordinance.
9. All construction required herein shall be commenced only after a land use permit and building permit have been obtained in accordance with the applicable building code provisions and requirements.

**Dwelling, Two-Family (Duplex)** is a building containing two (2) separate dwelling units, both units having a minimum 720 square feet, designed for residential use by no more than two (2) families and connected by either a common wall or an attached garage area.

**Dwelling Unit** is a building, or part thereof, providing complete living facilities, including provisions for sleeping, cooking, eating and sanitation.

**Essential Service** is a service utility which is needed for the health, safety, and welfare of the community. In Michigan, these services are controlled by the Public Services Commission.

**Family Day Care Home** means a private home in which one but fewer than seven minor children are received for care and supervision for periods of less than 24 hours a day, unattended by a parent or legal guardian, except children related to an adult member of the family by blood, marriage, or adoption. Family Day Care Home includes a home in which care is given to an unrelated minor child for more than 4 weeks during a calendar year. Family Day Care is considered a permitted residential use in all districts where residential dwellings are allowed.

**Family** is an individual or two (2) or more persons related by blood or marriage, or a group of not more than five (5) persons who need not be related by blood or marriage, living

together as a single housekeeping unit in a dwelling.

**Flag Lot** is a lot not fronting on or abutting a road where access to the road is by a narrow, private right-of-way.

**Floor Area** is the total area of the floor space within the outside walls of a building, excluding porches, breezeways, garages, attics, basements, utility areas, cellars or crawl spaces, but which may include that portion of a walkout basement that is finished for everyday living and not just for storage or occasional use.

**Frontage** is the continuous length along which a parcel of land fronts on a road or street, measured along the line where the property abuts the street or road right-of-way.

**Garage - Private** is a detached accessory building or portion of a main building used only for the parking or storage of vehicles.

**Garage - Public** is a building other than a private garage primarily used for the purpose of parking, storing, repairing or equipping motor vehicles therein as commercial use.

**Ground Mounted Solar Energy System** A Private or Commercial Solar Energy System that is not attached to or mounted to any roof or exterior wall of any principal or accessory building.

**Group Day Care** means a private home in which more than six but not more than twelve minor children are received for care and supervision for periods of less than 24 hours a day, unattended by a parent or legal guardian, except children related to an adult member of the family by blood, marriage, or adoption. Group Day Care Home includes a home in which care is given to an unrelated minor child for more than 4 weeks during a calendar year. A Group Day Care shall be granted a Special Use Permit if it meets the standards of Section 206 of Public Act 110 of 2006.

**Home Occupation** is an occupation or profession carried on by an occupant of a dwelling unit as a secondary use which is clearly ancillary to the use of the dwelling for residential purposes. An accessory building may be used for a home occupation by special use. No more than two non-family members may be employed in such activity; outdoor storage shall be completely screened; and no activity shall become a nuisance to its immediate neighbors or neighborhood.

**Indoor Recreation Establishment** is a facility designed and equipped for the conduct of sports, amusement or leisure time activities and other customary recreational activities indoors (within an enclosed building) and operated as a business and open for use by the public for a fee, such as fitness centers, bowling alleys, indoor softball, and racquetball and tennis clubs.

**Junk Yard** is any land or structure used for a salvaging operation including, among other things, the storage and/or sale of waste paper, rags, scrap metals, used and discarded materials and the collecting, dismantling, storage and salvaging of unlicensed, inoperative

vehicles.

**Kennel** is any premises or portions thereof on which four (4) or more dogs, cats or other household domestic animals over four months of age are kept, or in which more than three (3) such animals are maintained, bred or cared for, for remuneration or sale.

**Land Division** is any splitting or dividing of a plot of land (parent parcel) that results in the creation of a new defined parcel or parcels of land from the original parent parcel.

**Large Scale Livestock Enterprises** is a farming operation where numbers of animals significantly more than historically raised in general agriculture are raised usually in confinement or dry lot, also known as a large confined animal feeding operation.

**Loading Space** is a space on the same lot with a building, or group of buildings, for the temporary parking of commercial vehicles while loading and unloading merchandise or materials.

**Lot** is a parcel of land separated from other parcels of land by description on a recorded plat or by metes and bounds description, including a condominium unit site in a site condominium subdivision, having frontage upon a public or private street and having sufficient size to comply with the requirements of this Ordinance.

**Lot Area** is the total area included within lot lines. Where the front lot line is the centerline of a public street, the lot area shall not include that part which is in the public right-of-way.

**Lot Coverage** is a part or percent of a lot occupied by buildings or structures and other impervious surfaces.

**Lot Depth** is the arithmetic mean of the shortest and longest distance from the front lot line to the rear lot line.

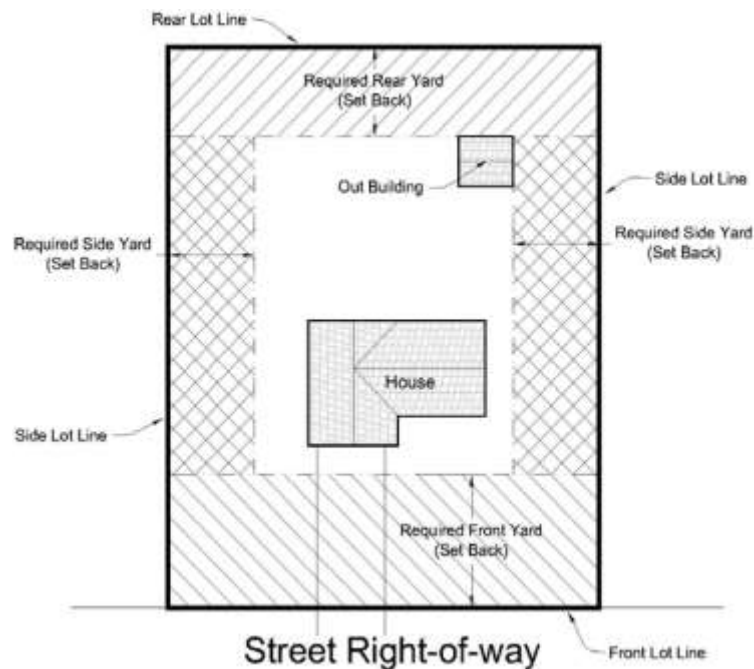
**Lot Line** is the line bounding a lot, parcel, or general common element (if there is no limited common element) that separates the lot, parcel, or general common element (if there is not limited common element) from another lot, parcel, general common element (if there is no limited common element), existing street right-of-way, approved private road easement, or the ordinary high water mark.

**Lot Line, Front** is the lot line separating a lot or parcel from a street right-of-way (refer to Figure 1), or in the case of a lake lot, the ordinary high water mark.

**Lot Line, Rear** is the lot line which is opposite and most distant from the front lot line. In the case of an irregular or triangular shaped lot, a line at least ten (10) feet in length, entirely within the lot, and generally parallel to and most distant from the front lot line (refer to Figure 1).

## LOT LINES AND MINIMUM REQUIRED YARDS

Figure 1



**Lot Line, Side** is any lot line not a front or rear lot line (refer to Figure 1).

**Manufactured Home** is a mobile home, residential building, dwelling unit, dwelling room or rooms, or a building component which is designed for long-term residential use and is wholly or substantially constructed at an off-site location, transported to a site, and erected.

**Mobile Home** is a structure, transportable in one or more sections, which is built on a chassis and designed to be used as a dwelling when connected to the required utilities, and includes the plumbing, HVAC, and electrical system in the structure. Mobile home does not include a recreational vehicle or motor home.

**Motor Vehicle Sales and/or Repair** is any establishment engaged in the sale, rental, or leasing of new or used automobiles, vans, pick-up trucks, recreational vehicles, or travel trailers, or a business performing repairs on such vehicles.

**Motor Vehicle Service Facility** is any establishment engaged in the direct retail sale of gasoline or other engine fuels, motor oil or lubricants, performing interior or exterior cleaning, sale of tires, parts or accessories, inspection, lubrication, engine tuning, or minor repair for automobiles, vans, pick-up trucks, or other motor vehicles.

**Non-Conforming Structure** is a structure, or portion thereof, lawfully existing at the time this Ordinance or amendments become effective and fails to meet the minimum requirements of the zoning district in which it is located.

**Non-Conforming Use** is the use of a building or of land lawfully existing at the time this Ordinance or amendments become effective but does not conform with the use regulations of the district in which it is located.

**Off-Site Sign** is a sign which advertises or directs attention to products or activities that are not provided on the parcel upon which the sign is located.

**Ordinary High-Water Mark** is the line between upland and bottom land which persists through successive changes in water levels below which the presence and action of the water is so common or recurrent that the character of the land is marked distinctly from the upland, and is apparent in the soil itself, the configuration of the surface of the soil, and the vegetation. On an inland lake which has a level established by law it means the high established level. Where water returns to its natural level as the result of the permanent removal or abandonment of a dam, levee, or other water-controlling device, this shall be the natural ordinary high-water mark.

**Outdoor Advertising Structure** - A sign or billboard that may be erected for the purpose of advertising a business or other activity and is not on the same parcel as the business or activity advertised.

**Outdoor Recreation Establishment** is a facility designed and equipped for the conduct of sports, amusement or leisure time activities, and other customary recreational activities outdoors (outside of an enclosed building) and operated as a business and open for use by the public for a fee such as tennis courts, archery ranges, golf courses, miniature golf courses, golf driving ranges, and children's amusement parks.

**Owner(s)** shall mean any combination of persons who have equitable or legal title to the premises, dwelling, or dwelling unit.

**Planned Development** is an area of a minimum contiguous size, as specified by this Ordinance, developed according to plan as a single entity and containing one or more structures with appurtenant common areas.

**Principal Use** is the main use to which a premises is devoted and the principal purpose for which a premises exists.

**Private Road** is any road or thoroughfare for vehicular traffic which is privately owned and maintained and provides the principal means of access to abutting properties.

**Private Solar Energy System** A Solar Energy System used exclusively for private purposes and not used for any commercial resale of any energy, except for the sale of surplus electrical energy back to the electrical grid.

**Public Road or Street** is a public thoroughfare for vehicular traffic which is publicly owned and maintained and provides the principal means of access to abutting properties.



**Public Utility Facility** is a structure constructed as a part of, or in conjunction with, a public energy system, including battery storage facilities.

**Recreational Vehicle** is a vehicle intended and designed primarily for recreational use, such as a motor home, camper trailer, boat, snowmobile, off-road and all-terrain vehicle, or similar vehicle or trailer. The term “recreational vehicle” shall not include a motorcycle or motorbike or other similar means of transportation intended primarily for daily on-street use.

**Retail Store** is any building or structure in which goods, wares, or merchandise are sold to a customer for direct consumption and not for resale.

**Right-of-way** is a street, alley or other thoroughfare or easement permanently established for passage of persons or vehicles and under the legal authority of an agency having jurisdiction over the right-of-way.

**Road** refer to definitions of “Private Road” and “Public Road or Street”.

**Screen** is a structure such as a fence or wall, providing enclosure and visual barrier between the area enclosed and the adjacent property.

**Seasonal** is any use or activity that cannot or should not be performed during the entire year.

**Setback** is the required minimum horizontal distance between a lot line or other controlling entity and a building, structure, or use line.

**Short Term Rental** is a property rented for more than 14 collective days in a calendar year, but not on a common annual property lease.

**Sign** is an outdoor sign, display, figure, painting, drawing, message, placard, or poster which is designated, intended, or used to advertise or inform.

**Site Condominium Projects** are land developments done in accordance with the Condominium Act (Public Act 59 of 1978), as amended. All such developments shall follow the standards and procedures of Section 5.11, Planned Developments, and meet the requirements of the district(s) for which they are intended.

**Solar Energy System:** See Solar Energy System definitions below.

**State Licensed Residential Facility** a state-licensed residential facility, which includes a foster family home, a foster family group home, and an adult foster care family home, shall be considered a residential use of property and a permitted use in all districts which allow residential dwellings.

**Structure** is anything constructed, assembled or erected, the use of which is intended to be permanent or lasting, and requires location on the ground or attachment to something having a location on or in the ground. The word “structure” shall not apply to wires and their supporting poles or frames or electrical or telephone utilities or to service utilities below the ground.

**Theater:** A commercial entity engaged in the business of showing motion pictures through visual media for a profit.

**Uniform Setback** is where fifty (50%) percent or more of the frontages of existing structures along a roadway between two (2) intersecting streets maintain the same minimum setback.

**Use** is the purpose for which land, or a building (or buildings) is arranged, designed or intended, or for which land or a building (or buildings) is or may be occupied and used.

**Variance** is a modification to the rules or provisions of this Ordinance which may be granted by the Zoning Board of Appeals where there is practical difficulty or unnecessary hardship in the way of carrying out the strict letter of this Ordinance.

**Vehicle** is any device in, upon, or by which any person or property is or may be transported or drawn upon any street, highway, excepting devices exclusively moved by human power or used exclusively upon stationary rails or tracks.

**Wind Energy Conversion Systems** – see Public Utility Facilities and Wind Energy Conversion Systems definitions below.

**Yard** is a space open to the sky and unoccupied or unobstructed, except by structures or uses specifically permitted by this Ordinance. A required yard is measured between the applicable lot line and the nearest foundation line of a building or structure.

**Yard, Front** is the yard extending across the full width of the lot, the depth of which is the distance between the front lot line and foundation line of the main building (refer to Figure 1).

**Yard, Rear** is the yard extending across the full width of the lot, the depth of which is the distance between the rear lot line and the rear foundation line of the main building (refer to Figure 1).

**Yard, Side** is the yard between the foundation line of the main building and the side lot line extending from the front yard to the rear yard (refer to Figure 1).

## **PUBLIC UTILITY FACILITIES AND WIND ENERGY CONVERSION SYSTEMS (WECS)**

### **DEFINITIONS**

**Participating Landowner** A landowner who has leased land to the WECS Applicant, received financial remuneration from the WECS Applicant, recorded with the Arenac County Register of Deeds said agreement, and has a contract with the WECS Applicant. A Participating Landowner may also be called a WECS contract leaseholder. A Participating Landowner may or may not have turbines or infrastructure located on his or her property.

**Non-Participating Landowner** A landowner who has not signed a contract or any legal document with the WECS Applicant and has not given up rights to his or her owned land to the WECS Applicant.

**SCADA (supervisory control and data acquisition)** A computer system that monitors and controls WECS units.

**dBA** The A-weighted sound level.

**dBC** The C-weighted sound level.

**Pasquill Stability Class** Reference, wikipedia.org "Outline of air pollution dispersion".

**Adverse Sound Character** Sound that causes building rattle, is impulsive, tonal, or has low-frequency bass rumble.

**ANSI** the American National Standards Institute.

**Audible** The varying degrees of sound perception as reported by affidavit, including, but not limited to, just perceptible, audible, clearly audible, and objectionable.

**Battery or Energy Storage Facility** is a public utility facility constructed to store electrical energy produced by a WECS or SES system.

**Decibel (dB)** The practical unit of measurement for sound pressure level; the number of decibels of a measured sound is equal to 20 times the logarithm to the base 10 of the ratio of the sound pressure of the measured sound to the sound pressure of a standard sound (20 microPascals); abbreviated "dB."

**Emergency work** Any work or action necessary to deliver essential services in an emergency situation, including, but not limited to, repairing water, gas, electricity, telephone and sewer facilities and public transportation, removing fallen trees on public rights-of-way, and abating life-threatening conditions.

**Equivalent Sound Level (or Leq)** The sound level measured in decibels with an integrating

sound level meter and averaged on an energy basis over a specific duration.

**Excessive noise** Sound that is determined by ordinance to be too loud or unnecessary or creates a noise disturbance.

**Ambient** Ambient is defined as the sound pressure level exceeded 90% of the time over a 96-hour measurement period with daytime/nighttime division.

**Noise** A sound, especially one that is loud or unpleasant or that causes disturbance. Any airborne sounds of such level and duration as to be or tend to be injurious to human health or welfare (well-being) or that would unreasonably interfere with activities or the enjoyment of life or property.

**Quiet Rural or Residential property** Any property where there is an inherent expectation of quiet, including, but not limited to, residences, businesses, single family homes, and retirement homes.

**Sound level meter** An instrument for the measurement of sound levels that meets the ANSI requirements of S1.4-1983 (or later revision) for Type 1 or 2 instruments. For frequency analysis, octave and 1/3 octave filters shall conform to ANSI S1.11-1986 (or later revision).

**GIS:** Geographic Information System and is comparable to GPS (global positioning system) coordinates.

**Survival Wind Speed** The maximum wind speed, as designated by the WECS manufacturer, at which a WECS in unattended operation (not necessarily producing power) is designed to survive without damage to any structural equipment or loss of the ability to function normally.

**Tip Height** The height of the turbine with a blade at the highest vertical point.

**Wind Energy Conversion System (WECS)** Any combination of the following:

1. A mill or machine operated by wind acting on oblique vanes or sails that radiate from a horizontal shaft;
2. A surface area such as a blade, rotor, or similar device, either variable or fixed, for utilizing the wind for electrical or mechanical power;
3. A shaft, gearing, belt, or coupling utilized to convert the rotation of the surface area into a form suitable for driving a generator, alternator, or other electricity-producing device;
4. The generator, alternator, or another device to convert the mechanical energy of the surface area into electrical energy;
5. The tower, pylon, or other structure upon which any, all, or some

combination of the above are mounted.

6. Any other components not listed above but associated with the normal construction, operation, and maintenance of a wind energy conversion system.

**WECS Applicant** The person, firm, corporation, company, limited liability corporation or other entity, as well as the Applicant's successors, assigns and/or transferees, which applies for Township approval (permit) to construct a WECS and WECS Testing Facility. An Applicant must have the legal authority to represent and bind the Participating Landowner, or lessee, who will construct, own, and operate the WECS or Testing Facility. The duties and obligations regarding a zoning approval for any approved WECS or Testing Facility shall be with the WECS or Testing Facility owner, and jointly and severally with the owner, operator, and lessee of the WECS or Testing Facility if different than the WECS owner.

**Wind Energy Conversion System (WECS) Testing Facility** A structure and equipment such as a meteorological tower for the collection of wind data and other meteorological data and transmission to a collection source, shall not be deemed to be a communication tower.

**Leq 1 hour** The maximum dBA sound level per a noise event. All noise measurements shall use Leq dBA methods.

### **SOLAR ENERGY SYSTEM (SES) DEFINITIONS**

**Solar Energy System (SES)** A photovoltaic system or solar thermal system for generating and /or storing electricity or heat, including all above and below ground equipment or components required for the system to operate properly and to be secured to a roof surface or the ground. This includes any necessary operations and maintenance buildings but does not include any temporary construction offices, substation(s) or other transmission facilities between the SES and the point of interconnection to the electric grid. Also referred to as a Commercial Solar Energy System (CSES) or Large-Scale Solar Energy System.

**Small-Scale Solar Energy System (SSES)** A Solar Energy System in which the principal design, purpose, and use is to provide energy exclusively for on-site uses and not for sale to a utility on the grid except for the sale of surplus electric energy produced. Also called non- commercial, private, personal, accessory, or residential systems.

**Abandonment** To give up, discontinue, withdraw from. Any solar energy system that ceases to produce energy on a continuous basis for twelve (12) months shall be considered abandoned. This includes a Solar Energy System that has never been operational if construction has been discontinued for a period of twelve (12) consecutive months. A waiver for six (6) additional months may be granted by the Township for extenuating circumstances at the Township's discretion.

**Agriculture Drain Tile System** A type of drainage system used in farming operations that removes excess water from soil below its surface using underground drainage tiles.

**ANSI:** American National Standards Institute.

**BIPV:** Building-integrated photovoltaic panel, attached or integrated.

**Commercial Solar Energy System (CSES)** A Solar Energy System in which the principal design, purpose, or use is to provide energy to off-site uses or the wholesale or retail sale of generated electricity to any person or entity. Also called large or utility-scale.

**Complaint Vendor** 3<sup>rd</sup> party manager of the complaint process.

**Concentrating Solar Energy Systems** Solar Energy Systems that use some form of reflective mirror, heliostats, dish collectors or other devices to concentrate solar energy on a central receiver.

**dB(A):** The sound pressure level in decibels referred to in the "A" weighted scale.

**dB(C):** The sound pressure level in decibels referred to in the "C" weighted scale.

**Decibel** A unit of measure used to express the magnitude of sound pressure and sound intensity.

**Decommission** To remove or take out of active service.

**Decommissioning Plan** A document that details the planned shut down and removal of a SES from operation or usage.

**Development Plan** A common term for the development design and description for a specific project including, but not limited to, parcel boundaries, topography, and existing structures, proposed utilities, infrastructure, structures, and other construction or improvements, distances from boundaries and or between structures including set-backs from certain markers, e.g., road rights-of-way or existing structures, that is used for permitting and construction purposes of a proposed project.

**Fence** A continuous barrier extending from the surface of the ground to a uniform height of not less than seven (7) feet from the ground at any given point, constructed of steel, or other material of similar strength.

**FERC** The Federal Energy Regulatory Commission.

**Glare** Visual conditions in which there is excessive contrast or an inappropriate distribution of light sources that disturbs the observer or limits the ability to distinguish details and objects.

**Ground-Mounted SES** A Private or Commercial Solar Energy System that is not attached to or mounted to any roof or exterior wall of a principal or accessory building.

**Grid** The infrastructure of power lines, transformers and substations that delivers electric power to users. The utility grid is mainly owned and managed by private electric utility companies.

**Leq 1 hour:** The maximum dBA sound level per a noise event. All noise measurements shall use Leq dBA methods.

**Non-participating Parcel** A parcel of land within the Township or an adjacent township that is not subject to a utility scale SES lease or easement or other contractual agreement at the time an application is submitted for a permit for the purpose of developing and constructing a Large-scale or Commercial Solar Energy System.

**PA 116** The Michigan Farmland and Open Space Preservation Act, is a law that works to reserve farmland by offering incentives to farmers and other land owners who participate.

**Participating Parcel** A parcel of land within the Township that is subject to lease or easement agreement or other contractual agreement at the time the application is submitted for a permit for the purpose of developing and constructing a Large-scale or Commercial Solar Energy System.

**Photovoltaic (PV)** A method of generating electrical power converting solar radiation (sunlight) into electrical current.

**Public Road** Any road or highway which is now or hereafter designated and maintained by the Arenac County Road Commission as part of the County Road System, whether primary or secondary, and to include any road(s) under the jurisdiction of Township or the State of Michigan.

**Repowering** Reconfiguring, renovating, or replacing an SES to maintain or increase the power rating of the SES within the existing project footprint.

**Residence** A building used as a dwelling by a family or group of persons in a household.

**Rooftop or Building-Mounted Solar Energy Systems** A Personal or Accessory Scale Energy System attached to or mounted on any roof or exterior wall of a principal or accessory building.

**Set-Back** Is a commonly used term to denote a minimum distance required between certain structures or elements of structures from rights-of-way or property boundaries.

**Solar Array** A photovoltaic panel, solar thermal collector, or collection of panels or collectors in a solar energy system that collects solar radiation.

**Solar Canopies** Solar energy systems that are elevated above the ground such that the land beneath the panel can be used for a secondary purpose. For example, those systems installed above parking lots (also referred to as solar car ports) or in yards to provide shade.

**Solar Energy** Radiant energy emitted by the sun.

**Solar Glare** The effect produced by light reflecting from a solar panel with an intensity sufficient to cause annoyance, discomfort, or loss of acceptable visual performance.

**Solar Glare Hazard Analysis Tool (SGHAT)** A tool developed by the Sandia National Laboratories, used to measure the potential unwanted visual impacts to pilots, workers, motorists, and others near a solar energy system.

**Stray Voltage** Stray voltage refers to voltage differences that can exist between two surfaces. These surfaces may be accessible to animals (stanchions, waterers, floors, etc.). When an animal touches both surfaces simultaneously, a small electric current may flow through its body and if the current is high enough, it can be felt by the animal and may cause behavioral changes.

**USDA:** The United States Department of Agriculture

**Wildlife-Friendly Fencing:** A fencing system with openings that allow wildlife to traverse through a fenced area.



## **CHAPTER 3 NON-CONFORMITIES**

### **SECTION 3.1 INTENT AND PURPOSE**

It is the intent of the Chapter to provide for the use of lands, buildings, and structures which were lawfully established prior to the effective date of this Ordinance to continue, even though the use may be prohibited or differently regulated under the terms of this Ordinance. Such non-conforming lots, uses of land, structures, and uses of structures are declared by this Ordinance to be incompatible with permitted conforming uses, buildings, and structures. In order to adequately regulate the conflicts between conforming and non-conforming uses, buildings, and structures, the regulations that follow are enacted.

### **SECTION 3.2 NON-CONFORMING LOTS**

See Chapter 4 General Provisions (Section 4.4)

### **SECTION 3.3 NON-CONFORMING USES OF LAND**

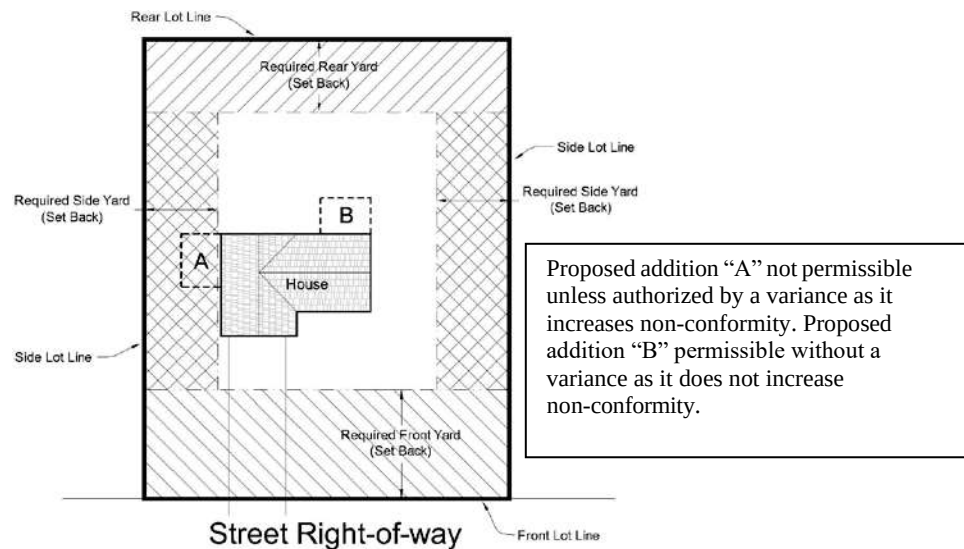
Where, at the effective date of adoption or amendment of this Ordinance, a lawful use on a parcel of land exists that becomes non-conforming under the terms of this Ordinance, such use may be continued, so long as it remains otherwise lawful.

### **SECTION 3.4 NON-CONFORMING STRUCTURES**

Where a lawful structure exists at the effective date of adoption or amendment of this Ordinance that could not be built under the terms of this Ordinance by reason of restriction on area, lot coverage, height, yards, or other characteristics of the structure or its location on the lot, such structure may be continued so long as it remains otherwise lawful, subject to the following provisions (refer to Figure 1):

- A. No such structure may be enlarged or altered in a way which increases its non-conformity.
- B. Any such structure destroyed by fire or an act of God may be reconstructed, but as nearly conforming with the provisions of this Ordinance as possible.
- C. Should such nonconforming structures be moved for any reason for any distance whatever, it shall thereafter conform to the regulations for the area into which it is located.

Figure 2



### SECTION 3.5 REPAIR AND REPLACEMENT OF NON-CONFORMING STRUCTURES

On any building devoted in whole or in part to any non-conforming use, ordinary maintenance may be done. Nothing in this Ordinance shall be deemed to prevent the strengthening or restoring to a safe condition of any building or part thereof declared to be unsafe by any official charged with protecting the public safety, upon order of such official.

### SECTION 3.6 CHANGE OF TENANCY OR OWNERSHIP

There may be change of tenancy, ownership or management of any existing non-conforming use of land, structure, or premises provided there is no change in the nature of the character of such non-conforming use that would be at variance with the provisions of this Chapter and Ordinance.

### SECTION 3.7 ABANDONMENT OF NON-CONFORMING USES AND STRUCTURES

- A. If for any reason a non-conforming use is abandoned or discontinued for a period greater than 365 consecutive days, the use shall not be allowed to be re-established, and any subsequent use shall conform to all the requirements and provisions of this Ordinance. Under extraordinary circumstances, a petition may be made to the Zoning Board of Appeals to extend the period of disuse or re-establish the non-conforming use.
- B. If for any reason the use of a non-conforming structure ceases to exist or is discontinued for a period of more than 365 consecutive days, no use shall be allowed to occupy the structure, unless authorized by the Zoning Board of Appeals.

## **CHAPTER 4 GENERAL PROVISIONS**

### **SECTION 4.1 INTENT AND PURPOSE**

In addition to the development and performance requirements set forth in Chapter 5, other standards and requirements are necessary to ensure that the development of land occurs in an efficient and orderly manner. It is the intent of this Chapter to set forth provisions that will regulate the uses allowed in all districts.

### **SECTION 4.2 ACCESSORY BUILDINGS**

Accessory buildings, except as otherwise permitted in this Ordinance, shall be subject to the following regulation:

Where an accessory building is structurally attached to a main building, except where otherwise noted, it shall be subject to and must conform with all regulations applicable to the main buildings.

A Land Use Permit is required for all buildings and structures erected and used on farms in the Township. No other permit is required for construction of farm building structures.

### **SECTION 4.3 LOT ALLOCATION**

No portion of any lot or parcel used once to comply with the provisions of this Ordinance for yards, lot area, or any other requirement herein, shall be used a second time to satisfy said requirements for any other structure or building.

### **SECTION 4.4 SUBSTANDARD LOTS**

Any residential lot or parcel created and recorded prior to the effective date of this Ordinance may be used for residential purposes even though the lot does not comply with the dimensional requirements of this Ordinance, provided the following conditions are met:

- A. That the lot or parcel complies with Section 4.8 of this Chapter; and
- B. That a proposed building, structure, or use for the lot satisfies the yard requirements as closely as possible as set forth in and Chapter 5 of this Ordinance; and
- C. That the other requirements set forth in this Chapter are fulfilled.

A lot or parcel owner may apply for a variance if the above conditions cannot be met.

#### SECTION 4.5 CORNER CLEARANCE

No fence, wall, shrubbery, crops, signs, or other visual obstruction shall be permitted above a height of thirty-six (36) inches within a triangular area formed by the intersection of any street or road right-of-way lines at a distance along each such line of twenty (20) feet from their point of intersection.

#### SECTION 4.6 NUMBER OF DWELLING UNITS PER LOT

Unless otherwise permitted by this Ordinance, only one (1) dwelling unit shall be constructed or placed on one lot meeting the minimum lot area requirements set forth in Chapter 5. In the case of condominium developments, unit area and limited common areas may be used to satisfy lot area requirements. General common areas shall not be applied toward satisfying minimum lot area requirements.

#### SECTION 4.7 PERMITS

- A. No construction activity requiring a building or grading permit shall commence until a zoning permit and building or grading permit has been issued.
- B. Any building permit issued prior to the effective date of this Ordinance shall be valid, even though not conforming to the provisions of this Ordinance, provided that construction is commenced within one (1) year after the date the permit was issued.

#### SECTION 4.8 REQUIRED WATER SUPPLY AND SANITARY SEWERAGE FACILITIES

No structure shall be erected, altered, or moved upon any parcel for use as a dwelling, office, business, industry or public facility unless it is provided with a safe, sanitary, and potable water supply and with a safe and effective means of collection, treatment, and disposal of human, domestic, commercial, or industrial waste. All such installations and facilities shall conform with the requirements of the District Health Department and applicable state agencies and all applicable permits authorizing said facilities shall be obtained. The owner or applicant for any zoning permit shall demonstrate the availability of potable water and public sewer connections or adequate space for septic fields with appropriate reserve areas and setbacks specific to site conditions, but in no case should a septic field be closer than ten (10) feet to a lot line.

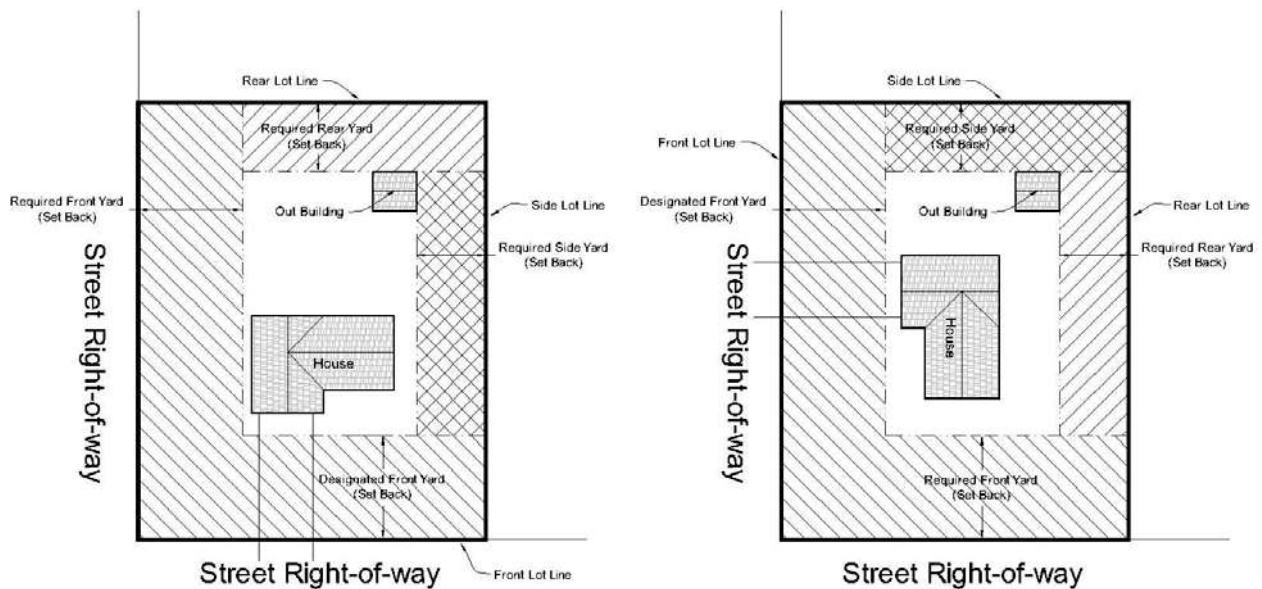
#### SECTION 4.9 CORNER LOTS

Lots or parcels which have frontage on two (2) or more streets shall be subject to the following (refer to Figure 2):

The lot or parcel owner shall designate which yard shall be considered the front yard for the

purposes of establishing the rear and side yards.

Figure 3



#### SECTION 4.10 ESSENTIAL SERVICES

Essential service transmission lines such as electric, telephone, gas or other similar utilities, are permitted in all districts, provided, that the services are authorized, regulated, and in compliance with all other applicable laws, ordinances and regulations. Buildings accessory to such services however, are subject to the requirements set forth in this Ordinance. Telecommunication towers and antennas are not essential services (see Section 4.13).

#### SECTION 4.11 RESIDENTIAL FENCE REGULATIONS

Fences are permitted, subject to the following:

1. Fences on lots of record which enclose property and/or are within a required side or rear yard shall not exceed six (6) feet in height, measured from the existing natural ground level and shall not extend toward the front of the lot nearer than the front of the house or the required minimum front yard, whichever is greater. In addition, no fence located within the front yard shall exceed four (4) feet in height, shall be set back at least ten (10) feet from the road right-of-way, and shall not obstruct the vision of motorists.
2. Fences shall not contain barbed wire, electric current or a charge of electricity except when used as part of a garden.
3. The use of tires for fencing is prohibited in all districts.
4. All fences must be maintained in a sturdy and upright condition.
5. All newly constructed fences must have a finished side facing the neighboring property

Recorded lots having a lot area in excess of two (2) acres and a frontage of two hundred (200)

feet or more and acreage and parcels not included within the boundaries of a recorded plat in Forested or Agricultural Districts are excluded from these regulations.

#### SECTION 4.12 PORCHES AND DECKS

Open, unenclosed porches, decks, or paved terraces may project into a required rear, side or front yard provided that the porch, deck or terrace is located no closer than ten (10) feet from any lot line. Zoning permit is required to construct a porch or deck.

#### SECTION 4.13 SATELLITE DISH ANTENNAS, TELECOMMUNICATION TOWERS AND ANTENNAS, AND SIMILAR STRUCTURES

- A. Satellite dish antennas, television antennas, amateur radio antennas, and other structures similar in size, shape and function are permitted in all zoning districts subject to the following:
  - 1. All satellite dish antenna, television antenna, amateur radio antennas and other similar structures shall be subject to the following setback requirements:
    - a. All satellite dishes shall be located no closer than ten (10) feet from any side or rear lot lines.
    - b. All antennas and antenna towers shall be located no closer than the height of the tower from any lot line. Antennas and antenna towers greater than ninety (90) feet in height shall require a Special Use Permit.
    - c. Satellite dishes, antennas, and similar structures shall not be placed or constructed in any required front yard unless there is no other placement for acceptable reception.
    - d. Satellite dishes may be placed or mounted on poles, however, they shall be subject to set back and accessory building height limitations.
- B. Telecommunication towers and antennas shall be subject to the regulations of the districts in which they are allowed in addition to the following:
  - 1. All towers, tower structures, poles for holding telecommunication antennas, and other like structures require special land use and building permits.
  - 2. All towers and antennas must meet applicable state and federal regulations.
  - 3. All towers shall be designed to accommodate collocation of antennas by additional users.
  - 4. Tower height shall be limited to one hundred ninety-nine (199) feet unless a higher height as justified to the Township's sole satisfaction.
  - 5. No tower shall be closer to any boundary of the lot on which it is sited than its height unless justified to the Township Board's satisfaction.

6. Towers shall be separated from one another in accordance with the following table:

**Table 1: Separation distances between towers (feet)**

|                                       | <b>Lattice</b> | <b>Guyed</b> |
|---------------------------------------|----------------|--------------|
| Lattice                               | 5000           | 5000         |
| Guyed                                 | 5000           | 5000         |
| Monopole Greater Than 75 Ft in Height | 1500           | 1500         |
| Monopole Less Than 75 Ft in Height    | 750            | 750          |

7. Towers shall be of galvanized steel or be painted to blend with the surrounding environment.
8. No advertising or signage of any kind shall be attached to a tower or its appurtenant structures.
9. No lighting of any kind shall be allowed on or to illuminate a tower or its appurtenant structures except that required by FAA requirements if the structure is allowed to exceed one hundred ninety-nine (199) feet.
10. Plantings and fencing are required to screen a tower and its appurtenant structures from public view as much as possible. Native trees and other vegetation shall be retained on site and landscaping installed to achieve this objective.
11. An applicant for the installation of a telecommunication tower shall provide the Township a statement explaining the necessity for such a proposed tower.
12. The owner of any tower installed in the Township shall provide a Certificate of Insurance listing Clayton Township as an additional insured party.
13. The Township may require the owner of any tower installed in the Township to provide a bond or performance guarantee that will ensure the removal of its tower and all appurtenance structures and equipment if its use shall be discontinued for more than 365 consecutive days.
14. The Township may retain a qualified expert to aid in its review of an applicant's request; the expense of this review shall be borne by the applicant.

#### SECTION 4.14 ROAD ACCESS REQUIREMENTS

- A. Each lot shall have access to a public road or dedicated easement.
- B. Driveway areas or easements shall be a minimum of thirty-three (33) feet wide.
- C. All parcels shall be required to maintain adequate access of ten (10) feet minimum for emergency vehicles to all dwellings and structures.

#### SECTION 4.15 LANDSCAPING, SCREENING, BUFFERS AND FENCING

A. The intent of this Section is to promote the public health, safety, and general welfare in commercial districts and for commercial activities in other districts by:

1. Minimizing the nuisances that new development may cause, including additional noise, air and water pollution, and the destruction of scenic views.
2. Improving the appearance of off-street parking and other vehicular use areas.
3. Requiring buffering between incompatible land uses.
4. Regulating the appearance of property abutting the public rights-of-way.
5. Protecting and preserving the appearance, character and value of the community and its neighborhoods.
6. Preventing soil erosion and soil depletion.
7. Promoting soil water absorption.

Sizes and amounts of landscaping and plant types shall be dependent upon what is already present in the area and landscaping needs of the specific site. Generally, landscaping shall at least equal surrounding landscaping in newer areas and tend toward upgrading older areas. Landscaping needs will be determined by using the standards set forth in this Section, and other applicable sections of this Ordinance, but plantings covering a minimum of twenty (20%) percent of any site shall be used as a guideline.

B. The following standards shall be followed:

1. Additional landscaping shall be added to the retained natural landscape features to reduce the apparent mass and height of buildings, to visually break expanses of paving, to reduce the visibility of paved areas from adjacent roadways and properties, and to provide an attractive appearance from both within and without the site.
2. Except in urban areas where more exacting conditions may require selection of more specific and hardy species, plant materials shall be used that complement the natural landscape. Minimum required plant material sizes shall be as follows:  
evergreen trees, six (6) feet in height; deciduous trees, two (2) inch caliper; shrubs, two (2) gallon pot or 18-24" in height and width.
3. Ground cover shall be primarily of living materials.
4. Areas that are intended to be planted shall be provided with a minimum depth of topsoil of four (4) inches and mulched appropriately.
5. All plantings shall be maintained in a vigorous, healthy, and weed-free state. Any dead or diseased plants shall be removed and replaced.

C. The Township may retain a qualified expert to aid in reviewing landscaping requirements. The expense of a review shall be borne by the applicant.



## SECTION 4.16 PRIVATE ROAD STANDARDS

Landowners installing a private roadway or driveway for three (3) or more dwellings shall meet the following standards:

- A. Road construction details shall be provided as part of a site plan review in accordance with the requirements of Chapter 9 Development Site Plan Review. Review and approval of a private road will be based upon at minimum:

1. The number of parcels to be served;
2. How the proposed road will fit into the thoroughfare system of the township and county;
3. The topography and design of the development.

The Township may hire or require an analysis by a qualified engineer or other traffic expert at the applicant's expense to aid in its review. If reasonable standards for road design and construction cannot be agreed upon, Arenac County Road Commission standards for subdivision plat development shall be required.

- B. The edge of the travelway or paved portion of the road shall be a minimum of six (6) feet from the property boundary unless it is a shared driveway. The Planning Commission may require a greater distance if surrounding uses indicate a greater distance necessary to separate existing or future uses.
- C. All dead end roads shall terminate in a cul-de-sac with at least a forty-eight (48) foot radius or a T-shaped or hammer-head turn-around sufficient for emergency vehicle turn-around.
- D. Roads shall be named and names shall be approved by the County Road Commission and County Emergency Management Authority. Road signs shall be installed and maintained. Where stop signs or other traffic regulations signs are indicated, they shall conform to uniform traffic sign size, shape, color and installation.
- E. The Township may require installation of a private road, and the posting of a sufficient bond for construction thereof, before land use or building permits are issued.
- F. As-built drawings of installed roads certified by a registered engineer shall be supplied to the Township upon completion of road construction.
- G. A copy of the maintenance agreement providing for safe travel on the road at all times, which shall be a deed-recorded covenant for all parcels to be served by a private road, shall be provided to the Township.
- H. Landowners creating private roads shall provide the Township with a recorded easement, master deed or plat containing the said private road(s) with recorded deed restrictions including that:
1. the road(s) to be constructed shall never become public roads, unless brought to the Arenac County Road Commission standards in effect at the time of application and are accepted by the Road Commission, and
  2. that these landowners shall indemnify and hold harmless the Township and its representatives from any and all claims for personal injury or property damage arising from the use of the private road(s).

#### SECTION 4.17 RIFLE RIVER NATURAL RIVER PLAN

Portions of the Rifle River in Clayton Township have been designated as a wild scenic river by the Department of Natural Resources (DNR) under Michigan Natural River Act (Public Act 231 of 1970). Regulations promulgated by the DNR or the Natural Resources Commission governing these designated lands shall be followed.

#### SECTION 4.18 SHORT TERM AND SEASONAL USE OF TRAILERS, CAMPERS, AND RECREATIONAL VEHICLES AS TEMPORARY RECREATIONAL LIVING QUARTERS

This Section establishes regulations that permit the temporary placement and occupancy of campers, small trailers, or other recreational vehicles on lots outside of licensed campgrounds for the purpose of providing temporary living quarters. It shall be unlawful for any individual to place or occupy a recreational vehicle on a lot or parcel outside of a licensed campground except as provided in this section.

In addition, this Section shall not be construed to permit the temporary placement and occupancy of mobile homes, campers, trailers or other recreational vehicles on vacant lots outside of mobile home parks unless all other provisions of this Ordinance that apply to the use and occupancy of single-family dwellings have been met.

Trailers, campers, and other recreational vehicles may be placed and occupied as temporary living quarters on a vacant lot, or on a lot occupied by a single-family dwelling, subject to the following conditions:

- A. Temporary farm labor exception. A Land Use Permit shall be required for the parking of a recreational vehicle maintained by any person on his/her own farm and used even for her/her own farm labor. The permit will be valid only for temporary use.
- B. Homebuilder's Exception. A six (6) months' temporary permit on an owner's premises may be obtained for parking a recreational vehicle thereon while erecting a home on the premises, following issuance of a Land Use Permit for such construction. No building or structure is to be erected or placed in any right-of-way.
- C. Hunting and camping. Trailers, campers, and other recreational vehicles placed on vacant lots shall comply with all applicable setbacks and other regulations. All recreational vehicles placed and occupied under the provisions of this section shall comply with all Health Department regulations that apply to the use and occupancy of trailers, campers, and other recreational vehicles outside of licensed campgrounds. All recreational vehicles placed under the provisions of this section shall be legally operable on the highways of the State of Michigan and shall have a current and valid registration and license plate as required by the Michigan Vehicle Code.
- D. A permit for placement of a recreational vehicle on a vacant lot must be obtained from

the Zoning Administrator by the property owner within thirty (30) days of placing the unit on the lot.

- E. No more than one (1) trailer, camper, or other recreational vehicle may be placed on a vacant lot for temporary dwelling purposes by the property owner. However, guests of the owner may place additional units on the same lot for periods not to exceed two (2) weeks.
- F. A trailer, camper, and other recreational vehicle shall be vacated and removed from the property on which it was placed for at least ninety (90) consecutive days during each calendar year.
- G. Trailers, campers, and other recreational vehicles placed on vacant lots shall comply with all applicable setbacks and other regulations.
- H. All recreational vehicles placed and occupied under the provisions of this Section shall comply with all Health Department regulations that apply to the use and occupancy of trailers, campers, and other recreational vehicles outside of licensed campgrounds.
- I. Recreational vehicles placed under the provisions of this Section shall be legally operable on the highways of the State of Michigan and shall have a current valid registration and license plate as required by the Michigan Vehicle Code.

#### SECTION 4.19 DISMANTLED VEHICLES AND DISCARDED MATERIALS

- A. No person, firm or corporation shall park, store or place upon any public or private property, public right-of-way or any premises zoned for any type of residential purpose any discarded materials, dismantled or partially dismantled motor vehicles, house trailer or any new or used parts unless the same is completely contained within a fully enclosed building and does not violate any township, county, state or federal laws, except for the following:
  - 1. Licensed and legally operable motor vehicles or trailers.
  - 2. Licensed and legally operable motor vehicles or trailers that are temporarily inoperable because of minor mechanical failure but which are not in any manner dismantled and have substantially all main components attached may remain on such private property for up to thirty (30) days.
  - 3. Not more than one vehicle in operable condition that has been redesigned or reconstructed for a purpose other than originally manufactured (such as a stock car or unlicensed vehicle) may be parked, stored or placed in the open, providing there is no building or garage where such may be stored. No such modified vehicle may be parked in the front yard areas.
- 4. No repairing, modifying or dismantling operations shall be allowed upon any vehicle, trailer or parts upon any public property, public right-of-way or property zoned for residential purposes for a period in excess of seventy-two (72) hours except that which can be accomplished within a fully enclosed building or back yard and will not constitute a nuisance or annoyance to neighboring property owners or occupants and does not violate the provisions of this Ordinance. All work done within the seventy-two (72) hour period shall not consist of any major repair, modifying or dismantling but only such occasional minor repair as may be required to maintain a vehicle, trailer or parts in normal operating condition.

In the event of foregoing regulations create any special hardship beyond the control of a person, the Zoning Administrator may grant an additional period up to fourteen (14) days to accomplish the repairs provided that no neighboring property owners or occupants are adversely affected and the purpose of the regulations are maintained.

- B. Any parking, storing, placement or operation in violation of these regulations shall be declared a public nuisance by the Zoning Administrator (or other person designated by the Township Board to administer this Ordinance) and those responsible shall be subject to fines and/or other penalties specified herein.
- C. These regulations shall not prevent the operation of any licensed junkyard, salvage yard, body or paint shop legally operating within a proper zone as defined by this Ordinance and shall be in addition to any other laws or ordinances regarding refuse, litter, trash or junk control.
- D. In addition to any fine and/or penalty imposed by the Zoning Administrator or other person designated by the Township Board, the Board may cause the removal of any items which violate the terms of these regulations to be properly disposed of or sold. Any costs incurred in this action shall be the responsibility of the person (s) in violation and may be subtracted from any proceeds if such items were sold, the balance being returned to the person(s) in violation.

#### SECTION 4.20 TRASH / GARBAGE DISPOSAL

No trash or refuse shall be stored on any premises unless contained and not a health hazard. Burying of non-biodegradables of toxic waste, trash or refuse is prohibited. If Clayton Township Board does not provide a trash collection system, then each resident is responsible for obtaining legal and timely trash / garbage collections services.

#### SECTION 4.21 NATURAL RESOURCE EXTRACTIONS

The removal of any substance from the earth (over four (4) feet deep) except for permitted structure or dwelling uses is prohibited without a Special Use Permit and only in designated districts. The following regulations apply to any allowed extractions within the Township.

- A. The operation must provide a natural scenic barrier on all sides of any extraction operation over two and one-half (2 ½) acres in size.
- B. All extractions (except pools) must be one hundred (100) feet from any road right-of-way or adjoining property unless a waiver is provided and recorded.
- C. The operation must restore roads and landscape to original or better condition when work is completed, as determined by the Planning Commission.
- D. Any extraction over four (4) feet deep that creates hazardous conditions, such as standing water, must be posted and fenced.
- E. Any extractions or pond bank slopes must be maintained at a thirty (30) degree slope or less.
- F. A restoration plan shall be submitted for Special Use Permit and Development Site Plan Review.

All elements of the operation shall be shown on the required site plan and shall be reviewed in accordance with Chapters 8 and 9 of this Ordinance.

#### SECTION 4.22 DANGEROUS/ UNSAFE BUILDINGS

- A. All buildings and structures that are or hereafter become unsafe or deficient in adequate exits or which constitute a fire hazard or are otherwise dangerous to human life or the public welfare or by any reason of illegal or improper use, occupancy or maintenance or which have sustained structural damage by reason of fire, explosion, or natural disaster shall be deemed unsafe and dangerous buildings or structures. A vacant building or portion of a building unguarded or open at door or window shall be deemed a fire hazard and unsafe within the meaning of this ordinance. Unsafe buildings shall be reported to the Township Zoning Administrator who shall take appropriate action to secure abatement by repair and rehabilitation or by demolition.
- B. Disposal of Dangerous Buildings: A burned-out building is to be razed and repaired and the resulting material to be completely disposed of in a manner acceptable to the Township Zoning Administrator or other township official designated by the Township Board. A dangerous building is to be repaired and returned to a condition of usability for which it was originally intended or it is to be razed and the resulting material to be completely disposed of. Determination of any or all the above is to be made by the Township Zoning Administrator or other township official designated by the Township Board. Disposal shall be in accordance with all State of Michigan EGLE regulations.
- C. Notification of Non-Compliance: If, upon inspection, the Township Zoning Administrator or other township official shall find that any property within the township is being used in violation of the above sections of this ordinance, the owner and occupant shall be notified of such violation in writing by the Township Zoning Administrator.
- D. Compliance: Upon notification of the existence of a violation the owner shall make the building secure within thirty (30) days. All buildings found to be in violation shall be razed or repaired within one hundred eighty (180) days of notification. If these requirements have not been met, the Township Zoning Administrator shall notify the County Building Inspector and the State of Michigan of the violation.
- E. Non-Compliance: If the owner of such premises shall not cause such building or structure in violation of the ordinance, as described above, to be eliminated or removed, or shall fail to cause buildings which are burned out or in a dangerous condition to be razed or repaired, the Township Board shall direct some person(s) to remove and/ or eliminate the same.
- F. Penalty/Payment: After causing such materials to be eliminated or removed, the total expense incurred by the Township shall be a lien upon the property and the same may be collected in any manner authorized by statute and, if not paid, may be placed on the Tax Roll and collected in the same manner as taxes.

#### SECTION 4.23 EXOTIC, DANGEROUS AND WILD ANIMALS

Exotic dangerous or wild animals may not be kept by Clayton Township property owners or occupants except as permitted by the State of Michigan and the Department of Natural Resources but shall be prohibited in Residential Districts.

#### SECTION 4.24 PETS AND LIVESTOCK

- A. The keeping of more than three (3) dogs and/or cats or the keeping of poultry, hogs or other livestock is prohibited within any Residential District, provided, however, that any litter of dogs or cats which causes the limit of three (3) to be exceeded shall not constitute a violation for a period of six (6) months after birth. However, no more than two (2) such litters shall be allowed to remain on said premises within any consecutive twelve (12) month period.
- B. The keeping of livestock for any purposes shall be permitted in any district provided that the minimum land area shall be one (1) acres (for the first animal) and that such use shall be for the private personal use of the owner or occupant of such land, his family and friends, and shall not constitute a commercial operation or public stable in accordance with the following conditions:
  - 1. No barns, pens or corrals shall be located closer than two hundred (200) feet from any property line nor less than one hundred fifty (150) feet from all road right-of-way lines; provided that the minimum side yard setback shall be reduce one (1) foot for each additional foot that the barn, pen or corral is set back from the existing right-of-way over one hundred fifty (150) feet; and provided further that the side yard setback shall not be reduced below a minimum of fifty (50) feet.
  - 2. Minimum land area shall be two (2) acres for the first animal and at least one (1) acre shall be provided for each additional animal kept, except that the number of livestock now existing on each parcel where livestock are presently kept for recreational purposes may be continued under the nonconforming use provisions of this Ordinance.
  - 3. Livestock born on parcels where livestock are presently kept may be kept on said parcel for two (2) years even though such additional livestock may increase the number of livestock on such parcel beyond the one (1) animal per acre limitation, but in no case shall there be more than one (1) animal and one (1) immature animal per acre.
  - 4. Parcels that meet the acre requirement as set forth in Section 5.5.3 to be called a farm are exempt from this Section, with the exception of 4.24.C below.
- C. The keeping of poultry, hogs, horses, livestock shall comply with the State of Michigan GAMPS for agriculture. The keeping of any animals shall not become a nuisance due to odor, noise or other causes.

#### SECTION 4.25 EXTERIOR LIGHTING

- A. All outdoor lighting in all Districts shall be shielded to reduce glare and shall be so arranged as to reflect light away from all adjacent residences.
- B. All outdoor lighting in all Districts shall be directed toward and confined to the ground areas of lawns or parking lots.
- C. All lighting in non-Residential Districts used for the external illumination of buildings, so as to feature said buildings, shall be placed and shielded so as not to interfere with the vision of persons on adjacent highways or adjacent properties.
- D. Illumination of signs shall be directed or shaded downward so as not to interfere with the vision of persons on adjacent highways or adjacent properties.
- E. All illumination of signs and any other outdoor features shall not be of flashing, moving or intermittent type.

#### SECTION 4.26 ACCESSORY STRUCTURES/USES

- A. The use of mobile homes and busses for storage is prohibited in all Districts for storage structures.
- B. The use of semi-trailers, U-Haul-type trailers or other mobile units for storage is prohibited in the Residential District. The use of semi-trailers, U-Haul-type trailers or other mobile units not originally intended for storage in all other Districts must be located in the rear yard of the parcel.
- C. See Section 4.29 for Commercial Shipping Containers as accessory structures.

#### SECTION 4.27 NOISE

Engine Braking is prohibited in accordance with the Township Zoning Ordinance Noise Regulations from Sunset to Sunrise.

#### SECTION 4.28 COMMERCIAL MARIJUANA OPERATIONS

No commercial Marijuana Operations of any kind are allowed in Clayton Township

#### SECTION 4.29 COMMERCIAL SHIPPING CONTAINERS

- A. A Commercial Shipping Container may be used for storage as an accessory structure in all districts, where not otherwise prohibited, subject to development site plan approval and a zoning permit.
- B. Generally, one (1) container is allowed for storage on a parcel of one to three acres; two (2) containers on a parcel of 3 to 5 acres; on a parcel of six (6) or more acres a maximum of four (4) containers or as set forth in an approved site plan.

- C. A shipping container may be used for another purpose other than individual storage and will follow the regulations for that use, e.g., a workshop, living quarters, a multi-unit storage facility.
- D. General Standards
  - 1. All containers shall be free of damage or rust and shall not have exposed bare metal. Containers shall be maintained to remain in said condition.
  - 2. Containers shall not display advertising, company names, logos, or other markings unless approved as part of a site plan approval.
  - 3. Containers must be placed in accordance with any specific district requirements.



## **CHAPTER 5 DISTRICT REGULATIONS**

### **SECTION 5.1 INTENT AND PURPOSE**

For the purposes of this Ordinance, all land within Clayton Township, excepting the roadways and alleys, is divided into the following Zoning Districts:

|     |                                |
|-----|--------------------------------|
| A   | Agricultural District          |
| F-R | Forest and Recreation District |
| R   | Residential District           |

For the specific regulations and requirements of each of the districts listed above, refer to Sections 5.5 - 5.8. Section 5.9 allows for and regulates Planned Developments (PD) within the above districts.

### **SECTION 5.2 OFFICIAL ZONING MAP**

The boundaries of zoning districts are defined and established as shown on a map entitled the Clayton Township Zoning Map. This map, with all explanatory matter thereon, is hereby made a part of this Ordinance. The official Zoning Map shall be kept by the Township Clerk and shall be maintained by the Zoning Administrator.

### **SECTION 5.3 INTERPRETATION OF BOUNDARIES**

Where uncertainty exists with respect to the boundaries of any of the districts indicated on the official Zoning Map, the following rules shall apply:

- A. Boundaries shown following streets or highways shall be presumed to follow the centerline of these roadways.
- B. Boundaries shown approximately following Township boundary lines or property lines shall be presumed to follow these lines.
- C. Boundaries shown approximately parallel to the centerline of streets or alleys shall be interpreted as being parallel thereto and at such a distance therefrom as indicated by given distance or scaled dimension.

### **SECTION 5.4 CLASSIFICATION OF USES NOT LISTED**

The Zoning Board of Appeals shall have the power to classify a use which is not specifically mentioned by this Ordinance, as described in Chapter 11. Said use shall be treated in a like manner with comparable uses, as determined by the Zoning Board of Appeals, and permitted or prohibited in accordance with the District Regulations found in any Zoning District.

## SECTION 5.5 AGRICULTURAL DISTRICT (AG)

The purpose and intent of the Agricultural / Rural Residential District is to provide areas for commercial agricultural and farming operations as well as limited residential areas. This district is established to conserve and protect agricultural lands as an ecologically and economically valued resource by preventing the encroachment of urban land uses in predominantly agricultural areas where geographic, social, and economic conditions favor continued agricultural production. A range of farming activities shall be permitted in this zone in order to foster the continuation of agriculture.

### SECTION 5.5.1 PERMITTED PRINCIPAL USES

In the Agricultural District, no building, structure, land or water use shall be permitted except for one or more of the following:

- A. All historically practiced general agricultural uses. (Large scale livestock enterprises see “Conditional Uses.”)
- B. Farm dwellings, accessory farm buildings, farm labor housing:
  - 1. More than one farm dwelling shall not be permitted unless substantial evidence is provided that shows that the additional farm dwelling is necessary for the operation of the commercial farm. In making the determination whether the additional farm dwelling is necessary for the farm operation, the Zoning Administrator shall take into consideration whether any non-farm dwellings already exist on the farm that may be used for that purpose. Migrant housing shall be allowed in accordance with state regulations.
  - 2. A dwelling may be considered to be in conjunction with farm use or the propagation or harvesting of a forest product when located on a lot or parcel that is managed as part of a farm operation or woodlot. A separate parcel one acre or larger must be delimited for a new dwelling unit so that all setbacks may be established.
  - 3. Farm dwellings in addition to the principal dwelling shall be located to minimize adverse effects upon productive areas for farm crops and livestock.
- C. Residential single-family and two-family duplex dwelling units in non-productive agricultural areas.
- D. Portable sawmills.
- E. Public buildings
- F. Home Occupations in accordance with the use as defined in Section 2.2.
- G. Planned Developments (see Section 5.9).
- H. State licensed residential facilities and family day care
- I. Biofuel production facility producing not more than one hundred thousand (100,000) gallons of biofuel or as allowed by P.A. 2011 97.
- J. Accessory structures as identified in Section 5.5.5

## SECTION 5.5.2 CONDITIONAL USES

- A. The following uses are permitted in this district upon securing a Special Use Permit and upon Development Site Plan Review approval in accordance with Chapters 8 and 9 and are subject to lot, building and other requirements of Section 5.6. The necessary conditions for approval of any of these uses shall be a demonstrated need for the use and the placement of the facility in a manner which least affects the productive agricultural land of the site or surrounding properties:

Large scale livestock enterprises.

Agricultural research and development facilities, public or private.

Agricultural businesses including veterinary establishments.

Food production facilities including breweries and distilleries.

Churches and other religious buildings.

Schools and Group childcare operations.

Bed and breakfast establishments.

Horse stables.

Kennels.

Cemeteries.

Natural resource extraction operations (see Section 4.21).

Public or private outdoor recreation establishments or park facilities.

Telecommunication towers and antennas (see Section 4.13).

Short term rentals.

Small-scale industrial operations.

Commercial Solar Energy Systems (see Chapter 8 Special Use Permit: Section 8.17)

Wind Energy Conversion Systems (see Chapter 8 Special Use Permit: Section 8.18)

- B. A roadside stand for the sale of agricultural products, provided that:
1. No more than one stand be allowed for each six hundred (600) lineal feet of road frontage.
  2. Adequate parking and maneuvering areas are provided to ensure safe vehicle ingress and egress and pedestrian movement within the site.
  3. The products sold at any stand are mainly grown or produced on the premises.
- C. A temporary house trailer or an approved detached accessory structure for the living purposes during the construction of a permanent dwelling on the same lot or for an elderly or infirm family member, provided that:
1. The trailer or structure will be connected to an approved well and septic system—a separate septic system is required for each dwelling unit and no more than two dwelling units per well; and,
  2. Will be built or anchored securely and properly and will follow all other applicable township, county, state, and federal regulations.

### SECTION 5.5.3 DEVELOPMENT STANDARDS

- A. Minimum farm parcel size: Three (3) acres, or as specified in a project for which a Special Use Permit has been secured.

Farms,  
Commercial or  
Other Non-  
farm Uses

|                       |                             |
|-----------------------|-----------------------------|
| Minimum frontage      | 150 feet                    |
| Minimum front setback | 40 feet                     |
| Minimum side setback  | 25 feet                     |
| Minimum rear setback  | 25 feet                     |
| Maximum height        | 40 feet (95 feet for silos) |

- B. Residential development shall be permitted within agricultural areas on non-productive farmland by designing a Planned Development in accordance with Section 5.9 of this Ordinance, with an underlying allowable dwelling unit density of one (1) dwelling unit per acre and a minimum of sixty (60%) percent permanently preserved unbuilt open space. Minimum project area twenty (20) acres.
- C. Condominium units, metes-and-bounds or platted lots for residential uses on non-productive farmland shall meet the following standards:

|                       |                        |
|-----------------------|------------------------|
| Minimum parcel size   | 1 acre                 |
| Minimum frontage      | 150 feet               |
| Minimum front setback | 40 feet                |
| Minimum side setback  | 25 feet                |
| Minimum rear setback  | 25 feet                |
| Maximum height        | 2 ½ stories or 35 feet |

#### SECTION 5.5.4 PERFORMANCE STANDARDS

- A. Farming and approved ancillary activities shall be carried out conscious of neighboring uses. Wherever feasible and justifiable, buffers of hedgerows, tree lots or other barriers should be maintained between different districts and uses to minimize conflicts. Michigan Department of Agriculture “Generally Accepted Management Practices” (GAMPS) shall be used to determine whether a new use may be sited as proposed. Setbacks prescribed in the GAMPS shall be used to assess the distances needed by a new use from existing residences and other uses.
- B. To the greatest degree practicable, land divisions, including single lot splits, must be designed to protect and preserve natural resources, productive farmland, and the culture and character of the area.
- C. All residential developments, or residential plots, units or parcels, and any other non- farm use within this district shall be devised with the understanding that agricultural operations are the primary use of this district and therefore layouts for residences and other non-farm uses shall be designed in such a manner as to protect farming and other agricultural operations from interference and nuisances.

#### SECTION 5.5.5 ACCESSORY STRUCTURES AND USES

Any use or structure customarily incidental to a permitted principal use not otherwise regulated by this Ordinance is allowed by right. Accessory structures may be used for home occupations.

Accessory Farm Buildings are allowed by right. A pole building or other storage building may be constructed without a principal structure provided setbacks are followed as set forth in Section 5.5.3. A building on a parcel less than 5 acres shall set back 5’ in the rear and 10’ on the sides.

For Commercial Shipping Container uses see Section 4.29.

#### SECTION 5.5.6 MISCELLANEOUS REGULATIONS

The keeping of horses, ponies and other livestock is allowed on residential parcels of two (2) acres or more. No manure piles or other similar debris shall be kept within fifty (50) feet of the lot line.

General Provisions as permitted in Chapter 4.

Parking as permitted in Chapter 6.

Signs as permitted in Chapter 7.

## SECTION 5.6 FOREST AND RECREATION DISTRICT (F-R)

The purpose and intent of this District is to preserve the forests and woodlots of the township while allowing residential and recreational development and a wide range of other uses in such ways that will not detract from this end. To the greatest degree practicable, the integrity and contiguity of forest lands shall be maintained.

### SECTION 5.6.1 PERMITTED USES

- Agricultural uses, including nurseries.
- Public buildings.
- Single-family dwellings and cabins.
- State licensed residential facilities.
- Parks, picnic areas, and other small outdoor recreation areas.
- Planned developments (see Section 5.9).
- Home occupations.
- Accessory structures as identified in Section 5.6.5.

### SECTION 5.6.2 CONDITIONAL USES

- A. The following uses are permitted upon securing a Special Use Permit and upon Development Site Plan Review approval in accordance with Chapters 8 and 9. Also see Section 4.15 for Landscaping Standards.

- Agricultural businesses including veterinary establishments.
- Lodges and clubs.
- Bed and breakfast establishments.
- Cemeteries
- Churches and other religious institutions.
- Horse and riding stables.
- Kennels.
- Motels and rental cabins.
- Natural resource extraction operations (see Section 4.21).
- Outdoor recreation establishments, including RV parks.
- Retail Establishments
- Sawmills and other building related forestry operations.
- Short term rentals.
- Schools and Group childcare operations.

- B. A stand for the sale of agricultural products, provided that:
1. No more than one stand be allowed for each six hundred (600) lineal feet of road frontage.
  2. Adequate parking and maneuvering areas are provided to ensure safe vehicle ingress and egress and pedestrian movement within the site.
  3. The products sold at any stand are mainly grown or produced on the premises.

- C. A temporary house trailer or an approved detached accessory structure for the living purposes during the construction of a permanent dwelling on the same lot or for an elderly or infirm family member, provided that:
  - 1. The trailer or structure will be connected to an approved well and septic system—a separate septic system is required for each dwelling unit and no more than two dwelling units per well; and,
  - 2. Will be built or anchored securely and properly and will follow all other applicable township, county, state, and federal regulations.

#### SECTION 5.6.3 DEVELOPMENT STANDARDS

- A. Minimum parcel size: two (2) acres; or one dwelling unit per acre density with sixty (60) percent permanently preserved unbuilt reserved land in accordance with Section 5.9 Planned Developments.
- B. Minimum parcel size for a Planned Development: twenty (20) acres.
- C. Minimum lot frontage: 150 feet.

|                        | <u>Rural Businesses and<br/>Other Commercial and Industrial Uses</u> | <u>All Other Uses</u> |
|------------------------|----------------------------------------------------------------------|-----------------------|
| D. Minimal Parcel Size | 3 acres                                                              | 2 acres               |
| Minimum front setback  | 150 ft.                                                              | 40 ft.                |
| Minimum side setback   | 50 ft.                                                               | 20 ft.                |
| Minimum rear setback   | 100 ft.                                                              | 20 ft.                |
| Maximum height         | 2 ½ stories or 35 feet<br>or as approved in a Planned development    |                       |

#### SECTION 5.6.4 PERFORMANCE STANDARDS

- A. All structures, roads and other infrastructure shall be placed in such a manner that will avoid the destruction of as few trees and natural terrain on a site or parcel as possible.
- B. Wooded unbuilt areas of a site or parcel shall be contiguous with forested areas of adjoining sites to promote the maintenance of large, forested expanses without buildings, other structures or infrastructure.
- C. Trees and other vegetation within buffer or setback areas shall be preserved to the greatest degree practicable.
- D. Unbuilt areas, suitable for such, may be reforested as part of a parcel's Development Site Plan.
- E. All non-residential uses shall be situated and designed such that any potential nuisances or disturbances of surrounding properties shall be eliminated or mitigated to the greatest degree possible.
- F. Residences or other structures shall not be placed within fifty (50) feet of a creek or stream.

#### SECTION 5.6.5 ACCESSORY STRUCTURES AND USES

Any use or structure incidental to a permitted principal use not otherwise regulated by this Ordinance is allowed by right. Accessory structures may be used for home occupations.

One accessory structure 48 ft. x 60 ft. or less is allowed by right; additional buildings or buildings of greater size shall require a Special Use Permit. A pole building or other storage building may be constructed without a principal structure provided setbacks are followed as set forth in Section 5.6.3.

A pole building or other storage building may be constructed without a principal structure provided setbacks are followed as set forth in Section 5.5.3. A building on a parcel less than 5 acres shall set back 5' in the rear and 10' on the sides.

For Commercial Shipping Container uses see Section 4.29.

#### SECTION 5.6.6 MISCELLANEOUS REGULATIONS

The keeping of horses, ponies and other livestock shall require a minimum of two (2) acres for the first animal and one (1) additional acre for each additional animal. No manure piles or other similar debris shall be kept within fifty (50) feet of the lot lines.

General Provisions as permitted in Chapter 4.

Parking as permitted in Chapter 6.

Signs as permitted in Chapter 7.



## SECTION 5.7 RESIDENTIAL DISTRICT ( R )

The purpose and intent of this district is to provide for development of family homes and cottages at relatively higher densities than generally occurring in rural areas. The district is meant to encourage the development of attractive residential areas with compatible services and amenities. Multiple-family housing developments may be appropriate within this district provided that adequate water and sewer services can be furnished.

### SECTION 5.7.1 PERMITTED PRINCIPAL USES

- Single-family dwellings.
- Two-family dwellings (duplexes).
- Home occupations.
- Small public parks.
- State licensed residential facilities.
- Planned developments including mobile home parks (see Section 5.9).

### SECTION 5.7.2 CONDITIONAL USES

The following uses are permitted upon securing a Special Use Permit and upon Development Site Plan Review approval in accordance with Chapters 8 and 9.

- Bed and breakfast establishments.
- Private parks and recreational facilities.
- Family day care homes, child day care centers, and related facilities providing care to seven (7) or more persons.
- Multi-family dwellings.
- Public buildings – industrial, activity, etc.
- Churches, or religious buildings

### SECTION 5.7.3 DEVELOPMENT STANDARDS

- A. Minimum parcel size: One (1) acre (43,560 square feet); or one dwelling unit per 22,500 square foot density with sixty (60%) percent permanently preserved unbuilt reserved land in accordance with Section 5.8, Planned Developments.
- B. Minimum parcel size for a Planned Development: Five (5) acres
- C. Minimum lot frontage: 100 feet
- D. Minimum lot size 1 acre
- Minimum frontage 100 feet
- Minimum front setback 40 feet
- Minimum side setback 20 feet
- Minimum rear setback 20 feet
- Maximum height 2½ stories or 35 feet

#### SECTION 5.7.4 PERFORMANCE STANDARDS

- A. Higher density housing will only be allowed where services and facilities warrant them.
- B. In designing homesites and developments, care shall be taken to preserve the quality of the Township's natural environment. Proper drainage, including retention and detention areas, shall be provided and buffer areas shall be provided along the creeks, streams and drainage swales within this district.
- C. Streets and roads shall integrate rationally into the county and township road networks. Connections to existing streets shall be required where appropriate.
- D. Residential developments in rural portions of the district shall retain trees and other vegetation between the developed portions of a project and the county road rights-of- way.

#### SECTION 5.7.5 ACCESSORY STRUCTURES AND USES

The following applies to one-acre parcels or less. Any use or structure incidental to a permitted principal use not otherwise regulated by this Ordinance is allowed by right. Accessory structures may be used for home occupations and are only permitted on lots containing a dwelling or on a lot contiguous to said dwelling. Two (2) accessory structures are permitted. A Special Use Permit is required for the following circumstances: If the largest structure exceeds 30' X 40', or if any addition to an existing accessory structure, causes it to exceed 1200 sq. ft., or for any additional structures beyond the prescribed two (2). Accessory structures must be setback 5' in the rear and 10' on any side.

For Commercial Shipping Container uses see Section 4.29.

#### SECTION 5.7.6 MISCELLANEOUS REGULATIONS

The keeping of horses, ponies and other farm animals is not allowed on residential lots within this district.

General Provisions as permitted in Chapter 4.

Parking as permitted in Chapter 6.

Signs as permitted in Chapter 7.

## SECTION 5.8 TABLE OF DIMENSIONAL REQUIREMENTS

| ZONING DISTRICT |                                                                         | MINIMUM LOT AREA    | MINIMUM FRONTAGE REQUIREMENT (FEET) | MINIMUM FRONT YARD SETBACK (FEET) | MINIMUM SIDE YARD SETBACK (FEET) | MINIMUM REAR YARD SETBACK (FEET) | MAXIMUM STRUCTURE HEIGHT <sup>2</sup> (FEET) |
|-----------------|-------------------------------------------------------------------------|---------------------|-------------------------------------|-----------------------------------|----------------------------------|----------------------------------|----------------------------------------------|
| <b>F-R</b>      | AGRICULTURAL BUSINESSES OR OTHER COMMERCIAL OR INTENSIVE USES           | 3 acres             | 150                                 | 150                               | 20                               | 20                               | 2½ stories or 35 feet                        |
|                 | RESIDENTIAL                                                             | 2 acres             | 150                                 | 50                                | 20                               | 20                               | 2½ stories or 35 feet                        |
| <b>AG</b>       | FARMS, RURAL COMMERCIAL OR OTHER NON-FARM USES                          | 3 acres             | 150                                 | 40                                | 25                               | 25                               | 40 feet (95 for silos)                       |
|                 | CONDOMINIUM UNITS, METES-AND-BOUNDS OR PLATTED LOTS FOR RESIDENTIAL USE | 1 acre <sup>3</sup> | 150                                 | 40                                | 25                               | 20                               | 2½ stories or 35 feet                        |
| <b>R</b>        | SINGLE FAMILY DWELLINGS                                                 | 1 acre              | 100                                 | 40                                | 20                               | 20                               | 2½ stories or 35 feet                        |

<sup>1</sup>Parcel size variations may be granted by Planning Commission as part of a Special Use Permit.

<sup>2</sup>Telecommunication tower and antenna heights are governed by *Section 4.13*.

<sup>3</sup>For specific dwelling unit parcels, see Section 5.5.3.

## SECTION 5.9 PLANNED DEVELOPMENTS ( PD )

### SECTION 5.9.1 PURPOSE

Planned Development regulations furnish a beneficial and productive means to design site plans within areas designated in the Master Plan for housing, commercial, or special purpose developments. These regulations, while adhering to the underlying densities specified in the various districts of the zoning ordinance, provide for better design and planning of land uses by making the geography, the history and culture, and the ecology of the area the standards and determinants of that design rather than the singular enforcement of lot sizes and standard setbacks.

These regulations intend to promote the efficient and thoughtful use of the land, while encouraging a diversity of housing types, and mixed uses where appropriate, by maintaining the high degree of quality control necessary for the preservation of the natural and scenic elements that are integral to the rural character of the Township.

Projects approved hereunder shall be designated (PD) Planned Development.

## SECTION 5.9.2 PERMITTED AND CONDITIONAL USES

- A. Planned Developments within zones established by the Township Board.

All legal methods of land subdivision may be used in the design of a Planned Development. All pertinent regulations addressed elsewhere in the zoning ordinance or in separate ordinances of the Township shall be complied with. Condominium projects, mobile home parks, and land divisions shall be administered and reviewed under this Section.

- B. Permitted and conditional uses of the property prior to PD zone designation as uses compatible with surrounding zoning districts.

## SECTION 5.9.3 TABLE OF DIMENSIONAL REQUIREMENTS FOR PLANNED DEVELOPMENTS

| ZONING DISTRICT         | MINIMUM<br>PROJECT AREA | MINIMUM<br>CONTINUOUS<br>PROJECT<br>FRONTAGE <sup>1</sup> | MAX. DU/<br>DEVELOPABLE<br>ACREAGE | REQUIRED<br>PERCENT OF<br>PROJECT AS OPEN<br>SPACE <sup>2</sup> |
|-------------------------|-------------------------|-----------------------------------------------------------|------------------------------------|-----------------------------------------------------------------|
| FORESTED-<br>RECREATION | 20 acres                | 150 feet                                                  | 1 unit/ 1 acre                     | 60%                                                             |
| AGRICULTURAL            | 20 acres                | 150 feet                                                  | 1 unit/ acre                       | 60%                                                             |
| RESIDENTIAL             | 5 acres                 | 100 feet                                                  | 1 unit/ 22,500 sq. ft.             | 60%                                                             |

<sup>1</sup>. On a county or state highway.

<sup>2</sup>. Public or private easements, rights-of-way, drives, streets or alleys, parking areas or required lots shall not be counted as part of required open space.

## SECTION 5.9.4 DIMENSIONAL REQUIREMENTS

- A. See Section 5.9.3 above.
- B. “Open space” as used in this section shall be defined as land areas that are open and unbuilt and permanently preserved as such by conservation easement or other means suitable to the Township Board. It may include recreational facilities and structures.

## SECTION 5.9.5 PERFORMANCE STANDARDS

The following development requirements shall apply to all Planned Developments:

- A. The Planned Development should be designed and developed in a manner compatible with and complementary to existing uses or development indicated by the current Master Plan for the immediate vicinity of the project site. Site planning on the property perimeter shall provide for the protection from adverse surrounding influences, as well as protection of the surrounding areas from potentially adverse influences from within the development.

- B. Open space may be left undeveloped or may be improved. If it is improved, provisions for its maintenance must be provided. If land is to remain undeveloped, measures may be required to mitigate construction, to improve natural habitat, and to prevent erosion and control drainage. Open space left in its natural state shall be kept free of litter. Open spaces shall link with those on adjoining properties to ensure maximum landscape cover and wildlife habitat.
- C. If development is to be done in stages, the development plan shall schedule the improvement of the open space, the construction of buildings, structures, and improvements in such open space, and the construction of dwelling units in order that each development stage achieves a proportionate share of the total open space and planned amenities of the total development.
- D. All or any part of designated open space shall be reserved for use in common by the owners or residents of the Planned Development. Areas permanently preserved for common open space shall be reserved for the use and enjoyment of the owners and residents. The Township may, with the developer's consent, require that open space easements be conveyed to the Township or to another responsible entity.
- E. All public streets within or abutting the proposed Planned Development shall be improved to Township and County specifications for the particular classification of street. When the developer desires to retain any streets within the development as private streets, such streets shall be maintained for their intended purposes by the development's landowners association or other means acceptable to the Township and County. All roads and passageways must be designed to allow emergency vehicle access.
- F. Planned Developments shall be in harmony with the topography of the site, shall preserve water courses, drainage areas, wooded area, rough terrain, and similar natural features and areas.
- G. All utilities within a Planned Development shall be placed underground where feasible; otherwise, they shall be placed in the most unobtrusive manner possible. Sufficient easements shall be provided for all necessary utilities.
- H. The designation of building plots or building areas within which structures must be sited is required to ensure proper placement of homes in relation to the geography and ecology of the site as well as in relation to structures on surrounding properties.
- I. A property owners association shall be formed to hold title to and to manage any land, structures, or improvements to be held in common. Necessary stipulations of the Planned Development approval shall be conveyed by deed restrictions and covenants or within the condominium master plan, whichever is applicable.
- J. The development must meet all the standards and requirements of the various agencies that have jurisdiction over the development area. No Planned Development shall be granted final approval until all necessary approvals are obtained.

- K. A development schedule, including all contiguous or adjacent land owned or controlled by the applicant, shall be submitted indicating planned phases, including construction of roads, utilities, dwellings and amenities--all the major components of the project. An annual updated schedule shall be submitted to the Planning Commission until the entire development is completed. This annual report shall include, at minimum, the percentage complete to date and forecasted construction for the ensuing year of each component of the project. Approval of subsequent stages of a development shall be based upon adherence to the approved schedule or modifications agreed upon by the Planning Commission.
- L. Standards set forth in Section 5.9 shall be used as guides to development design; modifications may be reviewed based upon these standards.

#### SECTION 5.9.6 ACCESSORY STRUCTURES AND USES

Accessory uses and structures shall be located as specified on the development plans as approved by the Township.

#### SECTION 5.9.7 MISCELLANEOUS REGULATIONS

General Provisions as permitted in Chapter 4.

Parking as permitted in Chapter 6.

Signage as permitted in Chapter 7.

#### SECTION 5.9.8 CONCEPTUAL DEVELOPMENT PLAN; APPLICATION REQUIREMENTS

- A. Twelve (12) copies of a conceptual development plan encompassing all phases of the proposed Planned Development, prepared at a scale not less than one (1) inch equals fifty (50) feet if the property is less than three (3) acres and one (1) inch equals one hundred (100) feet, if more, containing the following information:
  - 1. Name of development, applicant name, preparer name, if different, date of preparations, written and graphic scale, north arrow, property lines and dimensions, size of property in acres.
  - 2. Zoning and use of all adjoining properties.
  - 3. Existing natural features of the site, including predominant vegetative cover, major tree stands, and existing drainage ways.
  - 4. Existing site improvements, including existing buildings or other structures, existing utilities with sizes shown, and any existing easements of record.
  - 5. Existing site elevation contours at a minimum of twenty (20) foot intervals.
  - 6. If applicable, identify existing shoreline, existing one-hundred (100) year flood hazard area boundary and existing wetlands.
  - 7. Existing rights-of-way lines, pavement edges and names of public streets; proposed layout of new public streets or private roads.

8. Layout and typical dimensions of proposed lots, including building plots or pads. If the proposed Planned Development zone includes construction of buildings or other structures, identify proposed footprints and dimensions, proposed number of stories; identify uses proposed within the Planned Development and the acreage allotted to each use.
9. Locations of proposed access driveways and parking areas.
- B. If multi-phase development is proposed, identify areas included in each proposed phase.
- C. A legal description of the land to be included in the Planned Development.
- D. A sketch of the vicinity of the subject property, locating the property in relation to properties, structures, streets and uses within five hundred (500) feet of the Planned Development.
- E. A narrative statement describing the overall objectives of the Planned Development.
- F. A complete application on a form supplied by the Township.
- G. Payment of the fee established, from time to time, by resolution of the Township Board to cover the cost of the Planned Development project review.

#### SECTION 5.9.9 PLANNING COMMISSION REVIEW OF CONCEPTUAL DEVELOPMENT PLAN

- A. The Planning Commission shall review the conceptual development plan at a public meeting. Recommendations made by the Planning Commission shall be based upon its consideration of the standards for approval of a Planned Development contained in this section, and based upon the intent of the Ordinance. The recommendation of the Planning Commission shall be transmitted in written form to the Township Board, the County Planning Commission, and a copy of the recommendations transmitted to the applicant.
- B. In the course of its review of a conceptual development plan for a Planned Development, the Planning Commission shall provide notification of its deliberations in accordance with Section 10.10 of this Ordinance.
- C. Review Procedure:
  1. The Planning Commission shall review the conceptual site plan to ensure that:
    - a. The uses, buildings, and structures shown on the conceptual site plan are not in conflict with the Master Plan of current adoption.
    - b. That the proposed uses, buildings, and structures are compatible with surrounding uses of land, or that measures to mitigate adequately non-compatible uses have been included on the conceptual site plan.
    - c. That the plan meets the applicable development and performance standards of this section and of the district in which it is proposed to be situated.

2. Based on the findings of its review, the Planning Commission shall do one of the following:
  - a. Grant conceptual site plan approval.
  - b. Grant conceptual site plan approval subject to conditions and the submission of a revised site plan.
  - c. Reject the conceptual site plan, stating the specific reasons for the rejection.

#### SECTION 5.9.10 APPLICATIONS FOR REZONING

Once the Planning Commission has granted concept development plan approval subject to conditions, an application for Planned Development zoning may be filed and processed in accordance with Chapter 12 of this Ordinance. The approved conceptual site plan shall be made part of the application and shall be considered as part of the rezoning request.

#### SECTION 5.9.11 SITE PLAN REVIEW REQUIRED

Either concurrent with the application for rezoning or upon rezoning approval, the applicant must apply for Development Site Plan approval in accordance with Chapter 9. Prior to any new construction, site plan approval must be obtained.

In addition to the information required for Development Site Plan approval, the applicant shall submit, where relevant, the following:

- A. Lot lines and building pads.
- B. Details of proposed project lighting.
- C. A copy of all of the following that are applicable: proposed deed restrictions, covenants, condominium or landowner association documents.
- D. Summary data schedules:
  1. Number and sizes of proposed units, including accessory or ancillary structures.
  2. Area and percentage of building site coverage.
  3. Area and percentage of impervious surface coverage.
  4. Area and percentage of open, undeveloped space.
  5. Parking space calculations, if applicable.

#### SECTION 5.9.12 CHANGES TO AN APPROVED PLANNED DEVELOPMENT

- A. No changes to an approved development plan for a Planned Development shall be made, except by mutual agreement between the applicant and the Township. Revisions to an approved final development plan or to any conditions imposed on an approval, with the exception of minor administrative changes, which do not alter the layout, number of units or other details of the plan by more than five (5%) percent, shall be processed in the same manner as an application for approval of a Development Site Plan, as specified in Chapter 9.



- B. Minor administrative changes may be made by the Planning Commission or the Commission may delegate this responsibility to the Zoning Administrator.

#### SECTION 5.9.13 TIME LIMIT FOR APPROVED PLANNED DEVELOPMENTS

- A. Construction of an approved Planned Development shall commence and shall proceed meaningfully toward completion within one (1) year from the date of the approval of the Planned Development by the Township Board.
- B. The owner or applicant of the Planned Development may apply to the Township Board for one (1) extension of the original approval for an additional term of one (1) year. The Township Board may, in its discretion, authorize this extension. In considering such authorization, the Township Board shall use the following standards:
  - 1. The Planned Development has encountered unforeseen difficulties beyond the reasonable control of the owner or applicant.
  - 2. The Planned Development is likely to commence and to be completed.
- C. If the Planned Development has not commenced and proceeded meaningfully towards completion at the end of the initial one (1) year time period, or the one permitted extension thereof, then the Planned Development approval shall automatically become invalid and void and the prior zoning of the property shall obtain.

## CHAPTER 6 PARKING

### SECTION 6.1 INTENT AND PURPOSE

It is the purpose of these regulations to ensure that adequate parking facilities are provided for and that they are adequately maintained. Off-street parking as required by this Ordinance shall be in accordance with the following provisions.

### SECTION 6.2 ADEQUATE OFF-STREET PARKING

For all uses, adequate off-street parking shall be required. Off-street parking areas shall be designed with enough capacity to provide safe and sufficient parking for all vehicles during normal times of use. Direct access to off-street parking areas shall be provided from a county street or an approved private street, service drive, or alley. Parking on street rights-of-way shall not be construed as satisfying the requirements of this Chapter except as allowed by specific districts and uses in this Ordinance. Parking needs shall be reviewed as a part of Development Site Plan Review, Chapter 9.

### SECTION 6.3 TABLE OF OFF-STREET PARKING RECOMMENDATIONS

The following table provides a guide for surfaced parking areas. The total parking recommended is the sum of spaces for all land uses proposed on the site, plus employee parking, as outlined by table. A parking space shall be at minimum 9 ft. x 18 ft.

| <u>Land Use</u>                                                     | <u># Spaces</u> | <u>Per Activity Unit</u>                      |
|---------------------------------------------------------------------|-----------------|-----------------------------------------------|
| Mobile Home Park                                                    | 2               | Dwelling Unit                                 |
| Senior Citizen Housing                                              | 1               | Dwelling Unit                                 |
| Day Nursery                                                         | 1               | 3 Children, per License                       |
| Doctor, Dentist, Veterinarian                                       | 2               | Exam or Treatment Room                        |
| Retail, Office, Service, Financial                                  | 1               | 250 sq. ft. of Public Area                    |
| Vehicle Sales                                                       | 1               | 800 sq. ft. of Public Area                    |
| Vehicle Service/Wash, Gas Station                                   | 3               | Wash Stall or Fuel Pump                       |
| Truck Stop                                                          | 5               | Fuel Pump (12' x 70' / truck)                 |
| Barber Shop or Beauty Salon                                         | 2               | Chair                                         |
| Bar or Restaurant (Not Drive-In)                                    | 1               | 2 Seats                                       |
| Drive-In or Drive-Thru Restaurant                                   | 1               | 200 sq. ft. Gross Floor Area                  |
| Hotel or Motel                                                      | 1               | Guest Room                                    |
| Meeting Hall, Skating Rink, Community Center, Gymnasium, Auditorium | 1               | 3 Persons Allowed in Bldg. based on Fire Code |
| Bowling Alley                                                       | 4               | Lane                                          |
| Wholesale, Industrial                                               | 1               | 900 sq. ft. Gross Floor Area                  |
| Church, Theater, Arena,                                             | 1               | 2 Seats or 4 feet of Bench or Pew             |

| <u>Land Use</u>                       | <u># Spaces</u> | <u>Per Activity Unit</u>     |
|---------------------------------------|-----------------|------------------------------|
| Grade School                          | 1               | 10 Students                  |
| High School                           | 1               | 5 Students                   |
| College, Technical School             | 1               | 3 Students                   |
| Hospital, Visitor Parking             | 1               | 3 Beds                       |
| Hospital, Doctors Parking             | 1               | 2 Medical Staff              |
| Nursing Home                          | 1               | Members 6 Beds               |
| Library, Museum, Gallery, Post Office | 1               | 800 sq. ft. Gross Floor Area |
| Private Club                          | 1               | 2 Member Families            |
| Any Employment Site                   | 1               | Employee at Peak Shift       |

Where an applicant can substantiate a different parking need than those indicated above, upon submittal of convincing written evidence to the Planning Commission, a deviation may be allowed. Unpaved parking areas may be allowed to handle special events or high non-routine parking requirements. These areas, though, must have a properly stabilized subsoil and meet regular landscape requirements.

#### SECTION 6.4 USES NOT LISTED

The Zoning Administrator and Planning Commission shall determine the number of parking spaces required for all uses, including those not listed in the table above. If the use is not listed, the Zoning Administrator and the Planning Commission shall determine the number of required spaces based on a comparison of the proposed use and a similar use that is listed in the Table of Off-Street Parking Recommendations. In the event that there is a dispute over the number of spaces required, the matter shall be referred to the Zoning Board of Appeals for review and a decision.

#### SECTION 6.5 BUILDING, STRUCTURE, OR USE EXPANSIONS OR ADDITIONS

Additional parking shall be provided for any increase in floor area, change in use, addition, or expansion of a building or site.

#### SECTION 6.6 JOINT PARKING

The use and construction of shared parking is encouraged and allowed when it can be demonstrated that the parking requirements of this Chapter can be met.

## SECTION 6.7 OFF-STREET PARKING AREA CONSTRUCTION REQUIREMENTS

- A. The off-street parking areas shall be surfaced with a durable material that shall be graded to drain and dispose of storm water on site.
- B. Storm water collection, drainage and retention structures meeting all requirements of the Arenac County Road Commission and the Arenac County Drain Commissioner shall be installed for all off-street parking areas.
- C. Driveways and aisles for any off-street parking area shall be clearly defined meeting the following requirements:
  - 1. Each driveway lane shall be a minimum of nine (9) feet and a maximum of twenty (20) feet in width per direction. Lanes for entering and exiting traffic shall be defined.
  - 2. A driveway shall intersect the abutting street at a ninety (90) degree angle.
  - 3. Aisles shall be at least eighteen (18) feet wide.
- D. Each parcel shall have no more than one (1) driveway entrance and exit opening to an abutting public thoroughfare for each three hundred fifty (350) feet of frontage, or fraction thereof. Where more than one (1) driveway is allowed because of an existing driveway, it will be as far as possible from the nearest driveway(s). No parking lot driveway shall be located closer than ten (10) feet from a neighboring property line.
- E. All lighting of a required off-street parking area shall be arranged in such a manner and shall be of such height that the illumination is directed toward the ground and is not directed toward a public thoroughfare or adjacent properties.
- F. Parking and loading areas in general shall be located beside or behind structures, but in no case closer than fifty (50) feet from any road right-of-way and shall not be located any closer than ten (10) feet from any lot line.
- G. Any parking area larger than ten (10) spaces shall have a visual screen not less than four (4) feet high between the parking area and adjacent property zoned for residential uses.
- H. A zoning permit shall be required for construction of any parking lot.

## CHAPTER 7 SIGNS

### SECTION 7.1 INTENT AND PURPOSE

The intent of this Chapter is to regulate the type, number, physical dimensions, erection and placement of signs in Clayton Township. The purpose of these regulations is to:

- Promote the public health, safety, and welfare of residents and visitors.
- Reduce hazardous distractions to motorists and pedestrians.
- Protect the Township from visual clutter and ugliness.
- Protect property values.
- Protect the rural character and natural beauty of the Township.

### SECTION 7.2 DEFINITIONS

**Sign** - A sign is the use of any words, numerals, figures, devices, designs, or trademarks which constitute name, identification, description, display, or illustration which is affixed or applied to or represented directly or indirectly upon a building, structure, or lot, and which directs attention to an object, project, service, activity, person, institution, organization, or business.

**Sign Area** - The area of a sign shall be computed as the entire area circumscribed by a parallelogram, triangle, circle, or semi-circle, or any combination of these figures, which includes all of the display area of the sign, including frames surrounding display areas. For signs which consist of individual letters attached or painted on the wall of a building, with only the wall as background and no added decoration or border, the sign area shall be the geometrical shape formed by an imaginary line along the exterior perimeter of the word, or words, as a whole. For purposes of computing sign area, only one side of a sign shall be used.

**Building Sign** - A sign attached to a building as either a wall sign, projecting sign, awning sign, window or canopy sign. No sign shall be placed above the roof line (refer to Figure 4).

**Directional Sign** - A sign directing vehicular or pedestrian traffic or parking but bearing no advertising matter except for the logo of the business for which the directional signs are associated.

**Freestanding Sign** - A sign supported by one or more uprights, braces or pylons located in or on the ground or to something requiring location on the ground. Freestanding signs are commonly referred to as “pole” signs.

**Illuminated Sign** - Any sign designed to give forth artificial light or designed to reflect any such light given from any source which is intended to cause such light or reflection. No flashing arrow is allowed on any illuminated sign.

**Outdoor Advertising Structure** - A sign or billboard that may be erected for the purpose of advertising a business or other activity and is not on the same parcel as the business or activity advertised.

**Portable Sign** - Any sign so constructed to be readily moveable from one location to another and not permanently affixed to a building or the ground. Portable signs include “trailer” signs. No flashing arrow is allowed on any portable sign.

### SECTION 7.3 SIGN REGULATIONS

The following regulations shall apply to on-premises signs:

- A. Unless a sign is exempt from permit requirements as specified in Section 7.3.B, a Zoning Permit must be obtained from the Township Zoning Administrator prior to the construction or placement of any sign. Outdoor advertising structures require a Special Use Permit in accordance with Chapter 8.
- B. Subject to the standards as noted and other applicable ordinance requirements, the following signs and related activities are permitted by right and are exempt from the permit requirements of this Ordinance:
  - 1. One (1) temporary construction sign shall be permitted for a construction project, not to exceed thirty-two (32) square feet in area per sign. Such signs may be erected no more than thirty (30) days prior to commencement of construction and must be removed no longer than thirty (30) days after completion of construction.
  - 2. On-premises directional signs, not to exceed four (4) square feet in area per sign, shall be permitted as a means of directing traffic to parking, loading, customer service, and related areas.
  - 3. Public signs or notices of Clayton Township, Arenac County, the State of Michigan, or the United States Government may be erected as deemed necessary and appropriate by the unit of government.
  - 4. Real estate signs not exceeding four (4) square feet of display area per side shall be permitted. These signs must be removed within thirty (30) days of the sale of the property upon which they are placed.
  - 5. One (1) nameplate sign per premises not to exceed two (2) square feet shall be permitted.
  - 6. Garage or yard sale signs may be installed one week in advance of sale and shall be removed within twenty-four (24) hours after the sale.
  - 7. Election signs not exceeding two (2) square feet may be placed ninety (90) days before election and must be removed within five (5) working days afterward.
- C. Outdoor advertising structures are permitted in the Agriculture and Forest & Recreation districts only:
  - 1. Special use requirements shall be followed (see Chapter 8).
  - 2. Minimum setback from any highway: 200 feet from the road right-of-way or in line with existing outdoor advertising structures.
  - 3. Minimum spacing between advertising structures shall be 1,000 feet measured

along a line parallel to the right-of-way on either side of the highway upon which the structure may be located.

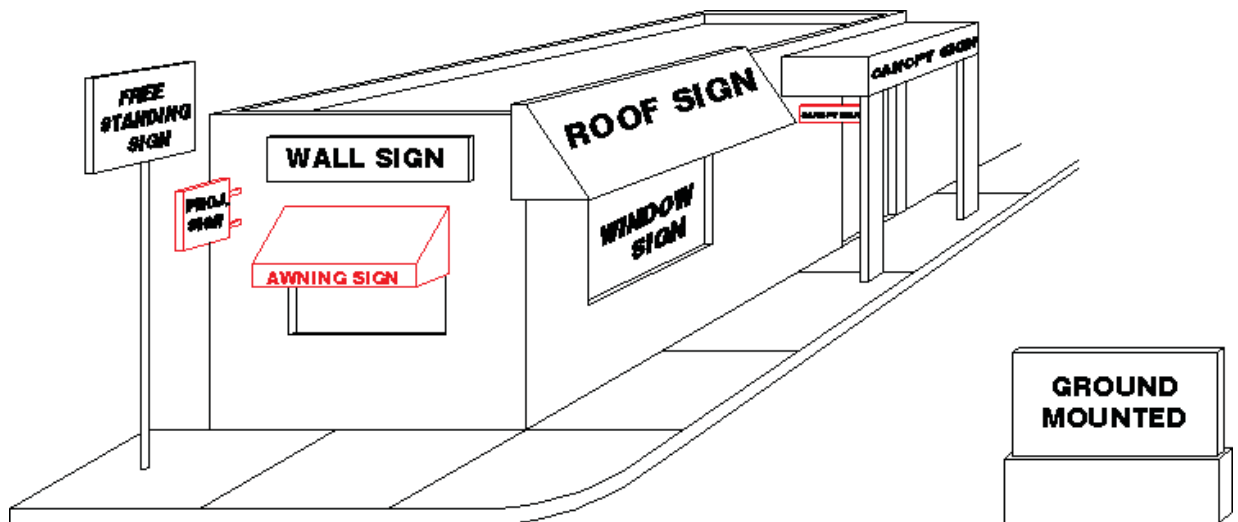
4. Maximum sign size: 300 square feet in surface display area per side.
  5. Maximum sign height: 35 feet from road level.
- D. Any sign not specifically permitted is prohibited. The Zoning Board of Appeals shall have the authority to classify other signs.
- E. General Sign Standards:
1. Illumination, if permitted, shall be by a non-flashing light. Said source of illumination shall be shielded from direct view of adjacent residential properties and vehicles passing on adjacent highways. The source of any illumination shall not be visible beyond the property lines of the parcel upon which the advertising structure is located.
  2. All signs shall be subject to the Building and Safety Codes of Arenac County.
  3. All signs shall be set back a minimum of ten (10) feet from all lot lines, except where regulated otherwise by this Ordinance.
  4. No sign shall exceed the height limitation of the district in which it is located or as otherwise regulated by this Ordinance, provided however, ground mounted signs shall not exceed eight (8) feet in height.
  5. Freestanding signs shall have a minimum clearance of eight (8) feet between the ground surface and lowest point of the sign.
  6. No signs shall be placed in required clear vision areas.
  7. New signs in areas that have many existing signs shall be placed in line with existing signs as much as possible while attempting to adhere to required setbacks.
  8. All signs shall be adequately maintained; if not, written notice shall be issued by the Zoning Administrator to the owner of the structure. If disrepair is not corrected within thirty (30) days, said structure shall be removed at the owner's expense.
- F. Sign Size and Height:
1. On-premise freestanding signs shall not exceed forty-eight (48) square feet total face size, nor exceed eighteen (18) feet total in height from road level.
  2. Commercial establishments are allowed one freestanding sign.
  3. Commercial establishments are allowed building signage, including wall, awning, window and canopy signage, for identification and advertisement of goods sold on premises not to exceed ten (10%) percent of any face of the building fronting on a road of access to the building.
  4. Signs for home occupations shall not exceed six (6) square feet, except agricultural businesses or uses which shall use the commercial standards above.
- G. Temporary signs, a maximum of thirty-two (32) square feet, shall be allowed for special events, subject to Zoning Administrator approval, not to exceed sixty (60) days total in one year.

## SECTION 7.4 NON-CONFORMING SIGNS

A non-conforming sign or sign structure existing and in place as of the date of the enactment of this Ordinance may continue to have the copy or message on the sign changed and may also have normal maintenance performed. However, a non-conforming sign existing on the day of enactment of this Chapter SHALL NOT:

- A. Be changed to another non-conforming sign.
- B. Be structurally altered to change the shape, size, location, type, or design of the sign.
- C. Be re-established after the activity, business, or use to which it relates has been discontinued for ninety (90) days or longer.
- D. Be re-established after damage by any means if the damage is in excess of the State Equalized Value (SEV) of the sign, as determined from its most recent assessed valuation.

Figure 4





## **CHAPTER 8 SPECIAL USES**

### **SECTION 8.1 INTENT AND PURPOSE**

Rather than attempting to foresee and regulate all the possible land use activities within individual and limited zoning districts, it is the intent of this Ordinance to provide a set of procedures and standards for special uses of land or structures that allows latitude for a land owner or developer, and, at the same time, maintains sound provisions for the protection of the health, safety, and general welfare of Township inhabitants. Such uses may be authorized within certain zoning districts through the issuance of a Special Use Permit as provided in the Michigan Zoning Enabling Act, Public Act 110 of 2006, as amended.

### **SECTION 8.2 PRE-EXISTING USE**

Any existing use which is permissible by right in the district shall continue as a permissible use even if that use is later designated a special land use. Any expansion or enlargement of the original permissible use, designated now as a special use, must proceed through the special land use process for approval.

### **SECTION 8.3 REVIEWING AUTHORITY**

All applications for Special Use Permits shall be considered by the Planning Commission, hereafter referred to as the “Commission,” and a recommendation made to the Township Board. The Township Board shall have the authority to grant, to deny, or to grant with conditions such Special Use Permits.

### **SECTION 8.4 APPLICATION AND FEE**

An application for a Special Use Permit shall be submitted to the Commission through the Zoning Administrator. The applicant shall provide the Zoning Administrator with twelve (12) copies of the application, and twelve (12) sets of all required data. Each application shall be made by the owner of record of the property on which the proposed special land use is to exist or be conducted, or by an applicant, if not the owner, with a signed authorization of the property owner, and shall be accompanied by the payment of a fee as set forth in the schedule established by the Township Board to cover the costs of processing the Special Use Permit application.

### **SECTION 8.5 DATA REQUIRED**

- A. Each application shall include the following information:
  - 1. The name, address, telephone number and signature of the property owner and applicant;
  - 2. A full legal description of the property on which the proposed special use is to exist or be conducted, including the property tax parcel number(s), together with proof of property ownership and applicable options on the property, if any;

3. A detailed description of the proposed special use for which the permit is requested;
4. Project schedule and developments plans;
5. A vicinity map with north arrow indicated;
6. Land uses and existing structures on the subject parcel and adjoining parcels within five hundred (500) feet of the subject parcel; and
7. A written statement relative to the project's effects on existing infrastructure, including but not limited to, traffic, capacity of roads, schools, and existing utilities, and upon the natural environment.

B. A site plan in accordance with Chapter 9 - Development Site Plan Review.

#### SECTION 8.6 PROCEDURE UPON RECEIPT OF APPLICATION

Upon receipt of a Special Use Permit application, which is supported by all the data and fees required above, the application shall be put on the agenda for preliminary consideration at the earliest Commission meeting practicable. The Planning Commission's preliminary consideration shall be to offer preliminary review of the Special Use Permit application. This preliminary review shall not constitute final review necessary for approval. The applicant shall be notified of the time and date of this preliminary consideration. At the meeting wherein preliminary consideration is given, the Planning Commission shall set the time and date for the public hearing on the application unless the applicant agrees to deferral of that public hearing.

- A. Notice Requirements. Notice that a special use application has been received and will be considered by the Commission must be given and shall meet the requirements of Section 10.10 of this Ordinance.
- B. The Planning Commission shall hold a public hearing on the Special Use Permit request.
- C. The Planning Commission shall review the request and shall establish that the standards and requirements of this Chapter are satisfied and shall record any condition as with respect to the approval or denial.
- D. Following its review of the request, the Planning Commission shall take one of the following actions:
  1. Approve the Special Use Permit if it is found to satisfy the requirements of this Chapter;
  2. Place conditions on, and then approve the Special Use Permit with conditions; or
  3. Deny the Special Use Permit because it is found that the proposed use fails to satisfy the requirements of this Chapter.
- E. The Commission shall then forward its findings and decision to the Township Board.

## SECTION 8.7 TOWNSHIP BOARD ACTION

Upon receiving the Commission's written recommendation on the proposed special use, the Township Board shall schedule deliberations on the application at its next regular meeting. The Township Board may hold another public hearing on the matter if requested or at its discretion. Upon examining the application, the recommendation of the Commission, and any other evidence brought before it, the Township Board may take one of the following actions:

1. Refer the matter back to the Planning Commission for further deliberations whereupon the Commission will re-examine the evidence and information referred to it by the Township Board and resubmit a recommendation to the Township Board.
2. To approve the Special Use Permit if it is found to satisfy the requirements of this Chapter.
3. To place conditions on, and then approve, the Special Use Permit to ensure that it complies with the requirements of this Chapter; or
4. To deny the Special Use Permit because it is found that the proposed use fails to satisfy the requirements of this Chapter.

Upon making a decision, the Board shall prepare a statement of findings and conditions relative to the special use land which specifies the basis for the decision and any conditions imposed.

## SECTION 8.8 BASIS FOR DETERMINATION

Before approval of a Special Use Permit, the Township Board shall establish that the standards specified in this Section, as well as applicable standards outlined elsewhere in this Ordinance, shall be satisfied. Each of the proposed special land uses on the proposed location shall:

- A. Be designed, constructed, operated and maintained so as to be harmonious in effect and appropriate in appearance with the existing or intended character of the general vicinity as indicated in the Township Master Plan or other policies of the Township.
- B. Not be hazardous or disturbing to existing uses in the same general vicinity and will not have adverse effects on the market value of surrounding property and to the community as a whole.
- C. Be served adequately by essential facilities and services, such as, but not limited to, highways, streets, police, fire protection, drainage structures, refuse disposal, water and sewage facilities, and schools.
- D. Not create excessive additional requirements at public cost for public facilities and services.
- E. Not involve uses, activities, processes, materials, and equipment or conditions of operations that will be detrimental to any persons, property, or the general welfare by fumes, glare, noise or odors, or any other harmful effects.
- F. Will be in general compliance with the land use policies outlined in the Township Master Plan, the principles of sound planning, and will not jeopardize the economic welfare of the Township.
- G. Will not directly or indirectly have an adverse effect upon the natural resources of the Township, including, but not limited to, prime or unique agricultural lands, water recharge areas, lakes, rivers, streams, forests, wetlands, wildlife areas.

- H. Structures, landscaping, or other land uses, will not disrupt water drainage systems necessary for agricultural uses and will be in compliance with Arenac County Drainage Commissioner requirements.
- I. Phases of development are in a logical sequence, so that any one phase will not depend upon a subsequent phase for adequate access, public utility services, drainage or erosion control.
- J. Be in compliance with the requirements of the district in which it is proposed and all other standards in this Ordinance, as well as with the requirements of the County Road Commission, County Building Inspector, County Drain Commissioner, District Health Department, Soil Erosion Officer, County Conservation Service, area fire departments, Department of Natural Resources and any other applicable township, county, state and federal statutes.

## SECTION 8.9 CONDITIONS AND SAFEGUARDS

Additional conditions and safeguards may be imposed by the Commission if reasonable and necessary to protect the natural environment or to conserve natural resources or energy, to ensure compatibility with adjacent uses of land, to promote the use of the land in a socially and economically desirable manner, and to ensure that public services and facilities affected by the proposed use or activity will be capable of accommodating the increased activity. Any conditions so imposed shall meet the following requirements:

- A. To ensure that public services and facilities affected by a proposed use or activity will be capable of accommodating increased service and facility loads caused by the land use of activity;
- B. To protect the natural environment and conserve natural resources and energy;
- C. To ensure compatibility with adjacent uses of land;
- D. To promote the use of land in a socially and economically desirable manner;
- E. To protect the health, safety, welfare, social and economic well-being of those who will be using the proposed special land use or activity under consideration;
- F. To protect the health, safety, welfare, social and economic well-being of Township residents, and lot owners adjoining the proposed special land use or activity, including, but not limited to, requirements such as screening, or the erection of natural or artificial barriers, or limitations on the time of day during which operations may occur or during which special land use activities may be carried on;
- G. Be necessary to meet the intent and purposes of this Ordinance, and be related to the standards established for the land use activity under consideration, and be necessary to ensure compliance with those standards;
- H. Be necessary to ensure compliance with any part of the application received and approved by the Township Board; and
- I. Be recorded as part of the Special Use Permit.

When requiring conditions for a Special Use Permit, the following findings shall be made and documented as part of the special use review:

1. That such requirements and conditions will mitigate negative effects of noise, dust, lighting, vehicular or pedestrian traffic, loading or unloading, parking or other harmful effects upon adjoining parcels; and
2. That absent such conditions, the development would adversely affect the reasonable use, enjoyment and value of adjoining lands in light of similar benefits enjoyed by other properties in the area.

#### SECTION 8.10 VARIANCES

Where a Special Use Permit is granted conditionally, based upon the necessity for the applicant to obtain a variance, or variances, from the Zoning Board of Appeals, the permit shall not be valid until such variances are obtained.

#### SECTION 8.11 GRANT OR DENIAL OF THE SPECIAL USE PERMIT

The Township Board may approve, deny, or approve with conditions, a request for Special Use Permit approval. The decision on a Special Use Permit under consideration shall be incorporated in a statement containing the conclusions which form the basis of the decision and any conditions and safeguards imposed. One (1) copy shall be distributed to each of the following: Zoning Administrator, Township Clerk, and the Commission. Only upon approval by the Township Board may a Special Use Permit be issued by the Zoning Administrator.

#### SECTION 8.12 PERMIT EXPIRATION

A Special Use Permit issued pursuant to the requirements of the Ordinance shall be valid for a period of one (1) year from the date of issuance of said permit. If construction or use has not commenced and proceeded meaningfully toward completion by the end of this period, the Special Use Permit shall be null and void unless a Special Use Permit is renewed by the Township Board, upon the request of the permit holder for a period of time not to exceed two (2) years.

The Township Board may refer the request to the Planning Commission for a determination and recommendation of the likelihood that the special use will be brought to fruition within what time period.

#### SECTION 8.13 BINDING EFFECT

Any Special Use Permit approved by the Township Board pursuant to the provisions of this Ordinance shall be binding between the parties, and said use, shall not be modified, altered, expanded, or otherwise changed, unless the Special Use Permit holder obtains a new or amended Special Land Use Permit in accordance with the procedures of this Chapter. Further, such conditions shall run with the land, and shall be binding on the landowner, his

successors, heirs and assigns. If at any time during the existence of a permitted special land use, the land, lot, or structures are used contrary to the conditions and provisions of the permit, said use shall be deemed a violation of the Special Use Permit and the permit may be revoked and previously permitted special use activities cease (for battery storage facilities, See Public Utility Facilities and Wind Energy Conversion Systems).

#### SECTION 8.14 INSPECTIONS

The Zoning Administrator shall be responsible for the inspection of all conditions imposed by the Special Use Permit and for all improvements required by the approved final site plan. All subgrade improvements, such as utilities, subbase and base installations for streets, drives, and parking lots, and similar improvements shall be inspected by the Zoning Administrator or other appropriate official or individual and approved before covering. It is the responsibility of the applicant to request such necessary inspections at the appropriate times. The Zoning Administrator shall report periodically to the Township Board and Commission on the progress of each Special Use Permit. He shall notify the Township Board and Commission in writing of any failure on the part of the applicant to meet the requirements of the Site Plan and Special Use Permit, and report on steps being taken to ensure compliance. The fees established by the Township Board may include an amount to cover such inspections.

#### SECTION 8.15 FINANCIAL GUARANTEES

In the interest of ensuring compliance with the provisions of this Ordinance, protecting the natural resources and the health, safety and welfare of the residents of the Township and future users or inhabitants of an area for which a proposed Special Use Permit has been submitted, the Township Board may require the applicant to:

- A. Deposit a performance guarantee as set forth herein. The purpose of the performance guarantee is to ensure completion of improvements connected with the proposed use as required by this Ordinance, including, but not limited to: roadways, lighting, utilities, sidewalks, drainage, fences, berms, screens, walls, landscaping, reclamation, and widening strips.
  - 1. Performance guarantee as used herein shall mean a cash deposit, certified check, or irrevocable bank letter of credit in the amount of the estimated cost of any improvements to be made as determined by the applicant and verified by the Township Board.
  - 2. The performance guarantee shall be deposited with the Township Board at the time of the issuance of the permit authorizing the activity or project. No Special Use Permit may be issued before the receipt of all required performance guarantees by the Township Board.
  - 3. An approved Special Use Permit shall also prescribe the period of time within which the improvements for which the performance guarantee has been required are to be completed. The period will begin from the date of issuance of the permit.
  - 4. In the event the performance guarantee deposited is a cash deposit or certified check and the improvement for which the guarantee is provided

will be done over an extended period of time, the Township Board shall rebate to the applicant fifty (50%) percent of the deposited funds when sixty (60%) percent of the required improvements are completed as confirmed by the Township Board, and the remaining fifty (50%) percent of the deposited funds when one hundred (100%) percent of the required improvements are completed as confirmed by the Township Board. If a request is made by the applicant for a temporary certificate of occupancy without completion of the required improvements, the performance guarantee may be applied by the applicant to assure compliance with the standards of this Ordinance and the specifications of the approved site plan.

5. Upon the satisfactory completion of the improvements for which the performance guarantee was required, the Township Board shall return to the applicant the performance guarantee deposited and any interest earned thereon.
6. In the event the applicant defaults in making the improvements for which the performance guarantee was required within the time period as agreed to in the site plan, the Township shall have the right to use the performance guarantee deposited and any interest earned thereon to complete the improvements through contract or otherwise, including specifically the right to enter upon the subject property to make the improvements. Should the Township use the performance guarantee or a portion thereof to complete the required improvements, any amounts remaining after said completion shall be applied first to Township administrative costs in completing the improvements, with any balance remaining being refunded to the applicant. If the performance guarantee is not sufficient to allow the Township to complete the improvements for which it was posted, the applicant shall be required to pay the Township the amounts by which the costs of completing the improvement exceeds the amount of the performance guarantee deposited. The costs shall be billed to the permit holder and a lien placed against the subject property. If unpaid, the costs shall be collected in the same manner as delinquent taxes or as allowed by law.

#### SECTION 8.16 OTHER SPECIAL USES

Land and structural uses that are not specified in any other section of this Ordinance, but, upon being applied for under the provisions of Chapter 8, may be considered by the Planning Commission and Township Board as long as they meet all the conditions and requirements of this Chapter and the spirit and intent of the Ordinance.

#### SECTION 8.17 COMMERCIAL SOLAR ENERGY SYSTEMS

##### A. PURPOSE: LARGE-SCALE SOLAR ENERGY SYSTEMS

With advances in the technology of solar energy development in general, specific locations within the Township may support the implementation of Large-Scale Solar Energy Systems within the Township. This Ordinance is intended to preserve and protect the Township's important environmental and ecological assets, open spaces, views, aesthetics, wetlands, and other valuable areas. The general welfare, health, and safety of

the citizens of the Township will be promoted by the enactment of this ordinance. This ordinance shall not abridge the safety, health or environmental requirements of other applicable codes, standards, or ordinances. The Township shall revoke the permit for, and require the removal of, any SES that does not comply with this Ordinance.

#### B. COMMERCIAL SOLAR ENERGY SYSTEMS

All commercial, large-scale solar energy facilities shall be designed and built to provide electricity exclusively to the electric utilities' power grid and are not accessory to any other use. The commercial Solar Energy System may occupy the same property with another use.

##### 1. Application Requirements:

- A. Written authorization from a utility company for connection to the utility grid will be provided to the Township acknowledging and approving the connection. All wiring shall comply with applicable Michigan construction and electrical codes. The applicant shall submit certificates of design compliance obtained by the equipment manufacturer from a certifying organization.
- B. *Applicant Identification:* The application shall include the Applicant(s) name and Owner(s) name if different, and their address(es) in full, as well as a statement that the applicant is the owner involved or is acting on the owner's behalf. Each application for a Commercial Solar Energy System shall also indicate the date the application is submitted to the Township.
- C. *Application Fees:* The applicant shall remit an application fee and an escrow deposit. The required amounts shall be as specified in the fee schedule adopted by the Township Board in addition to any other escrow accounts required in this ordinance. All review costs shall be borne by the applicant and deducted from the escrow.
- D. *Escrow:* An escrow account shall be set up when the applicant applies for a Permit for a Solar Energy System installation. The monetary amount filed by the applicant with the Township shall be in an amount estimated by the Township Board to cover all costs and expenses associated with the application review and approval process, which costs may include, but are not limited to, fees of the township attorney, township planner, and township engineer, or those contracted by the Township as well as any reports or studies which the Township anticipates will be required during the review process for the particular application. At any point during the review process, the Township may require that the applicant place additional monies into escrow with the Township should the existing escrow amount filed by the applicant be insufficient in the determination of the Township Board. If additional funds are required by the Township to be placed in escrow and the applicant refuses to do so, the review and approval process shall cease until and unless the applicant makes the escrow deposit as required in this Ordinance. Any escrow amounts which are in excess of actual costs shall be returned to the applicant. An itemized billing of all expenses shall be provided to the applicant.



- E. *Project Description and Rationale*: Identify the type, size, rated power output, performance, safety, and noise characteristics of all elements of the system, including the name and address of the manufacturer(s), and models. Identify project installation time frame, project life, development phases, likely markets for the generated energy and possible future expansions. Supporting documentation for addressing the review criteria, standards, and findings supporting the applications are to be provided. The Township Board may require any information reasonably necessary to determine compliance with this ordinance.
- F. *Parcel Identification*: All parcels that will be included in the Commercial or Large-Scale Solar Energy System shall be included in the application. This includes parcels that will be traversed during any construction, on which transmission or collections lines cross, for driveways and access roads, or for which any form of easement agreement is granted to the applicant. An address or the nearest crossroads if no address is available, a parcel identification number, and a legal description for each parcel shall be included. Any subsequent addition to the list of parcels after submission of the application will require a new application submission.
- G. *Property Owner Permission, Easement, Lease, or other Contractual Evidence*: Evidence of an agreement between the property owner and the proposed facility's owner or operator confirming the owner or operator has permission of the property owner to apply for the necessary permits for construction and operation of the SES. A copy of that portion of the applicant's lease with the landowner(s) for the listed parcels granting easements and authority for use shall be provided. This shall be in the form of a copy of documents recorded with the Arenac County Register of Deeds. Copies of recorded documents must also be provided for any waiver agreements as authorized by this Ordinance entered into by non-participating landowners.
- H. *Expected Employment*: Expected construction jobs and permanent jobs associated with the development.
- I. *Visual Impacts*: Review and demonstrate the visual impact of the development using photos or renditions of the project or similar projects with consideration given to tree plantings and setback requirements.
- J. *Wildlife*: Review potential impact on wildlife on the site, including compliance with Endangered Species Protection laws and Inland Lakes and Streams regulations.
- K. *Environmental analysis*: Identify impact analysis on the water quality and water supply in the area and dust from project activities. The applicant shall provide evidence of compliance with applicable State of Michigan statutes for Water Resource Protection, Natural Resources, Environmental Protection Acts, and Soil Erosion and Sedimentation Control.
- L. *Soil Erosion and Sedimentation Control Plan*: An approved and permitted soil erosion plan must be submitted as a condition of Special Use Permit approval. The plan must be approved by the Arenac County designated Soil Erosion Control Officer.

- M. *Waste*: Identify and quantify solid waste or hazardous waste generated by the project. This includes plans for the spill prevention, clean-up, and disposal of fuels, oils, and hazardous wastes.
- N. *Water Usage and Storm Water Discharge Permit*: The applicant shall detail the methodology planned for cleaning the solar panels, frequency, and listing of any and all detergents, surfactants, chemicals, pesticides and herbicides, estimate of quantity of water or chemical solutions used for each cleaning, and sources of water used to facilitate panel restoration and maintenance. Proof of a stormwater discharge permit from the County of Arenac shall be provided prior to any construction including site preparation.
- O. *Solar glare*: The applicant shall provide a review of reflective angles to ensure unreasonable glare will not affect traffic or adjacent properties.
- P. *Airport Review*: If a proposed solar energy system falls within an area covered by an Airport Runway Protection Zone or any other federally-controlled airport, the commercial or large-scale Solar Energy facility must be reviewed using the current Solar Glare Hazard Analysis Tool (SGHAT) available through Sandia National Laboratories or a commercially available equivalent. The SGHAT will be used to ensure that the airport and those who use it will not be affected by unwanted visual or ocular impacts. The process is designed to save costs and increase public safety.
- 1) The analysis shall determine if there are any potential adverse effects on any registered airfield within ten miles of the project. Effects noted should include any possible decreased safety and utility.
  - 2) In addition, all proposed solar facilities must obtain a Determination of No Hazard (DNH) from the Federal Aviation Administration (FAA). A DNH does not eliminate the need for the SGHAT study nor does it in any way eliminate the standard for glare on roadways or non-participating parcels.
  - 3) The DNH must be obtained prior to breaking ground on any portion of the Commercial Solar Energy System.
  - 4) No Commercial or Large-Scale Solar Energy System that impacts safety or utility of any registered airfield shall be permitted.
- Q. *Transportation Plan*: Provide access plan during construction and operation phases. Plans for dust control on access roads must be provided along with a schedule for maintenance and weed control. The plan shall show proposed project service road ingress and egress access onto primary and secondary routes, layout of the array service road system.
- R. *Public safety*: Identify emergency and normal shutdown procedures. Identify potential hazards to adjacent properties, public roadways, and to the community in general that may be created. Applicant shall provide an unredacted safety manual for all components of the project as well as material safety data sheets that include the type and quantity of all materials used in the operation of all equipment. The applicant shall provide training and a safety manual for distribution to first responders to be kept with the Arenac County Emergency Manager and the Township Board. This safety manual should include possible emergency events and actions to be taken, the fire suppression process and procedures, as well as training for emergency

- personnel. Plans shall be kept on-site for emergency responders' access.
- S. *Sound limitations and review:* Identify noise levels dBA Leq 1 hour at the property line of the project boundary when completed.
  - T. *Telecommunications interference:* Identify electromagnetic fields and communications interference generated by the project.
  - U. *Utility company involvement:* A copy of the application and approval of the power of purchase agreement with the utility company that will be purchasing electricity from the proposed site shall be provided to the Township.
  - V. *Analysis and Studies:* The results and data from all studies and evaluations required in the Standards Section of the Solar Energy portion of this Zoning Ordinance shall be provided. This includes certifications and attestation showing how the Commercial or Large-Scale Solar Energy System will meet or exceed all standards and restrictions required by this ordinance.
  - W. *Insurance:* Proof of the applicant's public liability insurance shall be provided at the time of application. If the application is approved, proof of insurance shall be provided to the Township annually thereafter. The policy must provide for bodily injury and property damage and must name Clayton Township as an additional insured. The applicant shall insure for liability for the Commercial or large-scale solar Energy System until removed for at least \$15,000,000 per occurrence to protect the applicant, Township, and property owner.
  - X. *Decommissioning:* A decommissioning plan shall be submitted indicating the anticipated manner in which the project shall be decommissioned, including a description of which above-grade and below-grade improvements will be removed, retained (e.g., access drive, fencing), or restored for viable reuse of the property. The decommissioning plan shall include, at minimum, the following topics:
    - 1) The anticipated life of the project.
    - 2) Applicant provided decommissioning cost estimate study excluding salvage value in addition to independent studies by demolition companies that the Township selects.
    - 3) Provide proof of the financial resources used to accomplish decommissioning upon abandonment or non-operation. The applicant shall include a proof of the financial security active before the permit is approved along with the escrow agent with which the resources will be deposited. Security shall be in the form of a cash deposit or bond. The duration of the security shall be termed to the removal of the solar energy equipment as stated in the ordinance or land leases (easements), whichever is greater. Security shall be pre-paid and approved by the Township Board and Township attorney.
    - 4) A detailed plan on how the Commercial or Large-Scale Solar Energy System will be decommissioned, including a detailed policy and process book for the repair, replacement, and removal of malfunctioning, defective, worn, or non-compliant solar energy components.
    - 5) Any large-scale solar energy system that is not operated for a continuous period of twelve (12) months shall be considered abandoned and shall be removed under the decommissioning plan.

- 6) An attestation that the applicant will indemnify and hold the Township harmless from any costs or liability arising from the approval, installation, construction, maintenance, use, repair, or removal of the Solar Energy System, which is subject to the Township's review and approval.
- 7) Any additional information or documentation requested by the Township Board, or other Township representative.
- 8) An application and plan for *repowering* in accordance with the standards of this

ordinance may be submitted to continue the use of the SES site.

Y. Development Plan: Plans, drawn to appropriate scale, shall identify specifically, at minimum, all items in the following list:

- 1) A description of the proposed technology from the system manufacturer.
- 2) All lots and parcels in the Commercial or Large-Scale Solar Energy System and locations and sizes of associated buildings, accessory structures, and overall project area boundaries.
- 3) Location and details of planned utility equipment, transmission lines, solar panels, drainage ways.
- 4) The location, approximate height, and dimensions of all existing structures, existing parcel drainage tile layouts, landscaping, and fencing on the parcels planned for Solar Energy System installation including other parcels within (1/4) one quarter of a mile radius.
- 5) Topographical grades and conditions of the planned Solar Energy System parcel(s) or lots at time of application and grading plans for any proposed changes.
- 6) Documentation of existing vegetation, regulated wetlands, regulated floodplains, regulated and endangered species, and regulated lakes, streams, or ponds.
- 7) Required set-backs, location of designated panels and footprint area(s), location of property lines, buildings, and roads or other rights-of-way.
- 8) Access routes to lots and parcels that are part of the solar facility.
- 9) Proposed road and driveway improvements.
- 10) All existing and proposed underground utilities not exclusive to the Commercial or Large-Scale Solar Energy System such as gas lines, phone lines, cable, etc.
- 11) Location of any lots or parcels (participating or non-participating) within two thousand (2000) feet of the Solar Energy System, location of wetlands, wooded areas, public conservation areas, state game areas, or similar natural areas.
- 12) The location, grades, and dimensions of all temporary and permanent on-site access roads from the nearest county or state-maintained road.
- 13) Ingress and egress from the site as proposed during construction and thereafter indicating road surface, width, and length of access route.
- 14) All new infrastructure above ground and underground that is part of the Commercial or Large-Scale Solar Energy System or that connects the

Commercial or Large-Scale Solar Energy System to the public utility grid.  
15) Proposed signage and location(s).

16) Location and orientation of any lighting and batteries used in the project.

17) Location of any assets including trees to be removed.

18) Methods for dust and erosion control.

2. Standards and Requirements.

- A. A permit for a Commercial Solar Energy System is transferable to a new owner. The new owner must register its name and business address with the Township and must comply with this Ordinance and all approvals and conditions issued by the Township, including the insurance and bonding required.
- B. Commercial or Large-Scale Solar energy facilities may be permitted on properties enrolled in the PA 116 Farmland and Open Space Preservations Programs, but the applicant is required to file a change request in land use status with the State of Michigan and receive approval for locating a Solar Energy facility on the property. Documentation must be provided prior to beginning any pre-construction or construction on any portion of the project.
- C. Utility-scale and commercial solar energy environmental considerations include land disturbance/land use impacts; potential impacts to specially designated areas; impacts to soil, water and air resources; impacts to vegetation, wildlife, wildlife habitat, and threatened or endangered species; visual, cultural, paleontological, socioeconomic, and potential impacts from hazardous materials.
- D. Shall comply with any applicable Airport Regulations and shall not interfere or change any existing airspace or aircraft rules, regulations, or procedures.
- E. *Development Plan*: Except where noted in this Ordinance, it shall be unlawful to construct, erect, install, use or locate a commercial solar energy system unless a permit, based at least partly upon an approved development plan, has been approved pursuant to this Ordinance.
- F. *Minimum lot size and coverage*: Large-scale photovoltaic solar energy systems shall not be constructed on parcels less than forty (40) acres in size. The minimum required may consist of multiple contiguous parcels.
- G. *Height Restrictions*: All photovoltaic panels located in a solar energy system and any mounts, buildings, accessory structures, and related equipment shall be restricted to a maximum average installed height of 14 feet and an absolute maximum height of 16 feet when oriented at maximum tilt. Lightning rods may exceed 14 feet in height, but they must be limited to the height and number necessary to protect the SES from lightning.
- H. *Set-backs*: All photovoltaic solar panels and support structures associated with SES perimeter security fencing shall be placed three hundred (300) feet from an occupied, non-participating residence and two hundred (200) feet from a participating residence. The fencing shall be placed fifty (50) feet from the property line edge of a public road right of way unless a waiver allowing such is filed with the Arenac County Register of Deeds.
- I. Solar arrays and other structures shall not be located within fifty feet (50) of a drain easement.

- J. When a commercial solar energy system comprises multiple lots of more than one owner, the internal set-backs shall not apply on the joined lot lines.
- K. *Fencing*: A Ground-mounted SES shall be secured with a fence from adjacent properties and roadways inside the buffer plantings to restrict unauthorized access and shall have at least one access gate. A minimum height of seven (7) feet is required around the perimeter of the site for safety, security, and protection from scavengers. Fencing must be maintained at the expense of the owner of the solar facility and meet the requirements of the industry standards in effect at time of installation. Fencing shall be designed to prevent unauthorized access to electrical components. Access gates shall be locked at all times when authorized SES personnel are not present.
- L. *Safety/Access*: A security fence shall be locked. Lock boxes and keys or electronic devices such as keypads with passcodes shall be provided at locked entrances for emergency personnel (e.g., police, fire, ambulance) access. Electric fencing is not permitted. A safety plan shall be in place and updated regularly in coordination with the local fire department.
- M. *Sound Pressure Level*: No commercial or large photovoltaic solar facilities shall emit any form of audible sound energy, frequency, or spectrum exceeding fifty (50) dBA (Leq, 1 hour) as measured at the outer wall of residences on non-participating parcels. All sound measurements are instantaneous and shall not be averaged. Sound analysis or modeling performed by a sound engineer selected by the Township must confirm that the Commercial Solar Energy System will not exceed the maximum permitted sound pressure levels. Modeling and analysis can be based on the solar equipment manufacturer data, however, measured data from existing and similar Solar Energy System facilities shall be submitted with the modeling report.
- N. *Site Clearing*: Clearing of natural vegetation shall be limited to that necessary for the construction and maintenance of the installation. No land assets, such as but not limited to, topsoil, sand, gravel, etc. may be removed from the premises without the written approval of the landowner and must be done in accordance with Township Ordinances. A copy of landowner approval (easement) for removal of any assets as described must be on file with the Township prior to removal.
- O. A ground cover suitable for growth in the shade must be planted within (4) four months of project construction. The ground cover planted must be one that the USDA has determined will grow in this region under the proposed project conditions.
- P. *Screening and Landscaping*: The perimeter of Commercial Solar Energy Systems shall be screened and buffered by installed vegetative plantings whenever existing natural vegetation does not obscure the view of the SES from a public street or adjacent residential structures, subject to the following requirements:
  - 1) When a Utility-Scale Solar Energy System is adjacent to a residential lot, front, side and rear yard screening will be required.
  - 2) The landscape screening shall use materials, colors, textures, and landscaping that will blend into the natural setting and existing environment without adverse visual effects on the natural landscape or the character of

the surrounding area.

- 3) All Commercial or Utility-Scale Solar Energy Systems shall have a landscape buffer in accordance with the following: unless screened and buffered by existing vegetation, a vegetative buffer consisting of one row of deciduous and/or evergreen trees, shrubs, and grasses shall be installed and maintained at all times at the perimeter of the solar energy system in areas where the perimeter of the solar energy system will abut non-participating parcels that include a non-participating residence. All required plantings shall be installed during the applicable planting season and shall be maintained for the life of the project.

The evergreen and deciduous vegetative buffer shall be composed of deciduous or evergreen trees that at planting shall be a minimum of four (4) feet in height and shrubs two (2) feet in height. The evergreen trees shall be spaced no more than fifteen (15) feet apart on center (from the central trunk of one plant to the central trunk of the next plant), deciduous trees shall be placed no more than thirty (30) feet apart on center and shrubs shall be spaced no more than seven (7) feet apart on center. Native grasses may also be interspersed within the vegetative buffer.

- 4) A SES shall include the installation of perennial ground cover vegetation maintained for the duration of operation until the site is decommissioned. The applicant shall include a ground cover vegetation establishment and management plan as part of the site plan.
- 5) All unhealthy (50% dead or greater) and dead material shall be replaced by the applicant within six (6) months or at the next appropriate planting period whichever occurs first, but under no circumstances shall the applicant allow unhealthy or dead material to remain in place for more than six (6) consecutive months.
- 6) Failure to comply with the required vegetative requirements shall constitute a violation of this Ordinance and Permit(s) shall be revoked unless unavoidable issues, as determined by the Board, are present.
- 7) Alternative screening and buffering plans may be considered in the Development Site Plan Review by the Planning Commission and approved if they meet the intent of this section.

Q. *Signage:* No advertising or non-project related graphics shall be on any part of the solar arrays or other components of the large photovoltaic SES. This exclusion does not apply to entrance gate signage or notifications containing points of contact or any and all other information that may be required by authorities having jurisdiction for electrical operations and the safety and welfare of the public.

- 1) An information sign shall be posted and maintained at the entrances(s) that lists the name and phone number of the operator and emergency contact information.
- 2) Signs warning of the high voltage associated with the solar energy facility shall be posted at every entrance and at pad-mounted transformers and substation bases.

- R. *Electrical Cables*: All electrical interconnection and distribution lines shall comply with all applicable codes and standard commercial large-scale utility requirements. Use of above ground transmission lines shall be prohibited within the site, with underground lines placed at a depth of six (6) feet or deeper.
  - S. *Battery Usage and Storage*: No commercial grid storage batteries or capacitor banks storing or returning supplemental power to the grid shall be permitted. Use of batteries in commercial applications will only be permitted as emergency backup for safety lighting and operational equipment. (See Public Utility Facilities Section 8.17 Energy/Battery Storage Facilities.)
  - T. *Lighting Provisions*: Lighting of the Commercial or Large-Scale Solar Energy System shall be limited to the minimum necessary for safe operation, supplied with down lighting, and in no case shall any illumination from such lighting extend beyond the perimeter of the Commercial Solar Energy System. The Township may require use of a photometric study to make this determination.
  - U. *Drain Tile System*: Prior to the start of construction, any existing drain tile must be inspected by robotic camera. Any damage shall be repaired. While the facility is in operation, the drain tiles are to be repaired within 60 days of the discovery of any damage or malfunction of the drainage tile system. Solar array support structures and/or foundations shall be constructed to preserve drainage tile systems.
  - V. *Local, State, and Federal Permits*: Commercial or Large-Scale Solar Energy Systems shall be required to obtain all necessary permits from the U.S. Government, State of Michigan, Arenac County, and Clayton Township, and comply with standards of the State of Michigan adopted codes. In addition, if the lot on which the project is proposed is to be leased by the owner of the facility, rather than the land owner, all property within the project boundary must be included in a recorded easement(s), lease(s), or consent agreement(s) specifying the applicable uses for the duration of the project. Acceptance by all land owners adjacent or part of the project must be in place prior to commencing construction.
3. *Complaint Tracking, Publishing, and Resolution*: The applicant shall maintain a complaint resolution process that includes a publicly available permanent phone number and contact information for residents to make complaints regarding the solar energy system related to violations of the Zoning Ordinance or zoning approvals. Such process must include a form available to the public to submit complaints which shall also be made available online and be provided to the Township for distribution to residents. The applicant shall acknowledge receipt of such complaints within five (5) business days and shall notify the Township of the complaint and shall resolve any complaints within 30 days unless impractical, in which case the applicant must notify the Township and complainant of its assessment of the elements of the complaint, a plan for resolution of the complaint, and an estimated timeframe to resolve the complaint. The applicant shall notify the Township of any received complaints and resolutions to complaints on a yearly basis.
4. *Abandonment and Decommissioning*
- A. Following the operational life of the SES, or following abandonment or non-operation for a period of 1 year, the applicant shall perform decommissioning and



removal of all equipment and components associated with the Commercial or Large-Scale Solar Energy Systems:

- 1) Land shall be returned to the state and function it was in prior to the solar installation. Applicant must provide agronomy data to substantiate health and function of land.
  - 2) All underground components, foundations, and ancillary equipment must also be removed unless written permission is obtained from the landowner to retain those underground components that are 48 inches or more below grade. In no way shall this be construed to allow decommissioned solar panels to remain.
  - 3) All fencing must be removed during decommissioning unless written permission is obtained from the landowner to the contrary.
  - 4) All access roads or driveways shall be removed, cleared, and graded by the applicant, unless the property owner(s) request, in writing, desires to maintain any access road or driveways.
  - 5) All structures, concrete, piping, equipment, and other project related materials above-grade and below-grade shall be removed offsite for disposal. The Township or County will not be assumed to take ownership of any access road or driveway.
  - 6) The ground must be restored to its original, or better, topography, vitality, and health within two (2) years of Township notice of abandonment or decommissioning.
- B. The decommissioning plan shall also include an agreement between the applicant and the township that:
- 1) If a special use permit is approved pursuant to this section, the Township shall require security in the form of a company guarantee, letter of credit, or surety bond, which will be furnished by the applicant to the Township in order to ensure full compliance with this section and all conditions of approval. Such financial guarantee shall be deposited or filed with the Township Clerk after a special use permit has been approved but before construction commences on the solar energy system. At minimum, the financial security shall be in an amount sufficient to restore the property to its previous condition prior to construction and operation of the solar energy system, as certified by a third party engineer in accordance with Section B.1.x and Section B.4. The financial security shall not include consideration of potential salvage value of any solar energy system improvements. The Township may review the security amount every five years to ensure that it is sufficient to decommission the solar energy system.
  - 2) Such financial security shall be kept in full force and effect during the entire time that the solar energy system exists or is in place, and such financial security shall be irrevocable and non-cancelable. In addition, the party operating a solar energy system approved by the Township shall inform the Township in the event the approved solar energy system, or a material portion of that system, is sold to a third party, and that any such sale shall require the purchasing party to provide the Township with the security described by this

section along with relevant contact information.

- C. The Township shall have access to the escrow account funds for the expressed purpose of completing decommissioning if decommissioning is not completed by the applicant within three hundred sixty-five (365) days of the end of the project life or system abandonment.
  - D. Township officials or the Board's designated representative is granted the right of entry onto the site, pursuant to reasonable notice, to effect or complete decommissioning.
  - E. The property owner may waive the complete removal of the access road if the property owner executes a waiver and records the same in full with the Arenac County Register of Deeds.
  - F. The Township is granted the right to seek injunctive relief to effect or complete decommissioning, as well as the Township's right to seek reimbursement from applicant or applicant successor for decommissioning costs in excess of the amount deposited in escrow and to file a lien against any real property owned by applicant or applicant's successor, or in which they have an interest, for the amount of the excess, and to take all steps allowed by law to enforce said lien.
5. Inspections
- A. The Township shall have the right to provide 24-hour notice to the applicant to inspect, at any reasonable time, the premises on which any SES is located. The Township may hire one or more consultants to assist with inspections at the applicant's or project owner's expense. Inspections must be coordinated with, and escorted by, the applicant's operations staff at the SES.
  - B. Applicant shall provide, upon the request of the Township, system control data logs based on hourly summary increments. Data elements shall include, but are not limited to, input/output volts, amperage, frequency, time-stamp, source, subsystems, location. Applicant shall have no more than thirty (30) days to provide data. The Township may request additional data elements.
6. Maintenance and Repair
- Each Commercial or Large-Scale Solar Energy System must be kept and maintained in good repair and condition at all times. If the Township Board determines that a SES fails to meet the requirements of this ordinance, the Board shall provide notice to the applicant of the non-compliance and the Applicant has 30 days to resolve the elements of the failure. If the non-compliance is a safety hazard as determined by the Township Board, the Applicant shall have at most seven (7) days to resolve it. If Applicant has not remedied non-compliance issues within the aforementioned time periods, the Applicant shall immediately shut down the Solar Energy System and not operate, start, or restart the Solar Energy System until the issues have been resolved. Applicant shall keep a maintenance log on the solar arrays, which shall be available for the Township's review within 48 hours of such request. Applicant shall keep all property within the Solar Energy System facility neat, clean, and free of refuse, waste, or unsightly, hazardous, or unsanitary conditions.

7. Roads

Any material damages to a public road located within the Township resulting from the construction, maintenance, or operation of a SES shall be repaired within 60 days at the applicant's expense. The Applicant shall submit to the Arenac County Road Commission a description of the routes to be used by construction and delivery vehicles and road improvements that will be necessary to accommodate construction vehicles, equipment, or other deliveries. The Applicant shall abide by all State and County requirements regarding the use and repair of the roads.

8. Compliance with Additional Codes, Regulations, and Certifications

- A. Solar Energy facilities and the installation and use thereof, shall comply with the State construction code, the electrical code, and other applicable Local, County, State, and Federal codes.
- B. Certification will be provided that the Applicant has complied with or will comply with all applicable state and federal laws and regulations.
- C. No excavation, construction, or installation, for a Commercial or Large-Scale Solar Energy System may commence until all necessary permits have been issued for the entire project.
- D. A list of all planned and anticipated local, state, federal permits, required authorizations, or approvals related to the project must be provided to the Township at time of application submittal. The Applicant shall continue to submit copies of all such permits and approvals that have been applied for and obtained as they are received by the Applicant.
- E. The Applicant will provide certification that the system complies with or will comply with guidelines and regulations for setbacks as required by any and all registered airports, airfields or landing strips, public or private, within the township and as required for any public airport in the State of Michigan as established by MDOT and the FAA and complying with the Michigan Tall Structures Act (Public Act 259 of 1959).
- F. The applicant shall enter into an agreement with the Township that requires the Solar Energy System developer/owner, upon commencement of any operation, to pay the Township \$2,000.00 per megawatt of nameplate capacity of the Solar Energy System. The payment shall be used as determined by the Township for police, fire, public safety, or other infrastructure, or for other projects as agreed to by the Township and the applicant.

## SECTION 8.18 PUBLIC UTILITY FACILITIES & WIND ENERGY CONVERSION SYSTEMS

- A. **PURPOSE.** This Ordinance is intended to protect the health, safety, and welfare of the residents of the Township and to encourage the safe, effective, efficient and orderly development and operation of wind energy resources in the Township. These regulations have been developed with the intention of obtaining an appropriate balance between the desire for renewable energy resources and the need to protect the health, safety, and welfare of the community and the character and stability of the Township's residential, agricultural, recreational, commercial, and industrial areas and preserving and protecting the Township's important and sensitive environmental and ecological assets and areas, open space, viewscales and aesthetics, wetlands, and other ecological and environmentally sensitive areas.
- B. **PUBLIC UTILITIES.** Transmission lines, sewer lines, water mains, pumping stations, substations, poles, and related equipment owned or provided by public utility companies or by the Township shall be permitted in all zoning districts. Any equipment enclosures, substations, battery storage facilities, equipment storage buildings or similar structures shall be subject to the special use permit and/or site plan review requirements of Chapter 8 and Chapter 9. All communication towers or commercial wind energy conversion systems operated by public utility companies shall be subject to the requirements of this section. Unless specifically noted, all WECS permit information and supporting documentation shall be allocated reasonable Township review time based on project complexity and outside expertise review. Requirements shall be presented in written form and allow for a minimum of thirty (30) days before Township discussion. Township may at its discretion review provided documents sooner than thirty (30) days. Providing documents without time for the Planning Commission to review shall result in permit denial and require WECS applicants to reapply. Each ordinance section requires approval by the Planning Commission unless otherwise noted. Township shall review all documentation to assure that residents' health, welfare, and safety are not negatively impinged.
- C. **EXEMPT TOWERS AND WIND ENERGY CONVERSION SYSTEMS (WECS).** **Non-commercial** communication towers, antennas, wind energy conversion systems (windmills, turbines) and related facilities located on the premises of a farm, home, or business and which do not involve the sale of electricity or communication services off the premises shall be exempt from the requirements of section "Public Utility and Wind Energy Conversion Systems (WECS)" except for the requirement to comply with "Noise" sub-sections 23 (a) and 23 (b). Such units shall be allowed as a permitted accessory use in all zoning districts, providing the electricity or communication services are used on site for a farm, home or business. In the case of a WECS, the total height with the blade fully extended (Tip Height) shall not exceed one hundred thirty (130) feet, and the minimum clearance from ground level to the blade at its lowest point shall be twenty (20) feet. The minimum set-back from property lines and road right of way lines shall be equal to three (3) times the Tip Height of the unit.
- D. **COMMERCIAL WIND ENERGY CONVERSION SYSTEMS (WECS) APPLICATION.** Wind energy conversion systems, battery storage facilities and WECS testing facilities, other than those exempted under Section D "Exempt Towers and Wind Energy Conversion Systems (WECS)", shall only be allowed as special uses. An application for a special use permit shall be filed with the Township pursuant to Chapter 8. Supporting data and documentation must be submitted in their entirety at time of application. Applicant shall provide to the Township updated documents throughout the lifespan of the WECS upon request by the Township Board

or Planning Commission. Applicant shall also include the following:

1. **Permitting Costs:** An escrow account shall be set up when the Applicant applies for a Special Use Permit for a WECS, WECS Testing Facilities, or a Battery Storage Facility. The monetary amount filed by the Applicant with the Township shall be in an amount estimated by the Township Board to cover all reasonable costs and expenses associated with the special use zoning review and approval process, which costs can include, but are not limited to, fees of the Township Attorney, Township Planner, and Township Engineer, as well as any reports or studies which the Township anticipates it may have done related to the zoning review process for the particular application. Such escrow amount shall include regularly established fees. At any point during the zoning review process, the Township may require that the Applicant place additional monies into the Township escrow should the existing escrow amount filed by the Applicant prove insufficient. If the escrow account needs replenishing and the Applicant refuses to do so within fourteen (14) days after receiving notice, the zoning review and approval process shall cease until and unless the Applicant makes the required escrow deposit. Any escrow amounts which are in excess of actual costs shall be returned to the Applicant within ninety (90) days of permitting process completion. An itemized billing of all expenses shall be provided to the Applicant. The Township shall hire qualified professionals at the applicant's expense for each and any of the technical fields associated with the Special Use Permit, such as, but not limited to, electrical, acoustics, environment, economics, wildlife, health, and land-use.
2. **Environmental Assessment:** The Applicant shall fund an environmental assessment or impact study (including, but not limited to, assessing the potential impact on endangered species) as required by the Township for review. Studies shall be limited to the project area.
3. **Sound Study:** A background (ambient) sound study shall be performed, and a report provided which indicates Leq 1 hour, using A-weighting and C-weighting. Data shall be collected along property lines of adjoining Non-Participating and Participating Landowners. Measurement procedures are to follow the most recent versions of ANSI S12.18 and ANSI S12.9, Part 3 guideline (with an observer present). Measurements shall be taken using an ANSI or IEC Type 1 Precision Integrating Sound Level Meter. The study must include a minimum of a four-day (96 hour) testing period, include one Sunday, and divide data by daytime and nighttime. The sound background study shall report for the period of the monitoring topography, temperature, weather patterns, sources of ambient sound, and prevailing wind direction.
4. **Economic Impact:** The Applicant shall fund and provide an economic impact study for the area affected by the WECS project. Such a study shall include probable financial impact regarding jobs, tax revenue, lease payments and property values at a minimum. Business and residential growth potential shall be considered.
5. **Site Plan:** The Applicant shall submit a site plan prepared by a licensed civil engineer in full compliance with Chapter 9 of this Ordinance. The Applicant shall also submit a written explanation of the design characteristics and the ability of the structure(s) and attendant facilities to withstand winds, ice and other naturally occurring hazards, as well as information regarding health, welfare and safety in areas including, but not limited to, noise, vibration, shadow flicker, and blade ice deposits. This information shall also address the potential for the WECS to structurally fail or collapse, and what results should be expected in such an event. Additional requirements for a WECS site plan are as follows:

- a. Building Siting: GIS locations and height of all proposed buildings, structures, electrical lines, towers, guy wires, guy wire anchors, security fencing, and other above-ground structures associated with the WECS.
  - b. Nearby Building Siting: GIS locations and height of all adjacent buildings, structures, and above ground utilities located within three (3) times minimum set-back distance for Non-Participating Landowners where the proposed WECS and WECS Testing Facility will be located. The location of all existing and proposed overhead and underground electrical transmission or distribution lines shall be shown, whether to be utilized or not with the WECS or Testing Facility, located on the lots or parcels involved.
  - c. Access Driveways: GIS location of WECS and Testing Facility access driveways together with details regarding dimensions, composition, and maintenance of the proposed driveways. The site plan shall include traffic routes, time of the year use, staging areas, and any other physical sites related to the WECS. Construction of the Access Driveway that serves a WECS or Testing Facility is required to protect the public health, safety, and welfare by offering an adequate means by which governmental agencies may readily access the site in the event of an emergency. All such roads shall be constructed to allow access at all times by any emergency service vehicles, such as fire, police, and repair.
  - d. Facility Security: Security measures shall be sufficient to prevent unauthorized trespass and to protect health, welfare, and safety.
  - e. Maintenance Program and Resolution Program: The Applicant shall provide to the Township a written description of the potential problems and failures program to be used to resolve a WECS and WECS Testing Facility issue, including procedures and schedules for removal of the WECS structure when determined to be obsolete, dangerous, or abandoned.
  - f. Site Lighting: A lighting plan for each WECS and Testing Facility. Such plan must describe all lighting that will be utilized and documentation that FAA requirements are met. RADAR activated lighting shall be utilized if allowed by FAA. Such a plan shall include, but is not limited to, the planned number and location of lights, light color, activation methods, effect on township residents and whether any lights blink. Due to complexity in describing lighting effects for health, welfare, and safety, Applicant shall, if available, provide example locations with product descriptions, where similar, or proposed, lighting solutions are currently deployed. Lighting shall be fully shielded from the ground, be FAA compliant, and be of most current design to minimize lighting blinking and brightness nuisance. Flashing night lights are prohibited unless required by the FAA.
  - g. Proof of documents recorded at the Arenac County Register of Deeds utilizing Chapter 8 WECS Waiver Form.
  - h. Supplemental: Additional detail(s) and information as requested by the Planning Commission.
6. Site Insurance: The Applicant shall provide proof of insurance for each WECS at all times for at least \$2,000,000 for liability, property damage, livestock damage, and future earnings loss. Applicant shall provide yearly proof of insurance to the Township that confirms active coverage for the Applicant, Township, Participating Landowners, and Non-Participating

Landowners. Aggregate policies are allowed if minimum coverage per WECS is satisfied, and coverage is provided for every site where Applicant's equipment is located.

7. Removal Insurance (decommissioning): To ensure proper removal of each WECS structure and all appurtenant structures, roadways, etc. when they are abandoned or non-operational, application shall include a proof of the financial security in effect before permit is approved. The security company shall be licensed in the State of Michigan and the required insurance shall be in the form of 1) cash deposit or 2) performance (surety) bond selected by the Planning Commission and bonded by a top institution from the Department of the Treasury's Listing of Approved Sureties-Department Circular 570, T-list. The duration of the security shall be termed to the removal of each WECS as stated in the ordinance.
  - a. The amount of WECS security guarantee for demolition and removal shall be based upon the estimate by the applicant's independent third party expert, approved by the Township Board, and may be based upon decommissioning the entire project. The estimate may be verified by actual contractor quotes at the township's discretion. The security guarantee shall be no less than \$800,000 per wind energy conversion device. The security guarantee shall be reviewed and updated if required every five years at the rate of 1.5 times the CPI of that year.
  - b. Such financial guarantee shall be deposited or filed with the Township Clerk after a special use has been approved and before construction operations begin on the WECS project. Failure to keep such financial security in full force and effect at all times while the structure exists shall constitute a material and significant violation of a special use approval and of this ordinance and shall subject the Applicant to all available remedies to the Township, including enforcement action, fines, revocation of the special use approval and WECS removal.
  - c. The Applicant shall be responsible for the payment of all attorney fees and other costs incurred by the Township in the event that the structure is not voluntarily removed and the Township has to enforce removal.
  - d. If the WECS owner, operator, parent company, performance bond company defaults on any or all of the previously outlined decommissioning requirements, it shall result in the Township having the WECS removed and the costs assessed against the subject property.
8. Safety Information: The Applicant shall provide the manufacturer's safety data sheets for each model of turbine without distribution restraints to be kept at the Township Hall and other locations deemed necessary by Planning Commission or local first responders. The information shall include standard details for an industrial site such as materials, chemicals, fire access, safe distances during WECS failure, processes in emergencies, etc. The Applicant shall provide information and training to the Township Fire Department regarding fire and other possible hazards associated with the WECS.
9. Shadow Flicker: Applicant shall analyze and predict where shadow flicker could occur and become a problem, in particular where potential shadows could fall on non-participating residences at all (zero hours) or on participating properties for thirty (30) hours per year and shall show how that potential has been addressed in planning for the project.
10. Noise: Applicant shall provide an initial sound modeling report and a post-construction report for the project with a schedule and documentation which adhere to the following:
  - a. Chart outlining ordinance requirements and a description of compliance or non-

compliance.

- b. Declaration whether submitted data is modeled or measured.
  - c. Declaration of values, test methods, data sources, and similar information for all modeled or measured data.
  - d. Estimated timeline for project including ordinance requirements completed, construction, post construction, and validation testing.
  - e. Applicant measured data shall be accompanied by SCADA data confirming full power during testing. Unless otherwise requested, minimum SCADA data format shall be grouped in 24hr periods and 1 second intervals including wind vector, wind speed, temperature, humidity, time-of-day, WECS power output, WECS amps, WECS volts, WECS nacelle vector, WECS blade RPM, WECS blade pitch.
  - f. Permitting data may be submitted based on WECS manufacturer data. However, measured data from active and similar WECS facilities shall be simultaneously submitted.
  - g. It is acknowledged that WECS units sustain wear over time. Applicant is to submit data from existing and similar WECS installations showing aged sound measurements (to demonstrate compliance potential over the life of WECS) in accordance with this ordinance for 5, 10, and 15-year-old units.
  - h. Modeling factors shall be set for the worst-case environment, such as high humidity, frozen ground (non-porous), atmospheric variances (atmospheric profile Pasquill Stability Class E or F preferred), elevated noise source and no ground cover. Use of modeling methods (standards) shall have deficiencies (limitations) fully disclosed and shall include known error margins. Non-disclosure of modeling method deficiencies shall require resubmission of SUP application in its entirety with complete modeling deficiencies disclosed.
- 11. Interference Report. A report, prepared by a qualified professional, regarding the impact the WECS will have on existing receptions of television, radio, telephone (both cellular and land line), broadband internet, navigational devices, and alarms within one mile of the WECS Participating Property boundaries.
  - 12. Provide access plan during construction and operation phases. Plans for dust control on access roads must be provided along with a schedule for maintenance and weed control. The plan shall show proposed project service road ingress and egress access onto primary and secondary routes, and the layout of the array service road system.
  - 13. Evidence of the power purchase agreement with the utility company that will be purchasing electricity from the proposed development shall be provided to the Township.
  - 14. Any additional information or documentation requested by the Township Board, or other Township representative.
- E. **COMMERCIAL WIND ENERGY CONVERSION SYSTEMS (CWECS) – STANDARDS AND REQUIREMENTS.** The CWECS project shall meet the following standards and requirements:
- 1. Set-Back: The minimum set-back from the outer wall of a non-participating residence shall be 2.1 times the max blade tip height and 1.1 times the max blade tip height from participating residences, non-participating property lines or rights-of-way unless Applicant provides documentation in the form of a signed approval by affected Participating and Non-Participating Landowners waiving these requirements. Documents in full shall be recorded



with the Arenac County Register of Deeds. Use turbine pole centerline as WECS measuring point.

2. Density: Only three (3) WECS shall be allowed per square mile.
3. Aesthetic and Scenic Vista: The maximum Tip Height of any WECS or WECS Testing Facility shall not exceed 600 ft unless justified to township satisfaction.
4. Applicant Compliance: The WECS and related equipment shall comply with any and all State, Federal, County and Township requirements.
5. Blade Clearance: Blade arcs created by a WECS shall have a minimum of thirty (30) feet of clearance above the ground or above any structures within the arc of the WECS blades.
6. Braking: Each WECS shall be equipped with a braking, or equivalent device, capable of stopping the WECS operation in high winds with or without SCADA control. Braking system shall be effective during complete grid power failure where WECS are unable to communicate with SCADA control or receive power.
7. Identification Signage: Each WECS and Testing Facility shall have one sign per turbine, or tower, located at the roadside and one sign attached to base of each WECS, easily visible throughout all four seasons. Signs shall be at least two square feet in area. Signs shall be the same and shall uniquely identify each WECS. Signage shall comply with Chapter 7 of the Zoning Ordinance. Additional signage on and around the tower is recommended. The sign shall contain at least the following:
  - a. Warning of high voltage.
  - b. Participating Landowner's name, WECS owner's name, and operator's name.
  - c. Emergency telephone numbers and web address (list more than one number).
  - d. If WECS uses fencing, place signs on the perimeter fence at fence entrance gate.
  - e. Unique identification such as the address of the WECS. If more than one WECS is on an access drive, units shall have further identification such that first responders can positively identify each one. An identification example is: "321 Ruger Rd, Clare, MI, Unit A"
8. Communication Interference: Each WECS, Testing Facility, and Battery Storage Facility shall be designed, constructed and operated so as not to cause radio and television or other communication interference. In the event that verified interference is experienced and confirmed by a licensed engineer, the Applicant must produce confirmation that said interference has been resolved to property owner's satisfaction within ninety (90) days of receipt of the complaint. Any such complaints shall follow the process stated in Complaint Resolution Section E.17 below.
9. Infrastructure Wiring: All electrical connection systems and lines from the WECS to the electrical grid connection shall be located and maintained underground. Burial depth shall be at a depth that causes no known environmental, land use, or safety issues. Depth shall be a minimum of four (4) feet below grade, be deeper than drain tile and be in compliance with all current electrical codes. The Planning Commission may waive the burial requirement and allow above-ground systems in limited circumstances, such as unworkable geography and/or a demonstrated benefit to the township. The waiver shall not be granted solely on cost savings to Applicant. Request for variation shall consider aesthetics, future use of land, and effect on nearby landowners.
10. Road Damage: Any damage to a public road located within the Township resulting from the construction, maintenance, or operation of a WECS, Battery Facility or Testing Facility

shall be repaired at the Applicant/Owner's expense pursuant to Arenac County Road Commission requirements within ninety (90) days of the damage or maintenance completion. In difficult circumstances, the Township may allow repairs to exceed 90 days, but no repairs shall exceed 365 days from project commencement.

11. **Damage to Other Existing Infrastructure:** Applicant shall examine all existing infrastructure on the project site including, but not limited to, underground and above ground utilities (telephone, data and electrical service, water supply, sewer lines, etc.) and drain tile systems and shall denote these on the site plan. Damage to the drain tile shall be repaired as necessary as soon as possible.
12. **Liability Insurance:** The current WECS owner and operator shall insure for liability for the WECS without interruption until removed and comply with section "Site Insurance" to protect the current WECS owner and operator, the Township and the property owner.
13. **Coating and Color:** A WECS shall be painted a non-obtrusive (light environmental color such as beige, gray or off-white) color that is non-reflective. The wind turbine base and blades shall be of a color consistent with all other turbines in the area, if any. No striping of color or advertisement shall be visible on the blades or tower.
14. **Protection of Adjoining Property:** In addition to the other requirements and standards contained in this section, the Planning Commission shall not approve any WECS or Testing Facility unless it finds that the WECS or Testing Facility will not pose a safety hazard or unreasonable risk of harm to the occupants of any adjoining properties or to wildlife on adjoining properties.
15. **Removal and Site Renovation:** A condition of every WECS approval shall be adequate provision for the removal of the structure and appurtenances in their entirety whenever it ceases to produce power for 365 days or more. The Planning Commission can grant an extension of an additional one hundred eighty (180) days upon the WECS owner demonstrating that the structure will be put back into use. Removal shall include the proper receipt of a demolition permit from the Arenac County Building Department and proper restoration of the site to original condition. Removal of the structure, wiring, and its accessory use facilities shall include removing the tower caisson and all other components in their entirety. Restoration must be completed within 545 days of non-operation.
  - a. Participating Landowners may waive complete underground wiring removal if they can demonstrate that any and all remaining underground wiring will not negatively affect the environment, such as but not limited to, water quality, natural water flow, or area wildlife. Participating Landowner shall execute a waiver and record same in full with Arenac County Register of Deeds waiving these requirements.
16. **Operational, Maintenance, and Issue Resolution:** Each WECS and Testing Facility must be kept and maintained in good repair and condition at all times. If a WECS is not maintained in operational and reasonable condition or poses a potential safety hazard, the Applicant shall take expeditious action to correct the situation, including a WECS removal. The Applicant shall keep a maintenance log on each WECS and shall provide the complete log to the Township within thirty (30) days of request. Any inspection of a WECS requiring inspection by a Township expert shall be at the expense of the facility owner/operator.
17. **Complaint Tracking, Publishing, and Resolution:** The applicant shall maintain a complaint resolution process that includes a publicly available permanent phone number and contact information for residents to make complaints regarding the solar energy system related to

violations of the Zoning Ordinance or zoning approvals. Such process must include a form available to the public to submit complaints which shall also be made available online and be provided to the Township for distribution to residents. The applicant shall acknowledge receipt of such complaints within five (5) business days and shall notify the Township of the complaint and shall resolve any complaints within 30 days unless impractical, in which case the applicant must notify the Township and complainant of its assessment of the elements of the complaint, a plan for resolution of the complaint, and an estimated timeframe to resolve the complaint. The applicant shall notify the Township of any received complaints and resolutions to complaints on a yearly basis.

18. Regulation of WECS Commercial and Industrial Noise: To preserve quality of life, peace, and tranquility, and protect the natural quiet of the environment. This ordinance establishes the acoustic baseline, background sound levels for project design purposes, and limits the maximum noise level emissions for commercial and industrial developments. Residents shall be protected from exposure to noise emitted from commercial and industrial development by regulating said noise.
19. The Township Board reserves the right to require a WECS Applicant/Owner to shut down any WECS unit that does not meet ordinance requirements until such WECS unit meets ordinance requirements.
20. Noise:
  - a. No WECS shall generate or permit to be generated audible noise that exceeds 55 dBC Leq 1 hour during any time, for any duration, at a property line or right-of-way of a non-Participating property, unless Applicant/Owner provides documentation in the form of a signed agreement by the Participating and Non-Participating Landowner waiving these requirements. Said documents in full shall be recorded with the Arenac County Register of Deeds waiving these requirements.
  - b. No WECS shall generate or permit to be generated from permitted facilities any acoustic, vibratory, or barometric oscillations in the frequency range of 0.1 to 1 Hz that is detectable at any time and for any duration by confirmed human sensation or exceeds a sound pressure level from 0.1 to 20 Hz of 50 dB(unweighted) re 20uPA or exceeds an RMS acceleration level of 50 dB (unweighted) re 1 micro-g by instrumentation at a Non-Participating Landowner's property line or at any point within a Non-Participating Landowner's property.
  - c. No WECS shall generate or permit to be generated from permitted facilities any vibration in the low-frequency range of 0.1 to 20 Hz, including the 1, 2, 4, 8, and 16 Hertz octave bands that is perceivable by human sensation or exceeds an rms acceleration level of 50 dB (unweighted) re 1 micro-g at any time and for any duration either due to impulsive or periodic excitation of structure or any other mechanism at an occupied dwelling within a Non-Participating Landowner's property.
  - d. A tonal noise condition generated from permitted facilities shall be assessed an upward noise penalty of 5 dBA (example 42 increased to 47 dBA) for assessment to the nighttime and daytime noise limits.
  - e. A noise level measurement made in accordance with methods in section "NOISE MEASUREMENT AND COMPLIANCE" that is higher than 40 dBA or 50 dBC during any time of the day, adjusted for the penalty assessed for a tonal noise condition, shall constitute prima facie evidence of a nuisance.
  - f. An acoustic, vibratory, or barometric measurement documenting oscillations associated with permitted facilities with levels exceeding the limits in this subsection and in

Subsection F. below. shall constitute prima facie evidence of a nuisance.

- g. All WECS activity shall comply with limits and restrictions anywhere at any time on another property unless Applicant/Owner provides documentation in the form of a signed approval by affected Participating and Non-Participating Landowners. Documents in full shall be recorded with the Arenac County Register of Deeds waiving these requirements using only the WECS Waiver Form.

- h. Leq 1-hour shall be used for all measurements and modeling.

**F. NOISE MEASUREMENT AND COMPLIANCE**

1. Post construction validation and compliance testing shall be done by the owner/operator using industry standards to verify compliance with 50 dBA Leq 1 hour requirements. SCADA data shall be provided in the format determined by Township, Township licensed engineers, or Township professional acousticians. Compliance noise measurements are the financial responsibility of the WECS owner of the facility and shall be independently performed by a qualified professional acoustician approved by the Planning Commission when directed by the Clayton Township Board. Compliance noise measurements shall not exceed the stipulated noise limits; the Township shall assess for and apply tonal noise penalties when warranted.
2. Quality: Measurements shall be attended by an observer. All noise measurements shall exclude contributions from wind on microphone, tree/leaf rustle, flowing water, and natural sounds such as tree frogs and insects. The latter two can be excluded by calculating the dBA noise level by excluding octave band measurements above the 1000 Hz band as in ANSI S12.100 3.11. The ANS-weighted sound level is obtained by eliminating values for octave bands above 1000 Hz, or one-third octave bands above 1250 Hz, and A-weighting and summing the remaining lower frequency bands. The wind velocity at the sound measurement microphone shall not exceed 3 m/s (7 mph, maximum) during measurements. A 7-inch or larger diameter windscreen shall be used. Instrumentation shall have an overall internal noise floor that is at least 5 dB lower than what is being measured. During testing of elevated sources including, but not limited to, wind turbines, the atmospheric profile shall be Pasquill Stability Class E or F preferred, Class D as alternate.
3. Noise Level: Noise measurements shall be conducted consistent with ANSI S12.18 Procedures for Outdoor Measurement of Sound Pressure Level and ANSI S12.9 Part3 (Quantities and Procedures for Description and Measurement of Environmental Sound – Part 3: Short-term Measurements with an Observer Present), using Type 1 meter, A-weighting, Fast Response.
4. Tonal Noise: Tonal noise shall be assessed using unweighted (linear) 1/3 octave band noise measurements with time-series, level-versus-time data acquisition. A measurement shall constitute prima facie evidence of a tonal noise condition if at any time (single sample or time interval) the noise spectrum of the noise source under investigation shows a 1/3 octave band exceeding the average of the two adjacent bands by 15 dB in low one-third octave bands (10–125 Hz), 8 dB in middle-frequency bands (160–400 Hz), or 5 dB in high-frequency bands (500–10,000 Hz).
5. Sample Metric and Rate: Noise level measurements for essentially continuous non-time-varying noise sources shall be acquired using the Leq(Fast) metric at a sample rate of 1-per-second. For fluctuating or modulating noise sources including, but not limited to, wind turbines, a 10-per-second sample rate or faster shall be used. These sample rates shall apply

to dBA, dBC and unweighted 1/3 octave band measurements.

6. Reporting: Measurements of time-varying dBA and dBC noise levels and 1/3 octave band levels shall be reported with time-series level-versus-time graphs and tables. Graphs shall show the sound levels graphed as level-vs-time over a period of time sufficient to characterize the noise signature of the noise source being measured. For 1-per-second sampling, a 5-minute-or-longer graph shall be produced. For 10-per-second sampling, a 30-second-or-longer graph shall be produced. Reporting shall identify and graphs shall be clearly notated, what was heard and when the noise source is dominating the measurement. Reporting shall furnish all noise data and information on weather conditions and the Pasquill Class occurring during testing.

#### G. ORDINANCE COMPLIANCE

1. Non-compliance with ordinance requirements during Special Use Permit process shall result in denial or revocation of the permit.
2. Non-compliance with post-construction ordinance requirements shall result in permit revocation, and WECS decommissioning, and shall be subject to all applicable actions allowed by law. The Owner/Operator shall be responsible for attorney and expert investigation fees regarding any non-compliance.
3. For non-nuisance compliance issues, and upon formal notice from Township to the WECS permit holder, the WECS permit holder shall respond within thirty (30) days with a resolution plan and shall have up to one hundred eighty (180) days to resolve the compliance breach. Failure to resolve any compliance breach shall result in permit revocation. Unless otherwise stated, Applicant shall provide in advance and comply with ordinance requirements prior to Township granting the special use permit. Conditional permits shall not be allowed.
4. Upon change of ownership, operator, or parent company, the Township shall receive from the new owner, operator or parent company notification and updated documents within 90 days including, but not limited to, legal proof of change, corporate legal contact, security bond updates, emergency contacts, and local contact.
5. The owner/operator of a WECS shall submit a report to the Township annually that will include:
  - a. The status of the WECS operation and maintenance and any planned changes to the operation
  - b. The status of any complaint(s) and complaint corrective actions
  - c. A confirmation of sufficient liability insurance (certificate of insurance)
  - d. A confirmation of the current security guarantee.

#### H. COMPLIANCE WITH CODES, REGULATIONS AND CERTIFICATIONS

1. Wind Energy Conversion facilities and the installation and use thereof, shall comply with the State construction code, the electrical code, and other applicable Local, County, State, and Federal codes.
2. Certification will be provided that the Applicant has complied with or will comply with all applicable state and federal laws and regulations.
3. No excavation, construction, or installation, for a Commercial Wind Energy Conversion System may commence until all necessary permits have been issued for the entire project.
4. A list of all planned and anticipated local, state, federal permits, required authorizations, or approvals related to the project must be provided to the Township at time of application

submittal. The Applicant shall continue to submit copies of all such permits and approvals that have been applied for and obtained as they are received by the Applicant.

5. The Applicant will provide certification that the system complies with or will comply with guidelines and regulations for setbacks as required by any and all registered airports, airfields or landing strips, public or private, within the township and as required for any public airport in the State of Michigan as established by MDOT and the FAA and complying with the Michigan Tall Structures Act (Public Act 259 of 1959).
6. The applicant shall enter into an agreement with the Township that requires the Wind Energy Conversions System developer/owner, upon commencement of any operation, to pay the Township \$2,000.00 per megawatt of nameplate capacity of the Wind Energy Conversion System. The payment shall be used as determined by the Township for police, fire, public safety, or other infrastructure, or for other projects as agreed to by the Township and the applicant.

## **CHAPTER 9 DEVELOPMENT SITE PLAN REVIEW**

### **SECTION 9.1 INTENT AND PURPOSE**

Land development affects the character of the community and its public health, safety, and general welfare. This Chapter provides that all the land uses shall be subject to Development Site Plan review except single-family or duplex dwellings located on a single lot and agricultural uses not subject to a Special Use Permit or as otherwise indicated in this Ordinance.

### **SECTION 9.2 SCOPE**

All land developments, excluding those addressed in Section 9.1 above, including structures to be erected, moved, externally altered, added to, or to have any change in use which would affect their approved off-street parking, landscaping, site drainage, or any other requirements, shall be reviewed under this Chapter. Land divisions for any purpose other than Planned Developments shall be reviewed under this Chapter. No building or zoning permit shall be issued except in accordance with a plan approved under this Chapter.

No person shall undertake any activity or use, including any grading, clearing, cutting and filling, excavating, or tree removal associated therewith, for which Development Site Plan approval is required by this Ordinance without first obtaining such approval, nor shall such activity proceed prior to obtaining necessary soil erosion and sedimentation control permits, wetlands permits, or flood plain permits.

### **SECTION 9.3 APPLICATION AND FEE**

An application for site plan review shall be made by filing the application form, required information, and the required fee with the Township Zoning Administrator.

The application fee shall be set by resolution of the Township Board. Once accepted by the Zoning Administrator, no portion of the fee shall be returned to the applicant, unless authorized by an action of the Township Board.

The Township may hire a qualified expert or experts to aid in reviewing site plans; the expense of which shall be borne by the applicant.

### **SECTION 9.4 REVIEWING AUTHORITY**

The Planning Commission, or the Township's qualified designee, shall review development site applications in accordance with the standards presented in this Chapter and Ordinance. The Planning Commission shall review the site plan application and its designee's report, and shall thereafter approve, approve with conditions, or deny the request for Development Site Plan approval.

## SECTION 9.5 MAJOR AND MINOR DEVELOPMENT PROJECTS DEFINED

A minor project, for the purposes of this Chapter, is defined as follows:

- A. The remodeling, alterations, or additions to commercial and industrial buildings of less than twenty-five (25%) percent of the square footage of the existing structure.
- B. Improvements to, erection of, or reconstruction of accessory buildings and structures, parking areas, and similar facilities.
- C. Site changes that do not exceed twenty-five (25%) percent of the existing developed site area.

Major projects are all projects not listed above, including, but not limited to, site condominium projects, multi-family apartment project developments, commercial and industrial buildings and additions, alterations or redevelopment of buildings and sites greater than listed above.

## SECTION 9.6 CONCEPTUAL DEVELOPMENT SITE PLAN REVIEW

The applicant is encouraged to submit a conceptual plan for review by the Planning Commission in order that errors, miscalculations or misconceptions are not incorporated into preliminary plans. This procedure is intended to be informational only and shall not necessarily bear directly upon later reviews. Submissions for this review may consist of all those items listed in Section

9.7 that shall present an adequate overview of the intended project.

## SECTION 9.7 SITE PLAN REVIEW; REQUIRED INFORMATION

For major projects, Development Site Plan Review shall entail the examination of all the items in Section 9.7 B. For minor projects, the abbreviated review indicated in Section 9.7 A is allowed.

### A. Required Submittals - Minor Projects

All project applicants shall submit to the Zoning Administrator, the Development Site Plan application provided by the Township and twelve (12) copies of the detailed site plan. The detailed site plan shall consist of the following items for review:

- 1. A site plan, drawn to scale with a north arrow indicated showing the property boundaries, the proposed location of structures and other improvements including, where appropriate, roads, driveways, pedestrian walks, off-street parking areas, landscaped areas, fences and walls.
- 2. A conceptual landscape plan, including required buffers, existing vegetation, water courses, and other significant site features, and proposed new plantings.
- 3. Accurate scale drawings of all signs indicating their size, material, color and illumination, if any, and the method of installation of any free-standing sign.



4. Conceptual grading and drainage plans with existing and proposed elevations.
5. Such other data as may be required by the Planning Commission to ensure that the purposes of this Chapter are satisfied. The Commission shall state for the record its reasons for asking for additional information.
6. The Planning Commission may waive a requirement or requirements listed above if not deemed necessary for a thorough review. The Commission shall state for the record its reasons for taking such action.

**B. Required Submittals - Major Project**

The following are among the items to be included on the detailed plan for major projects. Development Site Plans should be accurately drawn at the scale of at least one (1) inch equals one hundred (100) feet showing the site and all land and structures within five hundred (500) feet of the site. The Planning Commission may require details to be provided in a scale as great as one (1) inch equals twenty (20) feet. If multiple sheets are used, each must be labeled, dated, and the preparer identified.

1. The location of proposed or existing property lines, dimensions, legal descriptions, tax parcel numbers, setback lines, and monument locations
2. A vicinity map drawn at a scale of a minimum of one (1) inch equals two thousand (2,000) feet with a north arrow indicated.
3. Existing topographic elevations at two-foot intervals, proposed grades and directions of drainage flows.
4. The location and type of existing soils on the site and any certifications of borings.
5. Boundaries and elevations of existing and proposed water courses and water bodies, including county drains and man-made surface drainage ways, flood plains and wetlands within five hundred (500) feet of the project site and proposed erosion control measures.
6. Location of existing and proposed buildings and intended uses thereof.
7. Proposed location of accessory structures, buildings and other appurtenances, including, but not limited to, all flag poles, light poles, bulkheads, decks, storage sheds, transformers, air conditioners, generators, and similar equipment, and the method and details of screening, where applicable.
8. Location of existing public roads and streets that abut or cross the site plus rights-of-way and private easements of record.
9. Location and dimensions of proposed streets, drives, curb cuts, and access easements, as well as acceleration, deceleration and passing lanes or tapers (if any) serving the development. Details of entryway and entryway sign locations should be separately depicted with elevation views.
10. Location, design, and dimensions of existing and proposed curbing, barrier-free access, carports, parking areas (including indication of all spaces, method of surfacing and striping), fire lanes and all lighting and signing thereof.
11. Location, size and characteristics of all loading and unloading areas.
12. Location and design of all trails, walkways, bicycle paths, and other areas for public use.

13. Location of water supply lines and/or wells, including fire hydrants and shut-off valves, and the location and design of storm sewers, retention or detention ponds, waste water lines, clean-out locations, connection points and treatment systems, including septic systems, if applicable.
14. Location and routing of all other utilities on the site, including, but not limited to, natural gas, electric, and data and telecommunication transmission lines.
15. Proposed location, dimensions, and details of common open spaces and common facilities, such as community buildings, or swimming pools, if applicable.
16. Exterior lighting locations with areas of illumination illustrated as well as the type of fixtures and shielding to be used.
17. Location and specifications for all fences, walls, and other screening features with cross sections.
18. General location and type of significant existing vegetation, including the location and size of all existing trees with a trunk of six (6) inches or more in diameter, four and one-half (4 ½) feet above the ground, if not located in a forest. Forests or large areas of vegetation to be preserved shall be demarcated and designated as such.
19. Locations and specifications for all proposed perimeter and internal landscaping and other buffering features.
20. Location, size and specifications for screening of all trash receptacles and other solid waste disposal facilities.
21. Location and specifications for any existing, proposed, or required above or below ground storage facilities for any chemicals, salts, flammable or hazardous materials, as well as any containment structures or clear zones required by government regulations and a Pollution Incident Prevention Plan as required by the Act 245 Program.
22. Identification of any significant or unique site features.
23. Indication of any significant views onto or from the site.
24. The zoning classifications of the site and adjacent properties.
25. North arrow, scale and date of original submittal and all revisions.
26. Such other data as may be required by the Planning Commission to ensure that the purposes of this Chapter are satisfied. The Commission shall state for the record its reasons for requiring such data.
27. The Planning Commission may waive a requirement or requirements listed above if not deemed necessary for a thorough review. The Commission shall state for the record its reasons for taking such actions.

## SECTION 9.8 SITE PLAN REVIEW PROCEDURE

- A. When all necessary information as provided by this Chapter is submitted to the Zoning Administrator, the Zoning Administrator shall notify the Planning Commission Chairman.
- B. The Chairman shall place the Site Plan Review on the next available meeting agenda for discussion by the Commission and shall notify the applicants of this action.
- C. Within a reasonable time and based upon the standards in Section 9.9, the Planning Commission shall act either to approve or to deny the request for Development Site Plan approval or to provide information to the applicants by which they may amend their plans to conform to certain stipulated requirements to obtain approval. Upon re-submittal, the Planning Commission shall, within sixty (60) days, inform the applicants of the acceptance or rejection of their plans.
- D. If plans are denied at any time, the Planning Commission shall submit in writing to the applicants the reasons for the action.

## SECTION 9.9 DEVELOPMENT SITE PLAN REVIEW STANDARDS

The following standards shall be utilized in reviewing all Development Site Plans. These standards are intended to provide guidance for the applicant in the production of plans as well as a method for the review of site plans by Township Officials.

### A. Elements of Development Site Plan Review

- 1. Neighborhood and Community Elements:
  - a. Historical Preservation. Owners of existing structures of historical significance are encouraged to preserve these structures and to renovate them in a manner which preserves that significance and places them appropriately among other like structures. Variances may be granted by the Zoning Board of Appeals when necessary to accomplish this purpose.
  - b. Relation of Proposed Buildings to Environment. Proposed structures shall be related harmoniously to the terrain, the size and shape of a lot, the character of adjoining properties, and the existing buildings in the vicinity that have a visual and functional relationship to the proposed buildings. Such a relationship may include the enclosure of a space in conjunction with other existing buildings or other proposed buildings and the creation of focal points with respect to avenues of approach, terrain or other buildings. In all cases, open spaces should be created that are usable. Other concerns which shall be addressed include microclimate effects created by structure placement, solar exposure and shadow effects, wind and canyon effects, including snow build-up and drifting, and effects upon wetlands, drainage, and habitat systems. Views and privacy, while dealing with the siting of buildings on individual parcels, shall be provided for on a larger scale by buffering

and screening to preserve or create unintrusive site lines wherever possible.

- c. Landscape Preservation. Except in urbanized areas, the landscape shall be preserved in as natural a state as possible by minimizing tree and soil removal. Areas such as steep slopes, wetlands, and littoral areas, as well as resource areas such as forests, wooded lots and farmlands shall be preserved wherever possible. Any grading changes shall be in keeping with the lay of neighboring lands. Golf courses in particular shall be designed to retain as much of the native terrain and herbage as possible and shall provide wide screening buffers between fairways and the public roadways and other non-compatible uses.
  - d. Business Districts. Design standards may be developed by particular business districts, and if promulgated, will be used to design the elements of structures and site improvements proposed within these districts.
  - e. Trafficways and Gateways. Site plans shall address the effects of new structures or uses upon traffic at or near their sites. A major use may require a traffic study to determine potential effects and possible necessary mitigating actions. Proposed uses at entryways to the community shall provide appropriate design features to welcome travelers to the community.
  - f. Security, Fire and Emergency Access. Setbacks, access paths with adequate lane widths and sufficient areas for fire and emergency vehicle turnarounds, and fire hydrant locations (where applicable) shall be provided per existing statutes and ordinances and in accordance with requirements of the appropriate reviewing authorities. All buildings or groups of buildings shall be arranged to permit emergency vehicle access by some practical means to all sides. Where applicable, security shall also be considered integral to the design. Sufficient illumination and ease of surveillance shall be addressed where appropriate.
2. Engineering Elements:
- a. Drives, Parking and Circulation. Parking spaces sufficient only for the intended use shall be allowed. Calculations and justification for spaces provided shall be noted on the plans. With respect to vehicular and pedestrian circulation, including walkways, interior drives and parking, attention shall be given to the location and number of access points to the public streets, width of interior drives and access points, general interior circulation, separation of pedestrian and vehicular traffic, and arrangement of parking areas that are safe and convenient and do not detract from the design of proposed buildings and structures and neighboring properties. Parking areas shall be screened from roadways and from other adjacent uses by landscaped areas or by walls. Sufficient distance between drives and property lines shall be provided.

- b. Surface Water Drainage. Attention shall be given to proper site surface drainage so that removal of surface waters will not adversely affect neighboring properties or the public storm drainage system. Storm water shall be removed from all roofs, canopies and paved areas, and carried away in such a manner that it will not obstruct the flow of vehicular or pedestrian traffic and will not puddle or freeze in paved areas. Run-off waters shall be detained or retained to remove sediments and to prevent erosion.
- c. Utility Service. New utility service distribution lines shall be underground wherever feasible. Any existing utility installations remaining above ground shall be placed out of sight as much as possible and situated harmoniously in relation to neighboring properties and the site. The proposed method of sanitary sewage disposal from all buildings shall be indicated. All utility installations shall be carried out in accordance with the current standards, rules and regulations of those entities having jurisdiction. No project shall be approved without permits or authorization from all appropriate governing agencies.

B. General and Necessary Conditions

All other standards and requirements of this Ordinance and other applicable ordinances, regulations and statutes must be met by development plans presented for review under the provisions of this Chapter. It is specifically intended that a use allowed in the Township will not be or become a nuisance within its neighborhood or to the Township as a whole. The Planning Commission may confer or consult with a qualified expert, e.g., a planner, engineer, or landscape architect, at the applicant's expense, to aid it in evaluating a difficult or complex project.

SECTION 9.10 FINAL DEVELOPMENT SITE PLAN APPROVALS

- A. Complete drawings, plus all certified final drawings and plans which are subject to Development Site Plan review and contain all necessary modifications or additions required, shall be submitted before final Development Site Plan approval is granted.
- B. Conditions of Final Approval. Development Site Plans may be approved subject to the performance of certain conditions, including the provision of required improvements as the Commission shall deem to be reasonable and necessary, or advisable under the circumstances, so that the objectives of the Zoning Ordinance, the Master Plan, and any other Township policies and regulations shall be achieved. A Development Site Plan may be approved conditionally upon necessary or required approvals by other local, county, state, or federal agencies.

1. Performance Guarantee for Required Conditions. Security may be required to ensure performance of required conditions. The applicant may be required to furnish security in the form of a bond, certified check, or an irrevocable bank letter of credit, acceptable to the Township, in the amount fixed by the Planning Commission. If security is required, the Zoning Administrator shall not issue a zoning permit until the required performance guarantee is received and verified by the Township Clerk.
2. Provisions of Required Improvements. Whenever a Development Site Plan approval is granted or modified subject to the conditions that specified improvements be provided by the applicant, such improvements shall be installed by the applicant and approved and accepted by the Zoning Administrator.
3. Non-performance of Required Conditions. In the event the applicant defaults in making the improvements for which the performance guarantee was required, the Township Board shall have the right to enforce a letter of credit or to use the monies being held as security to complete the improvements through contract or otherwise, including specifically the right to enter upon the subject property to make the improvements. If the performance guarantee is not sufficient to cover the costs incurred by the Township to complete the improvements, including attorney's fees and court costs, if any, the applicant shall be required to pay the Township the amount by which the costs of completing the improvements exceeded the amount of the performance guarantee. These costs shall be collected in the same manner as delinquent taxes or as allowed by law.
4. Condition Declared Void. Whenever there becomes final any judgment of a court of competent jurisdiction declaring one or more of conditions of a development review approval to be void or ineffective, or enjoining or otherwise prohibiting the enforcement or operation of one or more of such conditions, said Development Site Plan approval shall cease to be valid and all rights or privileges granted thereby shall end.
5. Violation of Required Condition or Conditions. Whenever a Development Site Plan is approved or modified by the Planning Commission subject to a condition or conditions, the use or enjoyment of the Development Site Plan is in violation of any such condition shall constitute a violation of the Zoning Ordinance and Development Site Plan approval may be revoked.

#### SECTION 9.11 SPECIAL USES AND CONCURRENT APPROVALS

The Planning Commission may choose to review Special Use Permit and site plan review submittals concurrently. In the event of concurrent review, the Planning Commission shall make sure that both the site plan and special use submittals satisfy all requirements of this Ordinance.

#### SECTION 9.12 AMENDMENTS TO APPROVED DEVELOPMENT PLANS

- A. Amendments to an approved Development Site Plan may be made by the Planning Commission upon written request by the landowner. Minor changes to an approved Development Site Plan may be approved by the Zoning Administrator after construction has begun, provided no such change results in any of the following:
1. A significant change in use or character of the development.
  2. An increase in overall coverage of structures.
  3. An increase in the intensity of use.
  4. A reduction in the required open space.
  5. A change that may increase the storm water run-off to adjacent properties.
  6. A reduction in required off-street parking and loading.
  7. A reduction in required pavement widths or utility sizes.
  8. A significant increase in traffic on public streets or an increase in the burden on public utilities or services.
- B. If the Zoning Administrator finds that a proposed amendment to an approved Development Site Plan does not qualify as a minor change, he shall notify the landowner that he must apply for a modification of the Development Site Plan in accordance with the procedures of Section 9.7; or if the developer or landowner has already effected the changes in question, the Zoning Administrator shall immediately notify the permit holder in writing that Development Site Plan approval has been suspended pending approval by the Planning Commission of the proposed amendment. The permit holder's notice shall be delivered personally or by certified mail. The permit holder shall then apply for a modification of the Development Site Plan in accordance with the procedures in Section 9.7 hereof.

#### SECTION 9.13 TIME LIMIT FOR APPROVED SITE PLANS

- A. A site plan approval granted pursuant to this Chapter shall be valid for one (1) year from the date of approval. If construction has not commenced by the end of this period, and if a written request for extension of the approval has not been submitted by the applicant, the site plan approval shall expire.
- B. The Planning Commission may grant one (1) extension of the site plan approval for a one (1) year period upon submittal in writing by the applicant of a request for an extension. The Planning Commission shall grant such an extension only upon presentation of written evidence indicating that construction of the project has been delayed by factors beyond the reasonable control of the applicant and that construction on the project is likely to proceed within one (1) year.

#### SECTION 9.14 APPEAL OF SITE PLAN REVIEW DECISIONS

Any person aggrieved by the decision of the Planning Commission in the approval or denial of a site plan review may appeal said decision to the Zoning Board of Appeals. The appellant shall file a letter with the Zoning Administrator within ten (10) days of the decision of the Planning Commission on the site plan. The appellant's letter shall specify the grounds for the appeal, and the appeal shall be limited to the issues raised in the letter.

In its review of the decision, the Zoning Board of Appeals shall consider the following:

1. The appellant's letter and validity of grounds for appeal.
2. The minutes taken during the Planning Commission's review of the site plan.
3. Any other documentation presented to the Planning Commission prior to its decision on the site plan.
4. Any verbal or written information submitted to the Zoning Board of Appeals in response to a request for the information by the Zoning Board of Appeals.

In its determination of the appeal, the Zoning Board of Appeals may take any of the following actions:

1. Affirm the decision of the Planning Commission with or without modification.
2. Refer the matter back to the Planning Commission for further consideration, study, or additional documentation. The Zoning Board of Appeals shall inform the Planning Commission of the issues that it believes are in need of further consideration, study, or documentation. Once the Planning Commission has examined the issues, it shall send the matter with a report back to the Zoning Board of Appeals for a decision.
3. Reverse the decision of the Planning Commission if the decision is not in accordance with the intent and purpose of this Ordinance.



## **CHAPTER 10 ADMINISTRATION AND ENFORCEMENT**

### **SECTION 10.1 ZONING ADMINISTRATOR**

Unless otherwise designated under a specific provision of this Ordinance, the Zoning Administrator shall be responsible for the administration of this Ordinance. The Zoning Administrator shall be a qualified individual appointed by the Township Board. The terms, conditions, and rate of compensation shall be determined by the Board. All authority delegated to the Zoning Administrator is granted by the Township Board.

### **SECTION 10.2 ZONING PERMIT REQUIRED**

Except as otherwise provided, no building or structure of any kind, including signs, shall be erected or any regulated use undertaken until a permit has been issued by the Zoning Administrator. Once it has been determined by the Zoning Administrator that the proposed building, structure, or use is in conformance with all the provisions of this Ordinance and appropriate fees are paid, a Zoning Permit shall be issued. The Zoning Permit shall be non-transferable and shall remain valid for one (1) year from the date of issuance. A Zoning Permit must be obtained prior to the application for a building permit. Any handicapped accessible appurtenance shall be exempt from zoning permit fees.

### **SECTION 10.3 APPLICATION AND FEE**

All applications for Zoning Permits shall be made to the Zoning Administrator with the accompanying fee. The fee shall be set by the Township Board. The application shall be made up of the following:

- A. A site plan drawn to scale showing the location and size of the proposed building, structure, or use as it relates to roads and rights-of-way, lot lines, other buildings on the site, existing or proposed sewage disposal facilities, existing or proposed water wells, and lakes, streams, or wetlands, and any other items required by this Ordinance to illustrate the intended use and its site; or the site plan approved by the Planning Commission or Zoning Board of Appeals.
- B. A statement by the applicant outlining the intended use and purpose for the proposed building, structure, or land in question.

### **SECTION 10.4 ISSUANCE OF ZONING PERMIT**

Within ten (10) days of the receipt of the application for Zoning Permit, the Zoning Administrator shall issue a Zoning Permit if it is found that the application is complete and that the proposed building, structure, and/or use is in conformance with the requirements of this Ordinance and all required fees are paid. The Zoning Administrator shall keep a record of all permits issued and report these monthly to the Planning Commission and the Township Board.

#### SECTION 10.5 FAILURE TO OBTAIN PERMIT

The permit fees, set by the Township Board from time to time, may include a penalty fee for before beginning construction without obtaining a proper zoning permit..

#### SECTION 10.6 DENIAL OF ZONING PERMIT

Within ten (10) days of the receipt of the application for Zoning Permit, the Zoning Administrator shall deny a Zoning Permit if it is found that the application is not complete or that the proposed building, structure, or use cannot be located in conformance with the requirements of this Ordinance, or the required fees are not paid. The Zoning Administrator shall inform the applicant in writing of the reasons for the denial of the permit. The Zoning Administrator shall keep a record of all permits denied and report these monthly to the Planning Commission and the Township Board.

#### SECTION 10.7 REVOCATION OF ZONING PERMIT

The Zoning Administrator shall have the power to revoke or cancel any Zoning Permit in case of failure or neglect to comply with any provision of this Ordinance or any false statement or misrepresentation made in the application. The revocation or cancellation of the Zoning Permit shall be made in writing and all construction, uses, or other activities allowed by the permit shall cease.

#### SECTION 10.8 APPEALS OF THE DECISION OF THE ZONING ADMINISTRATOR

Any decision of the Zoning Administrator concerning the enforcement or interpretation of this Ordinance may be appealed to the Zoning Board of Appeals. The appeal, along with the appropriate fee, shall be filed with the Township Clerk within ten (10) days of the decision of the Zoning Administrator. The Zoning Board of Appeals shall review the available evidence and make a decision to uphold or reverse the decision of the Zoning Administrator.

#### SECTION 10.9 ENFORCEMENT

- A. Any building or structure moved, erected, razed, converted, or used and any use of land or premises which is carried on in violation of this Ordinance is declared to be a nuisance per se. All buildings, structures, and land uses considered to be violations of this Ordinance shall be reported to the Zoning Administrator.
- B. The Zoning Administrator shall inspect all alleged violations of this Ordinance. In the event that a violation is found, the Zoning Administrator shall issue within seven (7) days from the date of inspection, a written order to correct the violation and to otherwise comply with the provisions of this Ordinance.

- C. After the order to correct has been issued, the violation shall be corrected within thirty (30) days. If the violation cannot be corrected within 30 days, an application to extend the correction period may be made to the Township Board. Only one such extension shall be granted. Any violation not corrected shall be reported to the Township Board. The Township Board may then initiate legal procedures against the violator.
- D. Any person, firm, or organization that violates or refuses to comply with any provision of this Ordinance or lawful order of the Zoning Administrator, Zoning Board of Appeals, or Township Board issued pursuant to this Ordinance shall be guilty of a civil infraction, upon conviction thereof, shall be punishable by a fine, not to exceed \$500.00. Each day during which a violation continues shall be deemed a separate offense. The Township Board reserves the right to pursue civil remedies (the collection of fees, injunctive relief, and corrective measures) for certain provisions of this Ordinance in accordance with applicable state statutes.
- E. The Zoning Administrator, the Township Board, and the Zoning Board of Appeals, or any interested party may bring a suit for an injunction, mandamus, abatement or any other appropriate method to prevent, enjoin, abate, or remove any violations of this Ordinance. The rights and remedies provided herein are cumulative and in addition to all other remedies provided by law.

#### SECTION 10.10 PUBLIC NOTICE

All applications requiring a public hearing shall comply with the following provisions:

- A. When the provisions of this Ordinance or the Michigan Zoning Enabling Act require that notice be published, the Zoning Administrator or the Clerk shall prepare, or have prepared, the content of the notice and have it published in a newspaper of general circulation in the Township of Clayton and mailed or delivered as provided in this Section.
- B. All email, postal mail, personal and newspaper notices for public hearing shall:
  - 1. Describe the nature of the request: Identify whether the request is for rezoning, text amendment, special land use, planned unit development, variance, appeal, ordinance interpretation or another purpose.
  - 2. Identify the location: Indicate the property, or properties, that are the subject of the request. The notice shall include a listing of all existing street addresses of the subject property. Street addresses need not be created and listed if no such addresses currently exist for the property. Other means of identification may be used such as a tax parcel identification number, identifying the nearest cross streets, or by including a map showing the location of the property or properties if the subject of the hearing is for less than eleven (11) adjacent properties or when the request is for an ordinance interpretation not involving a specific property.
  - 3. Indicate the date, time and place of the public hearing(s).

4. Include a statement describing when and where written comments will be received concerning the request and where written text, maps or other materials pertinent to the hearing may be viewed or obtained.
- C. When the provisions of this Ordinance or state law require that a personal or mailed notice be given:
1. Notice shall be provided:
    - a. To the owner of property for which approval is being considered, and the applicant, if different than the owner of the property.
    - b. Except for rezoning requests involving eleven (11) or more adjacent properties or an ordinance interpretation request that does not involve a specific property, to all persons to whom real property is assessed and to occupants of all structures within three hundred (300) feet of the boundary of the property subject to the request, regardless of whether the property or the occupant is located within the boundaries of the Township of Clayton. In structures containing four or fewer dwelling units, one occupant of each unit must be given notice. In structures containing more than four units, a single notice may be given to the owner or the manager to be posted at the primary entrance to the structure. If the name of the occupant of the property is not known, the term “occupant” may be used in making notification.
    - c. To all neighborhood organizations, public utility companies, railroads, the manager of each airport and other persons or organizations which have requested to receive notice pursuant to Section 10.11, Registration to Receive Notice by Mail, that are within the zone or district affected by the subject request.
  2. Notice Affidavit: Notice as described in this section shall be considered effective when personally delivered or when deposited during normal business hours for delivery with the United States Postal Service or other public or private delivery service. The secretary of the planning commission, the zoning administrator or the clerk shall prepare a list of property owners, registrants, and others to whom the notice was given and shall provide an affidavit thereof.
- D. The above notices shall be given not less than 15 days before the date the application will be considered for approval.

#### SECTION 10.11 REGISTRATION TO RECEIVE NOTICE BY MAIL OR EMAIL

- A. Any neighborhood organization, public utility company, railroad or any other person or organization may register with the Zoning Administrator or the Clerk to receive notice of hearing of applications by postal mail or email for approval pursuant to Section 10.10.C.c. Fees may be assessed for the provision of this notice.
- B. All registered entities or persons must re-register bi-annually to continue to receive notification pursuant to this Section.

## **CHAPTER 11 ZONING BOARD OF APPEALS**

### **SECTION 11.1 AUTHORIZATION**

There is hereby established a Zoning Board of Appeals, which shall derive its authority from Public Act 110 of 2006, the Michigan Zoning Enabling Act, as amended. The Board of Appeals shall ensure that the spirit and intent of this Ordinance is upheld, that the public health, safety, and welfare is advanced, and that substantial justice is done.

### **SECTION 11.2 MEMBERSHIP AND PROCEDURES**

- A. The Township Zoning Board of Appeals shall consist of three (3) members as appointed by the Township Board. The first member of the Board of Appeals shall be a member of the Township Planning Commission, one (1) member may be a member of the Township Board, the remaining member(s) shall be selected and appointed by the Township Board from among the electors residing in the unincorporated area of the Township. An elected officer of the Township may not serve as chairman of the Zoning Board of Appeals. An employee or contractor of the Township Board may not serve as a member or employee of the Zoning Board of Appeals. Members of the Board of Appeals shall be removable by the Township Board for non-performance of duty or misconduct in office upon written charges and after a public hearing.
- B. The Township Board may appoint not more than two (2) alternate members for the same term as regular members to the Zoning Board of Appeals. One alternate may be a township board member if no regular member of the ZBA is a board member. An alternate member may be called upon to serve as a regular member of the Zoning Board of Appeals in the absence of a regular member if the regular member is absent from or will be unable to attend two (2) or more consecutive meetings of the Board of Appeals, or is absent from or will be unable to attend meetings for a period of more than sixty (60) consecutive days. An alternate member may also be called to serve as a regular member for the purpose of reaching a decision on a case in which the regular member has abstained for reasons of conflict of interest. The alternate member shall serve on the Board of Appeals until a final decision is made. The alternate member shall have the same voting rights as a regular member of the Zoning Board of Appeals.
- C. Terms of Zoning Board of Appeals members shall be for three (3) years, except for members of the Planning Commission or Township Board, whose terms shall be limited to the time they are members of said bodies and the period stated in the resolution appointing them. A successor shall be appointed not more than one (1) month after the term for the preceding member has expired. All vacancies for unexpired terms shall be filled for the remainder of the term.
- D. The total amount allowed such Board of Appeals in one (1) year as per diem or as expenses actually incurred in the discharge of their duties shall not exceed a reasonable sum, which sum shall be appropriated annually in advance by the Township Board.
- E. The Board of Appeals shall adopt its own rules of procedure as may be necessary to conduct its meetings and carry out its function. The Board shall choose a chairman, and in the chairman's absence, an acting chair.

- F. Meetings shall be held at the call of the chairman and at such other times as the Board in its rules of procedure may specify. A simple majority of the membership of the Board of Appeals shall constitute a quorum and may conduct any items of business brought before the Board. All meetings of the Board shall be open to the public.
- G. Minutes shall be recorded of all proceedings which shall contain evidence and dates relevant to every case considered together with the votes of the members of the final disposition of each case. Such minutes shall be filed in the office of the Township Clerk and become public records.
- H. The concurring vote of a majority of the members of the Zoning Board of Appeals shall be necessary to reverse any decision of the Zoning Administrator, to decide in favor of the applicant any matter upon which the Board is required to pass, or to grant any variance of the terms or conditions of this Ordinance.
- I. The Zoning Board of Appeals shall return a decision upon each case within a reasonable amount of time. All decisions of the Board of Appeals are final, and appeals must be filed with a court of competent jurisdiction.
- J. A member of the Zoning Board of Appeals shall disqualify oneself from a vote in which the member has a conflict of interest. Failure of a member to disqualify oneself from a vote in which the member has a conflict of interest shall constitute misconduct.  
A member of the Zoning Board of Appeals who is also a member of the Planning Commission or the Township Board shall not participate in a public hearing on or vote on the same matter that the member voted on as a member of the Planning Commission or the Township Board. However, the member may consider and vote on other unrelated matters involving the same property.
- K. The Township Zoning Board of Appeals shall have the power to act on those matters where this Ordinance provides for an administrative review, interpretation, or variance as defined in this Chapter.

### SECTION 11.3 VARIANCES

The Zoning Board of Appeals is authorized to grant, upon application, variances to such requirements as lot area and width regulations, yard and depth regulations, and off-street parking and loading space requirements. Any requirement of this Ordinance which is dimensional in nature may be brought before the Zoning Board of Appeals to be considered for a variance. The Board may attach any conditions it deems necessary to a variance to ensure that the spirit and intent of this Ordinance is carried out.

- A. The Board of Appeals shall ensure that all variances comply with the following:
  - 1. Will not be contrary to the public interest or to the intent and purpose of this Ordinance.
  - 2. Will not permit the establishment of a use within a district where it is prohibited.
  - 3. Will not adversely affect property values in the immediate vicinity or in the Township as a whole.
  - 4. Will relate only to the property for which the application has been submitted.
  - 5. Is not a request that occurs regularly, that could be addressed through

an amendment to this Ordinance.

- B. The Board of Appeals shall not grant a variance unless at least one (1) of the following is demonstrated:
1. Where there are exceptional or extraordinary circumstances to the intended use by physical conditions such as narrowness, shallowness, shape, or topography of the property involved that generally do not apply to other properties or uses in the same district. Such circumstances or conditions shall not be considered grounds for a variance if they have been caused by the applicant or previous owner after the effective date of this Ordinance.
  2. Where there are practical difficulties which prevent the carrying out of the strict letter of this Ordinance. Generally economic difficulty on its face is not a qualifying difficulty. Difficulties should be evaluated in terms of the use of the parcel or property.
  3. Where the lot or parcel was lawfully recorded prior to the effective date of this Ordinance or any amendment thereto, and the dimensional provisions of this Ordinance prohibit the use of the lot or parcel in accordance with the district regulations.
  4. Where such variance is necessary for the preservation of a substantial property right possessed by other properties in the same district.
- C. Any variance that is denied wholly or in part shall not be resubmitted for review for a period of one (1) year from the date that the Board last took action on the request unless substantive new evidence is to be presented or new circumstances arise.
- D. No use variances may be granted by the Zoning Board of Appeals.

#### SECTION 11.4 ADMINISTRATIVE REVIEW

The Zoning Board of Appeals is authorized to review all decisions made in the administration of this Ordinance. The Board may uphold, reverse, or modify any order, decision or determination made by the Zoning Administrator, Planning Commission, or any other entity except as otherwise noted in this Ordinance. The appeal or request for administrative review shall be submitted to the Township Clerk with the required fee.

The filing of an appeal or request for administrative review shall stay all proceedings in furtherance of the action being reviewed. If the Zoning Administrator certifies in writing to the Zoning Board of Appeals that a stay would cause imminent peril to life or property, the proceedings shall not be stayed unless a restraining order is issued by the Zoning Board of Appeals or by court action.

#### SECTION 11.5 INTERPRETATION AND CLASSIFICATION OF USES

Upon application or petition and the filing of the appropriate fees, the Zoning Board of Appeals shall be authorized to interpret any uncertainty that may occur in the administration of this Ordinance.

- A. The Board shall determine the precise location of the boundary lines between

- zoning districts when there is a question about the exact location.
- B. The Board shall interpret any provision of this Ordinance when the Zoning Administrator is unable to clearly determine its meaning, intent, or purpose.
  - C. The Board may classify any activity which is not specifically mentioned in the district regulations as a Permitted Use or a Conditional Use. The basis for such classification shall be that the activity is consistent and similar to the uses already listed in the district.
  - D. The Board may determine the off-street parking and loading space requirements for any use or activity which cannot be determined under the provisions of this Ordinance.

The Zoning Administrator shall keep a record of all decisions made by the Zoning Board of Appeals and make such record available to the Township Board, Planning Commission and the public.

#### SECTION 11.6 HEARING NOTICES

All Zoning Board of Appeals hearings shall meet the public notice requirements of Section 10.10 of this Ordinance.



## **CHAPTER 12 AMENDMENTS AND REZONING**

### **SECTION 12.1 AUTHORIZATION**

Amendments to this Ordinance may be made as is deemed necessary, and shall be in accordance with Public Act 110 of 2006, the Michigan Zoning Enabling Act, as amended.

### **SECTION 12.2 REZONING**

For the purposes of this Chapter and other applicable Sections of this Ordinance, the term “rezoning” shall be considered an amendment to the Zoning District Map. The procedure for rezoning shall follow the procedure set forth in this Chapter for Amendments.

### **SECTION 12.3 INITIATION OF AMENDMENTS**

Proposals for amendments may be initiated by the Township Board, Planning Commission, or any person or persons having an interest.

### **SECTION 12.4 PROCEDURE**

- A. Each petition by one (1) or more owners or their agents, to amend the text or map (rezoning) of this Ordinance shall be submitted upon an application of standard form to the Zoning Administrator. A fee as established by the Township Board shall be paid at the time of application. The Zoning Administrator shall transmit the application and other information to the Planning Commission for its consideration and recommendations.
- B. The Planning Commission shall consider each proposed amendment in terms of the likely effect of such proposal upon the development plans for the community as set forth in the Township Master Plan, as well as in terms of the merits of the individual proposal. The Planning Commission may recommend any additions or modifications to the amendment petition. The Planning Commission shall forward a copy of the proposed amendment to the County Planning Commission for comments and recommendations within 42 days.
- C. After receiving recommendations from the County, or the expiration of 42 days, and before making a recommendation to the Board on any proposed amendment to this Ordinance, the Planning Commission shall conduct a public hearing, with notice being given by the Township as specified in Section 10.10 of this Ordinance. The proposed rezoning or amendment and supporting documents shall then be forwarded to the Township Board after the public hearing.
- D. Upon receipt of the Planning Commission’s recommendations, the Township Board shall review both the County’s and the Planning Commission’s recommendations. The Township Board shall adopt or reject the proposed amendment unless one (1) or more of the following occurs:

1. The Township Board shall grant a hearing on the proposed amendment to any interested property owner who has filed a written request for such a hearing with the Township Clerk in a timely manner. The Planning Commission, or its designated representative, may be requested to attend the hearing. Notice of the hearing shall be given to the interested property owner in accordance with Section 10.10 of this Ordinance. No other notices are required
  2. If the Township Board deems advisable any changes or additions to the amendment recommended by the Planning Commission, it may refer amendment with the changes or additions back to the Planning Commission for a report thereon within thirty (30) days. After receiving the report, the Township Board shall grant a hearing on the proposed amendment to any interested property owner who requests a hearing. The request for hearing shall be addressed to the Township Clerk and delivered by certified mail. The Township Board shall request the Planning Commission, or its designated representative, to attend the hearing.
- E. Following a hearing, if requested, and/or review of the Planning Commission's report, the Township Board by majority vote of its membership may adopt or reject the proposed amendment with or without changes.
- F. The amendment shall be filed with the Township Clerk and one (1) notice of adoption shall be published in a newspaper of general circulation within fifteen (15) days of adoption. The notice shall contain:
1. Either a summary of the regulatory effect of the amendment, including the geographic area affected, or the text of the amendment;
  2. The effective date of the amendment; and
  3. The time and place where a copy of the amendment may be purchased or inspected.
- G. The amendment will take effect on the eighth (8<sup>th</sup>) day following publication.
- H. An amendment for the purpose of conforming a provision of the Zoning Ordinance to the decree of a court of competent jurisdiction as to any specific land may be adopted by the Township Board and the notice of the adopted amendment published without a hearing or referring the amendment to any other board or agency provided for in this Ordinance

# Amendments

Section Number

Description

Date

# INDEX

## A

|                                         |                                                                    |
|-----------------------------------------|--------------------------------------------------------------------|
| Accessory .....                         | 2, 5, 6, 19, 23, 38, 41, 42, 44, 46, 50                            |
| accessory building .....                | 9, 18, 19, 23, 26                                                  |
| Accessory Structures and Uses .....     | 2                                                                  |
| ADMINISTRATION AND ENFORCEMENT .....    | 101                                                                |
| Adult Entertainment Establishment ..... | 6                                                                  |
| <b>Agriculture</b> .....                | 6, 17, 20, 41, 58                                                  |
| <b>Alley</b> .....                      | 6, 54                                                              |
| Antennas .....                          | 26                                                                 |
| Appeals .....                           | 14, 22, 37, 55, 59, 65, 95, 100, 101, 102, 103, 105, 106, 107, 108 |
| Application Requirements .....          | 68                                                                 |

## B

|                                                         |                                 |
|---------------------------------------------------------|---------------------------------|
| <b>Bed and Breakfast Establishment</b> .....            | 6                               |
| <b>Boarding or Lodging House</b> .....                  | 6                               |
| <b>Bonafide Commercial Agricultural Operation</b> ..... | 6                               |
| boundaries .....                                        | 18, 19, 26, 37, 72, 84, 92, 104 |
| buffers .....                                           | 41, 92, 96                      |
| <b>Building</b> .....                                   | 6                               |
| <b>Building Height</b> .....                            | 6                               |
| <b>Building Site</b> .....                              | 6                               |

## C

|                                             |        |
|---------------------------------------------|--------|
| campers .....                               | 30, 31 |
| <b>Commercial Shipping</b> .....            | 7      |
| <b>Commercial Solar Energy System</b> ..... | 7      |
| Conditional Uses .....                      | 2, 38  |
| Corner Clearance .....                      | 24     |
| CORNER LOTS .....                           | 24     |

## D

|                                       |                                                                   |
|---------------------------------------|-------------------------------------------------------------------|
| dangerous buildings .....             | 33                                                                |
| definitions .....                     | 13, 14                                                            |
| <b>Deteriorated Buildings</b> .....   | 7                                                                 |
| <b>Development Site Plan</b> ...      | 7, 29, 32, 39, 42, 43, 45, 52, 54, 62, 75, 91, 92, 95, 97, 98, 99 |
| Development Standards .....           | 2                                                                 |
| developments .....                    | 13, 24, 41, 42, 45, 46, 47, 62, 87, 91, 92                        |
| disposal .....                        | 2, 24, 63, 70, 77, 94, 97, 101                                    |
| Disposal of Dangerous Buildings ..... | 33                                                                |
| District Regulations .....            | 37                                                                |
| Districts .....                       | 26, 34, 35, 37, 96                                                |
| <b>Drive-through Business</b> .....   | 7                                                                 |
| Driveway .....                        | 27, 82                                                            |
| Duplex .....                          | 8                                                                 |

|                                            |       |
|--------------------------------------------|-------|
| <b>Dwelling Unit</b> .....                 | 8, 54 |
| <b>Dwelling, Multiple-Family</b> .....     | 7     |
| <b>Dwelling, Single-Family</b> .....       | 7     |
| <b>Dwelling, Two-Family (Duplex)</b> ..... | 8     |

## E

|                         |    |
|-------------------------|----|
| Easement .....          | 69 |
| Essential Service ..... | 8  |

## F

|                                   |           |
|-----------------------------------|-----------|
| <b>Family</b> .....               | 8, 45     |
| <b>Family Day Care Home</b> ..... | 8         |
| <b>Flag Lot</b> .....             | 9         |
| <b>Floor Area</b> .....           | 9, 54, 55 |
| <b>Frontage</b> .....             | 9         |

## G

|                                                 |                    |
|-------------------------------------------------|--------------------|
| Garage .....                                    | 9, 58              |
| <b>Garage - Private</b> .....                   | 9                  |
| <b>Garage - Public</b> .....                    | 9                  |
| General Provisions .....                        | 21, 41, 44, 46, 50 |
| <b>Ground Mounted Solar Energy System</b> ..... | 9                  |
| <b>Group Day Care</b> .....                     | 9                  |

## H

|                              |    |
|------------------------------|----|
| <b>High-Water Mark</b> ..... | 12 |
| <b>Home Occupation</b> ..... | 9  |

## I

|                                              |    |
|----------------------------------------------|----|
| <b>Indoor Recreation Establishment</b> ..... | 9  |
| Inspections .....                            | 78 |

## J

|                        |   |
|------------------------|---|
| <b>Junk Yard</b> ..... | 9 |
|------------------------|---|

## K

|                     |    |
|---------------------|----|
| <b>Kennel</b> ..... | 10 |
|---------------------|----|

## L

|                                                                                                                                         |    |
|-----------------------------------------------------------------------------------------------------------------------------------------|----|
| <b>Land Division</b> .....                                                                                                              | 10 |
| <b>Large Scale Livestock Enterprises</b> .....                                                                                          | 10 |
| lot 3, 4, 5, 6, 10, 11, 13, 14, 21, 23, 24, 25, 26, 27, 30, 31, 38, 39, 41, 43, 44, 45, 46, 47, 56, 57, 59, 64, 66, 73, 74, 76, 91, 95, |    |

|                      |           |
|----------------------|-----------|
| <i>101, 106, 107</i> |           |
| Lot Area .....       | <b>10</b> |
| Lot Coverage .....   | <b>10</b> |
| Lot Depth .....      | <b>10</b> |
| Lot Line .....       | <b>10</b> |

## **M**

|                                         |                  |
|-----------------------------------------|------------------|
| Manufactured Home .....                 | <b>11</b>        |
| Miscellaneous Regulations .....         | <b>2</b>         |
| Mobile Home .....                       | <b>8, 11, 54</b> |
| Motor Vehicle Sales and/or Repair ..... | <b>11</b>        |
| Motor Vehicle Service Facility .....    | <b>11</b>        |

## **N**

|                                |           |
|--------------------------------|-----------|
| Non-Conforming Structure ..... | <b>11</b> |
| Non-Conforming Use .....       | <b>12</b> |

## **O**

|                                        |               |
|----------------------------------------|---------------|
| Off-Site Sign .....                    | <b>12</b>     |
| Outdoor Advertising .....              | <b>12, 58</b> |
| Outdoor Advertising Structure .....    | <b>12, 58</b> |
| Outdoor Recreation Establishment ..... | <b>12</b>     |
| Owner(s) .....                         | <b>12, 68</b> |

## **P**

|                                   |                                                                                                                                                                        |
|-----------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Performance Standards .....       | <b>2</b>                                                                                                                                                               |
| Planned Development .....         | <b>12, 40, 43, 45, 47, 48, 49, 50, 51, 52, 53</b>                                                                                                                      |
| Planned Developments .....        | <b>13, 37, 38, 43, 45, 48, 49, 91</b>                                                                                                                                  |
| Planning Commission .....         | <b>29, 32, 47, 50, 51, 52, 53, 55, 61, 62, 63, 65, 67, 75, 80, 81, 82, 83, 85, 86, 88, 91, 92, 93, 94, 95, 97, 98, 99, 100, 101, 102, 105, 106, 107, 108, 109, 110</b> |
| porches .....                     | <b>9, 26</b>                                                                                                                                                           |
| Porches and Decks .....           | <b>26</b>                                                                                                                                                              |
| Principal Use .....               | <b>12</b>                                                                                                                                                              |
| Private .....                     | <b>9, 12, 13, 18, 55</b>                                                                                                                                               |
| Private Road .....                | <b>12, 13</b>                                                                                                                                                          |
| Private Solar Energy System ..... | <b>12</b>                                                                                                                                                              |
| Public .....                      | <b>4, 7, 8, 9, 12, 13, 14, 15, 19, 30, 38, 39, 42, 48, 54, 58, 61, 70, 76, 79, 80, 90, 105, 109</b>                                                                    |
| Public Road .....                 | <b>12, 13, 19</b>                                                                                                                                                      |
| Public Street .....               | <b>12</b>                                                                                                                                                              |
| Public Utility Facility .....     | <b>13</b>                                                                                                                                                              |

## **R**

|                            |                                          |
|----------------------------|------------------------------------------|
| rear lot line .....        | <b>10, 11, 14</b>                        |
| Recreational .....         | <b>13, 31</b>                            |
| Recreational Vehicle ..... | <b>13</b>                                |
| Residential .....          | <b>2, 13, 16, 34, 35, 37, 38, 40, 46</b> |
| Retail Store .....         | <b>13</b>                                |

|                    |           |
|--------------------|-----------|
| Right-of-way ..... | <b>13</b> |
|--------------------|-----------|

## **S**

|                                           |                                                                                              |
|-------------------------------------------|----------------------------------------------------------------------------------------------|
| Screen .....                              | <b>13</b>                                                                                    |
| Seasonal .....                            | <b>13</b>                                                                                    |
| Setback .....                             | <b>13, 14</b>                                                                                |
| Short Term Rental .....                   | <b>13</b>                                                                                    |
| Sign .....                                | <b>13, 57, 58, 59</b>                                                                        |
| Signs .....                               | <b>41, 44, 46, 59, 75, 85</b>                                                                |
| Site Condominium Projects .....           | <b>13</b>                                                                                    |
| Site Plan Review .....                    | <b>29, 32, 39, 42, 45, 54, 62, 75, 92, 95</b>                                                |
| Solar Energy System .....                 | <b>7, 9, 12, 13, 17, 18, 19, 68, 69, 70, 71, 72, 73, 74, 76, 78, 79, 89, 90</b>              |
| Special Use Permit .....                  | <b>9, 26, 32, 39, 40, 42, 44, 45, 46, 47, 58, 61, 62, 63, 64, 65, 66, 69, 81, 89, 91, 98</b> |
| State Licensed Residential Facility ..... | <b>13</b>                                                                                    |
| Structure .....                           | <b>5, 14</b>                                                                                 |

## **T**

|                |               |
|----------------|---------------|
| Theater .....  | <b>14, 54</b> |
| Towers .....   | <b>27, 80</b> |
| Trailers ..... | <b>30, 31</b> |

## **U**

|                       |                                                                                                                                  |
|-----------------------|----------------------------------------------------------------------------------------------------------------------------------|
| Uniform Setback ..... | <b>14</b>                                                                                                                        |
| Use .....             | <b>6, 9, 14, 23, 26, 32, 39, 40, 42, 44, 45, 46, 47, 54, 55, 58, 61, 62, 63, 64, 65, 66, 69, 76, 81, 84, 85, 89, 91, 98, 108</b> |

## **V**

|                 |                       |
|-----------------|-----------------------|
| Variance .....  | <b>14</b>             |
| Variances ..... | <b>95</b>             |
| Vehicle .....   | <b>11, 14, 31, 54</b> |

## **W**

|                                      |                           |
|--------------------------------------|---------------------------|
| Wind Energy Conversion Systems ..... | <b>14, 15, 39, 80, 84</b> |
|--------------------------------------|---------------------------|

## **Y**

|            |           |
|------------|-----------|
| Yard ..... | <b>14</b> |
|------------|-----------|

## **Z**

|                          |                                                                                                                        |
|--------------------------|------------------------------------------------------------------------------------------------------------------------|
| Zoning Administrator ... | <b>31, 32, 33, 37, 38, 53, 55, 58, 59, 61, 65, 66, 91, 92, 95, 98, 99, 100, 101, 102, 103, 104, 106, 107, 108, 109</b> |
| Zoning Board of ....     | <b>14, 22, 37, 55, 59, 65, 95, 100, 101, 102, 103, 105, 106, 107, 108</b>                                              |
| Zoning Permits .....     | <b>101</b>                                                                                                             |

